RIMÔN LAW

EXECUTION VERSION

DATED 10 FEBRUARY 2026

$15,000,000 MASTER MURABAHA AGREEMENT

Between

KLAIM RECEIVABLE PURCHASE SPV 4 LIMITED

the Company

KLAIM HOLDINGS LIMITED

the Parent

ACP SHARIAH FINANCING GP LIMITED
as general partner for
ACP SHARIAH FINANCING FUND L.P

the Investment Agent

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THIS AGREEMENT (this "**Agreement**") dated 10 February 2026 and is made between:

(1) **KLAIM RECEIVABLE PURCHASE SPV 4 LIMITED,** a private company limited by shares incorporated and registered in Abu Dhabi Global Markets with registered number 22618, whose registered office is at DD-15-134-004 – 007, Level 15, WeWork Hub71, Al Khatem Tower, Abu Dhabi Global Market Square, Al Maryah Island, Abu Dhabi, United Arab Emirates (the "**Company**" and the "**Purchaser**");

(2) **KLAIM HOLDINGS LIMITED (the "Parent");**

(3) **ACP SHARIAH FINANCING GP LIMITED.,** an exempted company incorporated under the laws of the Cayman Islands with registered number WC-413711 and registered address at c/o Walkers Corporate Limited, 190 Elgin Avenue, George Town, Grand Cayman KY1-9008, Cayman Islands as general partner for **ACP SHARIAH FINANCING FUND L.P.,** a limited partnership incorporated under the laws of the Cayman Island with registered number WC-128931 and registered address at c/o Walkers Corporate Limited, 190 Elgin Avenue, George Town, Grand Cayman KY1-9008, Cayman Islands**,** as agent of the other Finance Parties (the "**Investment Agent**" and the "**Seller**").

IT IS HEREBY AGREED as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement:

"**Acceptable Bank**" means:

(a) a bank or financial institution which has a rating for its long-term unsecured and non credit-enhanced debt obligations of B- or higher by Standard & Poor's Rating Services or Fitch Ratings Ltd or B3 or higher by Moody's Investors Service Limited or a comparable rating from an internationally recognised credit rating agency; or

(b) any other bank or financial institution approved by the Investment Agent.

"**Acceptance**" means the acceptance in the form set out in Part 2 (*Form of Transaction Confirmation and Offer Notice*) of Schedule 3 (*Requests and Notices*) of this Agreement.

"**Account**" means any account with any bank, financial institution or any other institution taking deposits of cash or any currency in whatever form.

"**Account Bank**" means (a) in respect of the Interim Collection Account and the Interim Disbursement Account (USD), the Interim Account Bank; and (b) in respect of the New Collection Account and the New Disbursement Account (USD), the New Account Bank.

"**Accounting Principles**" means generally accepted accounting principles in the Original Jurisdiction of the relevant entity, including IFRS.

"**Accounting Reference Date**" means 31 December.

"**ADGM Share Charge**" means the ADGM-law governed share pledge over all of the shares of the Company to be entered into between the Security Agent and the Parent (and, for the avoidance of doubt, executed but undated on the date of this Agreement and subsequently dated and perfected in accordance with Schedule 2, Part B, paragraph 5).

"**Affiliate**" means, in relation to any person, a Subsidiary of that person or a Holding Company of that person or any other Subsidiary of that Holding Company.

"**Annual Financial Statements**" has the meaning given to that term in clause 18 (*Information Undertakings*).

"**Anti-Corruption Laws**" means the Bribery Act 2010, the United States Foreign Corrupt Practices Act of 1977 and any similar laws or regulations in any jurisdiction relating to bribery, corruption or any similar practices.

"**Auditors**" means a Recognised Accounting Firm.

"**Authorisation**" means an authorisation, consent, permit, approval, resolution, licence, exemption, filing, notarisation or registration.

"**Availability Period**" means the period from and including the date of this Agreement to and including the date falling 6 months thereafter;

"**Available Commitment**" means a Financier's Commitment minus:

(a) the amount of its participation in any outstanding Murabaha Contracts (other than a Spot Murabaha Contract); and

(b) in relation to any proposed Utilisation, the amount of its participation in such proposed Utilisation that is due to be made on or before the date of the relevant Murabaha Contract.

"**Available Facility**" means, in respect of a Facility, the aggregate for the time being of each Financier's Available Commitment for that Facility.

"**Borrowing Base**" means the product of (a) the aggregate (calculated in AED) of (i) the Adjusted Pool Balance and (ii) the Cash Collateral multiplied by (b) the Advance Rate.

"**Borrowing Base Agent**" means ACP Shariah Financing GP Limited as general partner for ACP Shariah Financing Fund L.P.

"**Borrowing Base Calculation Date**" has the meaning given to that term in clause 21 (*Borrowing Base*).

"**Borrowing Base Certificate**" has the meaning given to that term clause 21 (*Borrowing Base*).

"**Borrowing Base Inspector**" has the meaning given to that term in clause 21 (*Borrowing Base*).

"**Borrowing Base Report**" has the meaning given to that term in clause 21 (*Borrowing Base*).

"**Borrowings**" has the meaning given to that term in clause 18.1 (*Financial definitions*).

"**Broker**" means DD&CO Limited or such other broker as may be agreed upon from time to time by the Purchaser and the Investment Agent.

"**Broker Documents**" means:

(a) the Commodity Purchase Agreement;

(b) the Commodity On-Sale Agreement; and

(c) the Commodity Administration Fee Letter.

"**Business Day**" means a day (other than a Saturday or Sunday) on which banks are open for general business in Dubai and, in relation to any date on which a payment is to be made in dollars, New York.

"**Cash**" means, at any time, cash denominated in dollars, euros, UAE Dirham, or pounds sterling in hand or at bank and (in the latter case) credited to an account in the name of an Obligor with an Acceptable Bank and to which an Obligor is alone (or together with other Obligors) beneficially entitled and for so long as:

(a) that cash is repayable on demand;

(b) repayment of that cash is not contingent on the prior discharge of any other indebtedness of any Obligor or of any other person whatsoever or on the satisfaction of any other condition;

(c) there is no Security over that cash except for Transaction Security or any Permitted Security constituted by a netting or set-off arrangement entered into by Obligors in the ordinary course of their banking arrangements; and

(d) the cash is freely and immediately available to be applied in repayment or prepayment of the Facilities.

"**Cashflow**" has the meaning given to that term in clause 18".1 (*Financial definitions*).

"**Change of Control**" means:

(a) the Sponsors, together, cease directly or indirectly to:

(i) have the power (whether by way of ownership of shares, proxy, contract, agency or otherwise) to:

(A) cast, or control the casting of, more than fifty per cent (50%) of the maximum number of votes that might be cast at a general meeting of the Parent;

(B) appoint or remove all, or the majority, of the directors or other equivalent officers of the Parent; or

(C) give directions with respect to the operating and financial policies of the Company with which the directors or other equivalent officers of the Parent are obliged to comply,

(ii) hold directly at least fifty one per cent (51%) of the issued share capital of the Parent.

"**Charged Property**" has the meaning given to it in the Investment and Security Agency Agreement.

"**Code**" means the US Internal Revenue Code of 1986.

"**Collection Account**" means: (a) the Interim Collection Account; and (b) following satisfaction of the condition subsequent set out in Schedule 2, Part B, paragraph 5 (as determined by the Investment Agent), the New Collection Account.

"**Commitment**" mean:

(a) in relation to the Original Financier, the amounts set opposite its name in Part 2 (*Original Financier*) of Schedule 1 (*The Parties*) and the amount of any other Commitment transferred to it under this Agreement and the Investment and Security Agency Agreement; and

(b) in relation to any other Financier, the amount of any Commitment transferred to it under this Agreement and the Investment and Security Agency Agreement,

to the extent not cancelled, reduced or transferred by it under this Agreement or any other Finance Document.

"**Commodities**" means, in relation to a Murabaha Contract, Shari'ah compliant commodities approved by the Shari'ah Supervisory Board as specified in the Transaction Confirmation and Offer Notice and, in any event, will only include allocated commodities physically located outside of the United Kingdom and in a jurisdiction in which the sale and purchase of such goods will not give rise to any charge to VAT, customs, levies or similar charges.

"**Commodity Administration Fee Letter**" means the commodity administration fee letter dated on or about the date of this Agreement between the Investment Agent, the Purchaser and the Broker or such other commodity administration fee letter entered into from time to time by the Investment Agent, the Purchaser and the Broker from time to time.

"**Commodity On-Sale Agreement**" means the commodity on sale agreement dated on or about the date of this Agreement between the Purchaser and the On-Sale Broker.

"**Commodity Purchase Agreement**" means the commodity purchase agreement dated on or about the date of this Agreement between the Investment Agent and the Broker.

"**Commodity Tax**" means any Tax payable in relation to the purchase or sale of Commodities by the Investment Agent (acting in any capacity) or the Company (including any VAT, sales tax, goods and services tax, consumption tax, import or excise tax and any other similar tax or duty).

"**Compliance Certificate**" means a certificate substantially in the form set out in Schedule 4 (*Form of Compliance Certificate*).

"**Confidential Information**" means all information relating to any Obligor, the Group, the Finance Documents or the Facilities of which a Finance Party becomes aware in its capacity as, or for the purpose of becoming, a Finance Party or which is received by a Finance Party in relation to, or for the purpose of becoming a Finance Party under, the Finance Documents or the Facilities from either:

(a) any Obligor or any of its advisers; or

(b) another Finance Party, if the information was obtained by that Finance Party directly or indirectly from any Obligor or any of its advisers,

in whatever form, and includes information given orally and any document, electronic file or any other way of representing or recording information which contains or is derived or copied from such information but excludes information that:

(i) is or becomes public information other than as a direct or indirect result of any breach by that Finance Party of clause 30 (*Confidential Information*);

(ii) is identified in writing at the time of delivery as non-confidential by any Obligor or any of its advisers; or

(iii) is known by that Finance Party before the date the information is disclosed to it in accordance with paragraphs (a) or (b) above or is lawfully obtained by that Finance Party after that date, from a source which is, as far as that Finance Party is aware, unconnected with the Group and which, in either case, as far as that Finance Party is aware, has not been obtained in breach of, and is not otherwise subject to, any obligation of confidentiality.

"**Confidentiality Undertaking**" means a confidentiality undertaking substantially in a recommended form of the LMA or in any other form agreed between the Company and the Investment Agent.

"**Contribution**" has the meaning given to it in the Investment and Security Agency Agreement.

"**Cost Price**" means:

(a) in relation to a Murabaha Contract (other than a Spot Murabaha Contract), an amount equal to the aggregate of:

(i) the relevant amount payable or paid by the Investment Agent to the Supplier for the purchase of Commodities (on a spot basis) described in the relevant Purchase Order with Promise to Purchase;

(ii) any Commodity Taxes relating to that purchase; and

(iii) any other direct or indirect costs and expenses (including insurance and transport expenses) in relation to that purchase,

(b) in relation to a Spot Murabaha Contract, US$ 100.

"**Custodian**" means Titanium Finance Ltd, a company organised and existing under the laws of Abu Dhabi Global Markets whose registered office is at Al Khatem Tower, ADGM Square, Abu Dhabi United Arab Emirates (registered number 000003948).

"**Custody Account**" means the custody account titled "Titanium Financial Ltd Client Money Account" with IBAN AE250260001015770081706 and an account held in the United Arab Emirates with Emirates NBD P.J.S.C and subject to the Custody Agreement.

"**Custody Agreement**" means the Custody Agreement entered into between KKT and the Custodian, as custodian.

"**Customer**" means each Customer party to a Receivables Claim Form.

"**Customer MRPA**" means the master receivables purchase agreement entered into between KKT and each Customer from time to time for the sale of Receivables to KKT.

"**Default**" means an Event of Default or any event or circumstance specified in clause 21 (*Events of Default*) which would (with the expiry of a grace period, the giving of notice, the making of any determination under the Finance Documents or any combination of any of the foregoing) be an Event of Default.

"**Deferred Payment Date**" means each Quarter Date, as specified in the Transaction Confirmation and Offer Notice, provided that in relation to a Spot Murabaha Contract the Deferred Payment Date shall be the Utilisation Date of that Spot Murabaha Contract.

"**Deferred Price**" means:

(a) in relation to a Murabaha Contract (other than a Spot Murabaha Contract), the sum referred to as such in the relevant Transaction Confirmation and Offer Notice countersigned by the Company, being the aggregate of:

(i) the Cost Price under that Murabaha Contract; and

(ii) the Murabaha Profit under that Murabaha Contract;

as notified to the Company by the Investment Agent in accordance with clause 5.4 (*Transaction Confirmation and Offer Notice*); and

(b) in relation to a Spot Murabaha Contract, the Spot Price.

"**Deferred Price Instalment**" means each payment instalment payable in the amounts and on the dates specified in Schedule 6 (*Deferred Payment Schedule*) as may be amended by the relevant Transaction Confirmation and Offer Notice.

"**Delegate**" means any delegate, agent, attorney or co-trustee appointed by each Security Agent.

"**Disbursement Account (USD)**" means: (a) the Interim Disbursement Account (USD; and (b) following satisfaction of the condition subsequent set out in Schedule 2, Part B, paragraph 5 (as determined by the Investment Agent), the New Disbursement Account (USD).

"**Disruption Event**" means either or both of:

(a) a material disruption to those payment or communications systems or to those financial markets which are, in each case, required to operate in order for payments to be made in connection with each Facility (or otherwise in order for the transactions contemplated by the Finance Documents to be carried out) which disruption is not caused by, and is beyond the control of, any of the Parties; or

(b) the occurrence of any other event which results in a disruption (of a technical or systems-related nature) to the treasury or payments operations of a Party preventing that, or any other Party:

    (i) from performing its payment obligations under the Finance Documents; or

    (ii) from communicating with other Parties in accordance with the terms of the Finance Documents,

and which (in either such case) is not caused by, and is beyond the control of, the Party whose operations are disrupted.

"**Distributable Profits**" means the Company's profits available for distribution, being its accumulated, realised profits, so far as not previously utilised by distribution or capitalisation, less its accumulated, realised losses, so far as not previously written off in a reduction or reorganisation of capital duly made.

"**Drawstop Event**" means:

(a) a breach of any of the following financial covenants:

    (i) a breach of PAR30 under clause 18.2(b)(ii);

    (ii) a breach of the Collection Ratio ser out in clause 18.2(c); or

    (iii) a breach of the Paid vs. Due Ratio set out in clause 18.2(d); or

(b) a Borrowing Base Deficiency having occurred and is continuing; or

(c) a Monthly Denial Rate Breach having occurred and is continuing.

"**EBITDA**" has the meaning given to that term in clause 18.1 (*Financial definitions*).

"**Eligible Debtor**" has the meaning given to that term in clause 20 (*Borrowing Base*).

"**Eligible Debtor List**" has the meaning given to that term in clause 20 (*Borrowing Base*).

"**Eligible Receivables**" has the meaning given to that term in clause 20 (*Borrowing Base*).

"**Event of Default**" means any event or circumstance specified as such in clause 21 (*Events of Default*).

"**Facility**" means the murabaha facility made available under this Agreement as described in clause 2.1 (*The Facility*).

"**Facility Office**" means:

(a) in respect of a Financier, the office or offices notified by that Financier to the Investment Agent in writing on or before the date it becomes a Financier (or, following that date, by not less than five (5) Business Days' written notice) as the office or offices through which it will perform its obligations under this Agreement; or

(b) in respect of any other Finance Party, the office in the jurisdiction in which it is resident for tax purposes.

"**FATCA**" means:

(a) sections 1471 to 1474 of the Code or any associated regulations;

(b) any treaty, law or regulation of any other jurisdiction, or relating to an intergovernmental agreement between the US and any other jurisdiction, which (in either case) facilitates the implementation of any law or regulation referred to in paragraph (a) above; or

(c) any agreement pursuant to the implementation of any treaty, law or regulation referred to in paragraphs (a) or (b) above with the US Internal Revenue Service, the US government or any governmental or taxation authority in any other jurisdiction.

"**FATCA Application Date**" means:

(d) in relation to a "withholdable payment" described in section 1473(1)(A)(i) of the Code (which relates to payments of interest and certain other payments from sources within the US), 1 July 2014; or

(e) in relation to a "passthru payment" described in section 1471(d)(7) of the Code not falling within paragraph (a) above, the first date from which such payment may become subject to a deduction or withholding required by FATCA.

"**FATCA Deduction**" means a deduction or withholding from a payment under a Finance Document required by FATCA.

"**FATCA Exempt Party**" means a Party that is entitled to receive payments free from any FATCA Deduction.

"**FATCA FFI**" means a foreign financial institution as defined in section 1471(d)(4) of the Code which, if the Financiers are not FATCA Exempt Parties, could be required to make a FATCA Deduction.

"**Fee Letter**" has the meaning given to it in the Investment and Security Agency Agreement.

"**Finance Document**" means this Agreement, the Investment and Security Agency Agreement, the Promise to Sell, the Subordinated Qard Al Hassan Agreement, the Funds Distribution Agreement, each Security Document, each Broker Document, each Purchase Order with Promise to Purchase, each Transaction Confirmation and Offer Notice and its corresponding acceptance, each Murabaha Contract, each Compliance Certificate, each Borrowing Base Certificate, each Borrowing Base Report, each Fee Letter and any other document designated as a "Finance Document" by the Investment Agent and the Company.

"**Finance Lease**" has the meaning given to that term in clause 18.1 (*Financial definitions*).

"**Finance Party**" means the Investment Agent, each Security Agent, the Borrowing Base Agent, and/or a Financier.

"**Financial Indebtedness**" means any indebtedness for or in respect of:

(a) moneys borrowed and debit balances at banks or other financial institutions;

(b) any acceptance under any acceptance credit or bill discounting facility (or dematerialised equivalent);

(c) any note purchase facility or the issue of bonds, notes, debentures, loan stock or any similar instrument;

(d) the amount of any liability in respect of Finance Leases;

(e) receivables sold or discounted (other than any receivables to the extent they are sold on a non-recourse basis and meet any requirement for de-recognition under the Accounting Principles);

(f) any Treasury Transaction (and, when calculating the value of that Treasury Transaction, only the marked to market value (or, if any actual amount is due as a result of the termination or close-out of that Treasury Transaction, that amount) shall be taken into account);

(g) any counter-indemnity obligation in respect of a guarantee, bond, standby or documentary letter of credit or any other instrument issued by a bank or financial institution in respect of (i) an underlying liability of an entity which is not a

Obligor which liability would fall within one of the other paragraphs of this definition or (ii) any liabilities of any Obligor relating to any post-retirement benefit scheme;

(h) any amount raised by the issue of shares which are redeemable (other than at the option of the issuer) before the Maturity Date or are otherwise classified as borrowings under the Accounting Principles;

(i) any amount of any liability under an advance or deferred purchase agreement if (i) one of the primary reasons behind entering into the agreement is to raise finance or to finance the acquisition or construction of the asset or service in question or (ii) the agreement is in respect of the supply of assets or services and payment is due more than ninety (90) days after the date of supply;

(j) any amount raised under any other transaction (including any forward sale or purchase, sale and sale back or sale and leaseback agreement) having the commercial effect of a borrowing or otherwise classified as borrowings under the Accounting Principles;

(k) any financing transaction or other agreement entered into which is expressed to be made in accordance with the principles and rules of Shari'ah (but for the avoidance of doubt, may be governed by another system of law) and which has the economic effect of a borrowing; and

(l) the amount of any liability in respect of any guarantee for any of the items referred to in paragraphs (a) to (k) (inclusive) above.

"**Financial Quarter**" has the meaning given to that term in clause 18.1 (*Financial definitions*).

"**Financial Year**" has the meaning given to that term in clause 18.1 (*Financial definitions*).

"**Financier**" means:

(a) any Original Financier; and

(b) any bank, financial institution, trust, fund or other entity which has become a Party as a Financier in accordance with the Investment and Security Agency Agreement,

which in each case has not ceased to be a Party as such in accordance with the terms of this Agreement or the Investment and Security Agency Agreement.

"**Funds Distribution Agreement**" means the funds distribution agreement entered into on or about the date of this Agreement between, the Company, the Investment Agent, KKT, and the Custodian.

"**Group**" means the Parent and each of its direct and indirect Subsidiaries from time to time.

"**Group Structure Chart**" means the group structure chart in the agreed form as set out in Schedule 9 (*Group Structure Chart*).

"**Holding Company**" means, in relation to a person, any other person in respect of which it is a Subsidiary.

"**IFRS**" means international accounting standards within the meaning of the IAS Regulation 1606/2002 to the extent applicable to the relevant financial statements.

"**Illicit Origin**" means any origin which is illegal or fraudulent, including, without limitation, drug traffic, corruption, organised criminal activities, terrorism or fraud against financial interests of the World Bank or the European Union or any member state thereof.

"**Impaired Agent**" means the Investment Agent at any time when:

(a) it has failed to make (or has notified a Party that it will not make) a payment required to be made by it under the Finance Documents by the due date for payment;

(b) the Investment Agent otherwise rescinds or repudiates a Finance Document; or

(c) an Insolvency Event has occurred and is continuing with respect to the Investment Agent;

unless, in the case of paragraph (a) above:

(i) its failure to pay is caused by:

(A) administrative or technical error; or

(B) a Disruption Event; and

payment is made within five (5) Business Days of its due date; or

(ii) the Investment Agent is disputing in good faith whether it is contractually obliged to make the payment in question.

"**Increased Cost**" means an additional or increased cost which is incurred or suffered by a Finance Party (other than the Original Financier or any other Finance Party which is not a financial institution) or any of its Affiliates but only to the extent directly attributable to that Finance Party having entered into any Finance Document or funding or performing its obligations under any Finance Document.

"**Insolvency Event**" in relation to an entity means that the entity:

(a) is dissolved (other than pursuant to a consolidation, amalgamation or merger);

(b) becomes insolvent or is unable to pay its debts or fails or admits in writing its inability generally to pay its debts as they become due;

(c) makes a general assignment, arrangement or composition with or for the benefit of its creditors;

(d) institutes or has instituted against it, by a regulator, supervisor or any similar official with primary insolvency, rehabilitative or regulatory jurisdiction over it in the jurisdiction of its incorporation or organisation or the jurisdiction of its head or home office, a proceeding seeking a judgment of insolvency or bankruptcy or any other relief under any bankruptcy or insolvency law or other similar law affecting creditors' rights, or a petition is presented for its winding-up or liquidation by it or such regulator, supervisor or similar official;

(e) has instituted against it a proceeding seeking a judgment of insolvency or bankruptcy or any other relief under any bankruptcy or insolvency law or other similar law affecting creditors' rights, or a petition is presented for its winding-up or liquidation, and, in the case of any such proceeding or petition instituted or presented against it, such proceeding or petition is instituted or presented by a person or entity not described in paragraph (d) above and:

(i) results in a judgment of insolvency or bankruptcy or the entry of an order for relief or the making of an order for its winding-up or liquidation; or

(ii) is not dismissed, discharged, stayed or restrained in each case within 30 days of the institution or presentation thereof;

(f) has a resolution passed for its winding-up, official management or liquidation (other than pursuant to a consolidation, amalgamation or merger);

(g) seeks or becomes subject to the appointment of an administrator, provisional liquidator, conservator, receiver, trustee, custodian or other similar official for it or for all or substantially all its assets (other than, for so long as it is required by law or regulation not to be publicly disclosed, any such appointment which is to be made, or is made, by a person or entity described in paragraph (d) above);

(h) has a secured party take possession of all or substantially all its assets or has a distress, execution, attachment, sequestration or other legal process levied, enforced or sued on or against all or substantially all its assets and such secured party maintains possession, or any such process is not dismissed, discharged, stayed or restrained, in each case within thirty (30) days thereafter;

(i) causes or is subject to any event with respect to it which, under the applicable laws of any jurisdiction, has an analogous effect to any of the events specified in paragraphs (a) to (h) (inclusive) above; or

(j) takes any action in furtherance of, or indicating its consent to, approval of, or acquiescence in, any of the foregoing acts.

"**Intellectual Property**" means:

(a) any patents, trade marks, service marks, designs, business names, copyrights, database rights, design rights, domain names, moral rights, inventions, confidential information, knowhow and other intellectual property rights and interests (which may now or in the future subsist), whether registered or unregistered; and

(b) the benefit of all applications and rights to use such assets of each Obligor (which may now or in the future subsist).

the benefit of all applications and rights to use such assets of each Obligor (which may now or in the future subsist).

"**Interim Collection Account**" means the collection account titled "Klaim Receivable Purchase SPV 4 Limited" with IBAN AE51 0860 0000 0925 1246 015, held in the United Arab Emirates with the Interim Account Bank.

"**Interim Account Bank**" means Wio Bank P.J.S.C., or such other bank approved in writing by the Investment Agent (acting on the instructions of the Majority Financiers).

"**Interim Disbursement Account (USD**" means the disbursement account titled "Klaim Receivable Purchase SPV 4 Limited" with IBAN AE87 0860 0000 0938 7598 946 held in the United Arab Emirates with the Interim Account Bank.

"**Investment and Security Agency Agreement**" means an investment and security agency agreement dated on or about the date of this Agreement between each Obligor, the Investment Agent, the Security Agent and the Original Financier.

"**Joint Venture**" means any joint venture entity, whether a company, unincorporated firm, undertaking, association, joint venture or partnership or any other entity.

"**KKT**" means Klaim Kapital Technologies Limited.

"**Klaim MRPA**" means the master receivables purchase agreement entered into between the Company and Klaim Kapital Technologies Limited on or about the date of this Agreement.

"**Late Payment Amount**" has the meaning given to such term in clause 10 (*Late Payment Charges*).

"**Legal Reservations**" means:

(a) the principle that equitable remedies may be granted or refused at the discretion of a court and the limitation of enforcement by laws relating to insolvency, reorganisation and other laws generally affecting the rights of creditors;

(b) the time barring of claims under the Limitation Acts; and

(c) similar principles, rights and defences under the laws of any Relevant Jurisdiction.

"**Limitation Acts**" means the Limitation Act 1980 (United Kingdom) and the Foreign Limitation Periods Act 1984 (United Kingdom).

"**LMA**" means the Loan Market Association.

"**Majority Financiers**" means a Financier or Financiers whose Commitments aggregate more than sixty-six and two-thirds per cent ($66^2/3\%$) of the Total Commitments (or, if the Total Commitments have been reduced to zero, aggregated more than sixty-six and

two-thirds per cent ($66^2/3\%$) of the Total Commitments immediately prior to that reduction), provided that "Majority Financiers" shall always include the Original Financier.

"**Material Adverse Effect**" means a material adverse effect on:

(a) the business, operations, prospects, assets or condition (financial or otherwise) of each Obligor; or

(b) the ability of an Obligor to perform its obligations under the Finance Documents; or

(c) the validity or enforceability of, or the effectiveness or ranking of any Security granted or purported to be granted pursuant to any of, the Finance Documents or the rights or remedies of any Finance Party under any of the Finance Documents.

"**Maturity Date**" means the day falling forty eight (48) Months after the date of this Agreement.

"**Month**" means a period starting on one day in a calendar month and ending on the numerically corresponding day in the next calendar month, except that:

(a) (subject to paragraph (b) below) if the numerically corresponding day is not a Business Day, that period shall end on the next Business Day in that calendar month in which that period is to end if there is one, or if there is not, on the immediately preceding Business Day; and

(b) if there is no numerically corresponding day in the calendar month in which that period is to end, that period shall end on the last Business Day in that calendar month.

The above rules will only apply to the last Month of any period.

"**Monthly Denial Rate Breach**" means as at the relevant date of determination, the Monthly Denial Rate Cap has been breached and such breach is continuing.

"**Monthly Denial Rate Cap**" means, in respect of any Eligible Receivables in respect of which the relevant Debtor has rejected the relevant claim thereunder, 10% of the Outstanding Principal Balance of Eligible Receivables.

"**Murabaha Contract**" means a murabaha contract created between the Investment Agent and the Company pursuant to clause 5.7 (*Murabaha Contract*) or clause 5.21 (*Other Payments*).

"**Murabaha Profit**" means the profit amount to be paid in respect of that Murabaha Contract calculated in accordance with the following formula and set forth in item 4(e) of the Transaction Confirmation and Offer Notice:

$$Murabaha\ Profit = (CP) \times PR \times (N/360)$$

where:

CP is the Cost Price for the Murabaha Contract, taking into account that the Cost Price component will be progressively repaid as part if the Deferred Price Instalments in accordance with the table in Schedule 6 (*Deferred Payment Schedule*);

PR is 13%; and

N is equal to the duration of that Murabaha Contract, expressed in days.

"**New Account Bank**" means Emirates NBD Bank P.J.S.C (or such other bank approved in writing by the Investment Agent (acting on the instructions of the Majority Financiers).

"**New Collection Account**" means the account to be opened by the Company in the United Arab Emirates with the New Account Bank and designated as the "Collection Account".

"**New Disbursement Account (USD**" means the account to be opened by the Company in the United Arab Emirates with the New Account Bank and designated as the "Collection Account".

"**New Financier**" has the meaning given to that term in the Investment and Security Agency Agreement.

"**Obligors**" means each of the Company and the Parent, and "**Obligor**" means any one of them.

"**Obligors' Agent**" means the Company, appointed to act on behalf of each Obligor in relation to the Finance Documents pursuant to clause 2.3 (*Obligors' Agent*).

"**On-Sale Broker**" means Condor Trade Limited or such other broker as may be agreed upon from time to time by the Purchaser and the Investment Agent.

"**Original Financial Statements**" means in relation to the Parent, its audited consolidated financial statements for its Financial Year ended 31 December 2024

"**Original Jurisdiction**" means, in relation to an Obligor, the jurisdiction under whose laws that Obligor is incorporated as at the date of this Agreement.

"**Outstandings**" means, at any time, the aggregate of the outstanding Utilisations.

"**Party**" means a party to this Agreement.

"**Perfection Requirements**" means the making or procuring of the appropriate registrations, filings, endorsements, notarisations, stampings and/or notifications of any Security Documents and/or the Transaction Security created thereunder.

"**Permitted Application**" means each of the permitted purposes set out in clause 3 (*Purpose*).

"**Permitted Financial Indebtedness**" means Financial Indebtedness:

(a) arising under the Finance Documents;

(b) Financial Indebtedness incurred by the Parent, provided that:

(i) the Company has utilised no less than the Total Commitments;

(ii) the Parent provides prompt notice to the Investment Agent upon entering into any discussions pertaining to a potential Financial Indebtedness; and

(iii) the Investment Agent (acting on the Instructions of the Majority Financier) gives consent to such Financial Indebtedness (such consent not to be unreasonably withheld or delayed;

"**Promise to Sell**" means the promise to sell shares granted by in favour of the Original Financier (and, for the avoidance of doubt, executed but undated on the date of this Agreement and subsequently dated in accordance with Schedule 2, Part B, paragraph 5)..

"**Purchase Order with Promise to Purchase**" means a notice to be sent by the Company to the Investment Agent requesting that the Investment Agent purchase the Commodities which will subsequently be purchased by the Company from the Investment Agent under a Murabaha Contract, such notice to be substantially in the form set out in Part 1 (*Form of Purchase Order with Promise to Purchase*) of Schedule 4 (*Requests and Notices*).

"**Quarter Date**" means the last day of a Financial Quarter.

"**Quasi-Security**" has the meaning given to that term in clause 20.13 (*Negative pledge*).

"**Receiver**" means a receiver or receiver and manager or administrative receiver of the whole or any part of the Charged Property.

*"***Recognised Accounting Firms***"* means PricewaterhouseCoopers, Ernst & Young, KPMG, Deloitte, Grant Thornton (or any of their Affiliates) or any other recognised international accounting firm acceptable to the Investment Agent.

"**Related Fund**" in relation to a fund (the "**first fund**"), means a fund which is managed or advised by the same investment manager or investment adviser as the first fund or, if it is managed by a different investment manager or investment adviser, a fund whose investment manager or investment adviser is an Affiliate of the investment manager or investment adviser of the first fund.

"**Relevant Jurisdiction**" means, in relation to an Obligor:

(a) its Original Jurisdiction;

(b) any jurisdiction where any asset subject to or intended to be subject to the Transaction Security to be created by it is situated;

(c) any jurisdiction where it conducts its business; and

(d) the jurisdiction whose laws govern the perfection of any of the Security Documents entered into by it.

"**Relevant Period**" has the meaning given to that term in clause 18.1 (*Financial definitions*).

"**Relevant Profit Amount**" means, in relation to a Spot Murabaha Contract, an amount equal to 35% of the net profits of the Company accrued during each Financial Year of the Company as determined by reference to the latest financial statements of the Company delivered in accordance with clause clause 18.2 (*Financial statements*), provided that the Relevant Profit Amount, when aggregated with the Murabaha Profit, shall not exceed an amount equal to 18% per annum of the Total Commitments, calculated from the date of this Agreement until the date of payment of the Spot Price.

"**Repeating Representations**" means each of the representations set out in clause 16.2 (*Status*) to clause 16.7 (*Governing law and enforcement*), clause 16.11 (*No default*), clause 16.12 (*No misleading information*), clause 16.13 (*Financial Statements*), clause 16.20 (*Ranking*) to clause 16.22 (*Legal and beneficial ownership*), clause 16.23 (*Shares*) to clause 16.24 (*Intellectual property*), clause 16.29 (*Shari'ah compliance*) and clause 16.32 (*No immunity*).

"**Representative**" means any delegate, agent, manager, administrator, nominee, attorney, trustee or custodian.

"**Reserved Amount**" means, in respect of any Financial Year of the Company, the aggregate of (i) 15% of Distributable Profits for that year and (ii) the Relevant Profit Amount payable or which the Investment Agent reasonably estimates shall be payable in respect of that Financial Year.

"**Restricted Party**" means a person that is:

(a) listed on, or owned or controlled (directly or indirectly) by a person listed on, or acting on behalf of a person listed on, any Sanctions List;

(b) a target of Sanctions by virtue of being located in, incorporated under the laws of, or owned or (directly or indirectly) controlled by, or acting on behalf of, a person located in or organised under the laws of a country or territory that is the target of country-wide or territory-wide Sanctions; or

(c) otherwise a target of Sanctions.

"**Sanctions**" means the economic sanctions laws, regulations, embargoes or restrictive measures administered, enacted or enforced by any Sanctions Authority.

"**Sanctions Authority**" means:

(a) the US government;

(b) the United Nations;

(c) the European Union;

(d) the United Kingdom;

(e) the United Arab Emirates; or

(f) the respective governmental institutions and agencies of any of the foregoing, including the Office of Foreign Assets Control of the US Department of Treasury, the US Department of State and Her Majesty's Treasury.

"**Sanctions List**" means the "Specially Designated Nationals and Blocked Persons" list maintained by the Office of Foreign Assets Control of the US Department of Treasury, the Consolidated List of Financial Sanctions Targets and the Investment Ban List maintained by Her Majesty's Treasury, the UAE Central Bank or any similar list maintained by, or public announcement of Sanctions designation made by, any of the Sanctions Authorities.

"**Secured Parties**" means each Finance Party and any Receiver or Delegate.

"**Security**" means a mortgage, charge, pledge, lien or other security interest securing any obligation of any person or any other agreement or arrangement having a similar effect.

"**Security Agent**" means ACP Shariah Financing GP Limited as general partner for ACP Shariah Financing Fund L.P.

"**Security Documents**" means:

(a) the UAE Security Agreement (including any notices, acknowledgements and control agreements to be delivered thereunder);

(b) the ADGM Share Charge; and

(c) any other security documents and guarantees to be delivered to the Investment Agent by the Obligors pursuant to clause 20.44 (*Conditions subsequent*) or 20.45 (*Account security*) or as otherwise agreed in writing between the Company and the Investment Agent or a Security Agent.

"**Senior Management**" means Karim Dakki .

"**Settlement Date**" means, with respect to the Commodities which are the subject of a Purchase Order with Promise to Purchase, the date for payment of the relevant Cost Price by the Investment Agent to the Supplier as specified in Part 2 (*Form of Transaction Confirmation and Offer Notice*) of Schedule 4 (*Requests and Notices*) of this Agreement.

"**Shari'ah Supervisory Board**" means the Shari'ah Supervisory Board of Amanie Advisors Ltd. or any other Shari'ah Supervisory Board appointed by the Seller.

"**Sponsor**" means each of Karim Dakki and Ahmad Ghafoor.

"**Spot Murabaha Contract**" means an individual contract entered into on a spot basis pursuant to the applicable provisions of clause 5.21 (*Other Payments*) by the exchange and countersignature of a Transaction Confirmation and Offer Notice between the Investment Agent and the Company.

"**Spot Price**" means the Deferred Price of a Spot Murabaha Contract, being the aggregate of: (i) the Cost Price; (ii) the Relevant Profit Amount.

"**Subsidiary**" means any person (referred to as the "**first person**") in respect of which another person (referred to as the "**second person**"):

(a) holds a majority of the voting rights in that first person or has the right under the constitution of the first person to direct the overall policy of the first person or alter the terms of its constitution;

(b) is a member of that first person and has the right to appoint or remove a majority of its board of directors or equivalent administration, management or supervisory body;

(c) has the right to exercise a dominant influence (which must include the right to give directions with respect to operating and financial policies of the first person which its directors are obliged to comply with whether or not for its benefit) over the first person by virtue of provisions contained in the articles (or equivalent) of the first person or by virtue of a control contract which is in writing and is authorised by the articles (or equivalent) of the first person and is permitted by the law under which such first person is established;

(d) is a member of that first person and controls alone, pursuant to an agreement with other shareholders or members, a majority of the voting rights in the first person or the rights under its constitution to direct the overall policy of the first person or alter the terms of its constitution;

(e) has the power to exercise, or actually exercises dominant influence or control over the first person; or

(f) together with the first person are managed on a unified basis,

and, for the purposes of this definition, a person shall be treated as a member of another person if any of that person's Subsidiaries is a member of that other person or if any shares in that other person are held by a person acting on behalf of it or any of its Subsidiaries.

"**Subordinated Qard Al Hassan Agreement**" means the Subordinated Qard Al Hassan Agreement al hassan entered into between the Company to the Parent on or about the date of this Agreement.

"**Supplier**" means the Commodities supplier.

"**Tax**" means any tax, levy, impost, duty or other charge or withholding of a similar nature (including any penalty or interest payable in connection with any failure to pay or any delay in paying any of the same).

"**Total Commitments**" means the aggregate of the Commitments, fifteen million dollars ($15,000,000) as at the date of this Agreement, to the extent not cancelled or reduced under the Finance Documents.

"**Transaction Confirmation and Offer Notice**" means (in relation to a proposed Murabaha Contract):

(a) confirmation from the Investment Agent to the Company that the Investment Agent has purchased the relevant Commodities from the Supplier (as set out in the relevant Purchase Order with Promise to Purchase); and

(b) the offer from the Investment Agent offering to sell the same Commodities to the Company,

substantially in the form set out in Part 2 (*Form of Transaction Confirmation and Offer Notice*) of Schedule 4 (*Requests and Notices*).

"**Transaction Document**" means each Finance Document and each of the Klaim MRPA, eachCustomer MRPA, each Custodian Agreement and any other document designated as a "Transaction Document" by the Investment Agent and the Company.

"**Transaction Security**" means the Security created or expressed to be created in favour of a Secured Party pursuant to the Security Documents.

"**Treasury Transactions**" means any derivative transaction entered into in connection with protection against or benefit from fluctuation in any rate or price.

"**UAE Security Agreement**" means the UAE law governed security agreement dated on or about the date of this Agreement between the Company and the Security Agent.

"**Unpaid Sum**" means any sum due and payable but unpaid by an Obligor under the Finance Documents.

"**US**" means the United States of America.

"**US Tax Obligor**" means:

(a) an Obligor which is resident for tax purposes in the US; or

(b) an Obligor some or all of whose payments under the Finance Documents are from sources within the US for US federal income tax purposes.

"**Utilisation**" means a utilisation of the Facility in accordance with the terms of the Finance Documents which is represented by entry into a Murabaha Contract.

"**Utilisation Date**" means the date of a Utilisation, being the date on which a Murabaha Contract is made.

"**VAT**" means a value added tax, sales tax or any other tax of a similar nature.

1.2 Construction

(a) Unless a contrary indication appears, a reference in this Agreement to:

(i) the "**Investment Agent**", any "**Finance Party**", any "Borrowing Base Agent", any "**Borrowing Base Inspector**", any "**Financier**", any "**Obligor**", any "**Party**", any "**Secured Party**", any "**Security Agent**",

or any other person shall be construed so as to include its successors in title, permitted assigns and permitted transferees to, or of, its rights and/or obligations under the Finance Documents and, in the case of a Security Agent, any person for the time being appointed as Security Agent in accordance with the Finance Documents;

(ii) a document in "**agreed form**" is a document which is previously agreed in writing by or on behalf of the Company and the Investment Agent or, if not so agreed, is in the form specified by the Investment Agent;

(iii) "**assets**" includes present and future properties, revenues and rights of every description;

(iv) a "**Finance Document**" or any other agreement or instrument is a reference to that Finance Document or other agreement or instrument as amended, novated, supplemented, extended or restated;

(v) a "**group of Financiers**" includes all the Financiers;

(vi) "**guarantee**" means (other than in clause 16 (*Guarantee and Indemnity*)) any guarantee, letter of credit, bond, indemnity or similar assurance against loss, or any obligation, direct or indirect, actual or contingent, to purchase or assume any indebtedness of any person or to make an investment in or loan to any person or to purchase assets of any person where, in each case, such obligation is assumed in order to maintain or assist the ability of such person to meet its indebtedness;

(vii) "**indebtedness**" includes any obligation (whether incurred as principal or as surety) for the payment or repayment of money, whether present or future, actual or contingent;

(viii) a "**person**" includes any individual, firm, company, corporation, government, state or agency of a state or any association, trust, joint venture, consortium, partnership or other entity (whether or not having separate legal personality);

(ix) a "**regulation**" includes any regulation, rule, official directive, request or guideline (whether or not having the force of law) of any governmental, intergovernmental or supranational body, agency, department or of any regulatory, self-regulatory or other authority or organisation;

(x) a provision of law is a reference to that provision as amended or re-enacted from time to time; and

(xi) a time of day is a reference to Dubai time.

(b) Clause and Schedule headings are for ease of reference only.

(c) Unless a contrary indication appears, a term used in any other Finance Document or in any notice given under or in connection with any Finance Document has the same meaning in that Finance Document or notice as in this Agreement.

(d) A Default (other than an Event of Default) is "**continuing**" if it has not been remedied or waived and an Event of Default is "**continuing**" if it has not been waived.

1.3 Currency symbols and definitions

"**$**", "**US$**" and "**dollars**" denote the lawful currency of the United States of America.

"**AED**" and "**Dirham**" denotes the lawful currency of the UAE.

1.4 Third party rights

(a) Unless expressly provided to the contrary in a Finance Document a person who is not a Party has no right under the Contracts (Rights of Third Parties) Act 1999 (United Kingdom) (the "**Third Parties Act**") to enforce or enjoy the benefit of any term of this Agreement.

(b) Notwithstanding any term of any Finance Document, the consent of any person who is not a Party is not required to rescind or vary this Agreement at any time.

2. THE FACILITIES

2.1 The Facilities

Subject to the terms of this Agreement, the Financiers make available to the Company a dollar murabaha facility in an aggregate amount equal to the Total Commitments.

2.2 Finance Parties' rights and obligations

(a) The obligations of each Finance Party under the Finance Documents are several. Failure by a Finance Party to perform its obligations under the Finance Documents does not affect the obligations of any other Party under the Finance Documents. No Finance Party is responsible for the obligations of any other Finance Party under the Finance Documents.

(b) The rights of each Finance Party under or in connection with the Finance Documents are separate and independent rights and any debt arising under the Finance Documents to a Finance Party from an Obligor is a separate and independent debt in respect of which a Finance Party shall be entitled to enforce its rights in accordance with clause 2.2(c) below. The rights of each Finance Party include any amounts owing to that Finance Party under the Finance Documents and, for the avoidance of doubt, any part of a Deferred Price or any other amount owed by an Obligor which relates to a Finance Party's participation in each Facility or its role under a Finance Document (including any such amount payable to the Investment Agent on its behalf) is a payment obligation owing to that Finance Party by that Obligor.

(c) A Finance Party may, except as specifically provided in the Finance Documents, separately enforce its rights under or in connection with the Finance Documents.

2.3 Obligors' Agent

(a) Each Obligor (other than the Company) by its execution of this Agreement irrevocably appoints the Company (acting through one or more authorised signatories) to act on its behalf as its agent in relation to the Finance Documents and irrevocably authorises:

(i) the Company on its behalf to supply all information concerning itself contemplated by this Agreement to the Finance Parties and to give all notices and instructions to make such agreements and to effect the relevant amendments, supplements and variations capable of being given, made or effected by any Obligor notwithstanding that they may affect the Obligor, without further reference to or the consent of that Obligor; and

(ii) each Finance Party to give any notice, demand or other communication to that Obligor pursuant to the Finance Documents to the Company,

and in each case the Obligor shall be bound as though the Obligor itself had given the notices and instructions (including, without limitation, any Purchase Order with Promise to Purchase) or executed or made the agreements or effected the amendments, supplements or variations, or received the relevant notice, demand or other communication.

(b) Every act, omission, agreement, undertaking, settlement, waiver, amendment, supplement, variation, notice or other communication given or made by the Company or given to the Company under any Finance Document on behalf of another Obligor or in connection with any Finance Document (whether or not known to any other Obligor and whether occurring before or after such other Obligor became an Obligor under any Finance Document) shall be binding for all purposes on that Obligor as if that Obligor had expressly made, given or concurred with it. In the event of any conflict between any notices or other communications of the Company and any other Obligor, those of the Company shall prevail.

3. PURPOSE

3.1 Purpose

The Company shall apply all amounts utilised by it under this Agreement towards the purchase of Receivables.

3.2 Monitoring

No Finance Party is bound to monitor or verify the application of any amount contributed by it to the Company pursuant to this Agreement. The Company shall ensure that it applies the proceeds of the Facility only to Shari'ah compliant purposes.

4. CONDITIONS OF UTILISATION

4.1 Initial conditions precedent

(a) The Company may not deliver a Purchase Order with Promise to Purchase until the Investment Agent has received (or waived receipt of) all of the documents and other evidence set out in Schedule 2 (*Conditions Precedent*) in form and substance satisfactory to the Investment Agent. The Investment Agent shall notify the Company and the Financiers promptly upon being so satisfied.

(b) Other than to the extent that the Majority Financiers notify the Investment Agent in writing to the contrary before the Investment Agent gives the notification described in clause 4.1(a) above, the Financiers authorise (but do not require) the Investment Agent to give that notification. The Investment Agent shall not be liable for any damages, costs or losses whatsoever as a result of giving any such notification.

4.2 Further conditions precedent

Subject to clause 4.1 (*Initial conditions precedent*), the Financiers will only be obliged to comply with clause 5.18 (*Financiers' participation*), if on the date of a Purchase Order with Promise to Purchase and on the proposed Utilisation Date:

(a) no Default or Drawstop Event is continuing or would result from the proposed Utilisation;

(b) the Company provides evidence that the proceeds from the relevant Murabaha Contract shall be paid directly into the Disbursement Account (USD);

(c) all the representations and warranties in clause 17 (*Representations*) to be made by each Obligor are true and correct.

(d) the Investment Agent has received all of the documents, evidence and other matters listed below in a form and substance satisfactory to the Investment Agent:

(i) details of the Receivables to be purchased by the Company through the proceeds of the relevant Murabaha Contract, details of the amount, representing the purchase price of the relevant Receivables to be purchased by the Company through the proceeds of the relevant Murabaha Contract; and

(ii) an investment memorandum with analysis of the relevant Customer's historical claim submissions, payments and rejections (which may be satisfied by the Company or the Parent providing the Investment Agent with access to their online database(s) which include such information);

(e) other than in respect of the Purchase Order with Promise to Purchase submitted in respect of the first Murabaha Contract, following delivery of a Borrowing Base Certificate, a Purchase Order with Promise to Purchase may not be delivered to the Investment Agent prior to receipt by the Company of the

notification in respect of such Borrowing Base Certificate pursuant to paragraph (d) of Clause 21.3 (*Borrowing Base Certificate and Borrowing Base Report*);

(f) prior written consent of the Investment Agent (acting on the instructions of the Majority Financiers, acting in their sole and absolute discretion), shall be required in respect of any Murabaha Contract the Cost Price of which, when aggregated with each the Cost Price of each other Murabaha Contract made pursuant to the Agreement, would exceed US$ 3,000,000.

4.3 Maximum number of Murabaha Contracts

The Company may not deliver a Purchase Order with Promise to Purchase if as a result of the proposed Utilisation more than twelve (12) Murabaha Contracts would be outstanding, or such other amount agreed by the Investment Agent (acting on the instructions of the Majority Financiers).

5. UTILISATIONS

5.1 Delivery of a Purchase Order with Promise to Purchase

(a) Subject to clause 4 (*Conditions of Utilisation*) and clause 5.2 (*Completion of a Purchase Order with Promise to Purchase*), the Company may propose to enter into a Murabaha Contract with the Investment Agent by delivering to the Investment Agent a duly completed Purchase Order with Promise to Purchase no later than 11am on the date falling five (5) Business Days (or any other date agreed between the Company and the Investment Agent) before the proposed Utilisation Date for the relevant Murabaha Contract.

(b) A Purchase Order with Promise to Purchase is irrevocable.

5.2 Completion of a Purchase Order with Promise to Purchase

A Purchase Order with Promise to Purchase shall not be duly completed unless:

(a) it sets out the proposed Settlement Date which, other than in respect of a Spot Murabaha Contract, must fall within the Availability Period;

(b) it sets out the total Cost Price to be paid by the Investment Agent to the Supplier with respect to such proposed Settlement Date;

(c) other than in respect of a Spot Murabaha Contract, the total Cost Price for that Murabaha Contract shall be no less than US$ 250,000;

(d) other than in respect of a Spot Murabaha Contract, there is no more than one Murabaha Contracts entered into in any calendar month;

(e) other than in respect of a Spot Murabaha Contract, the Company has certified (on behalf of itself and the other Obligors) in that Purchase Order with Promise to Purchase that the proceeds of the relevant Murabaha Contract are to be applied in accordance with clause 3 (*Purpose*);

(f) other than in respect of a Spot Murabaha Contract, the Company has certified (on behalf of itself and the other Obligors) in the Purchase Order with Promise to Purchase that no Default has occurred and is continuing or would result from the relevant Murabaha Contract;

(g) other than with the prior written consent of the Investment Agent (acting on the instructions of the Majority Financiers), at most twelve (12) Murabaha Contracts will be outstanding as a result of the Purchase Order with Promise to Purchase;

(h) it specifies whether the proposed Murabaha Contract is a Spot Murabaha Contract;

(i) in the case of a Spot Murabaha Contract it complies with the requirements of clause 5.21 (*Other Payments*);

(j) other than in respect of a Spot Murabaha Contract, the aggregate amount of the Outstandings adjusted to take account of:

(A) the amount of the requested Utilisation;

(B) the amount of any Utilisations which, pursuant to any other requests are to be made on or before the date for the making of the requested Utilisation; and

(C) the amount of any Utilisation scheduled to be repaid on or before the date for the making of the requested Utilisation,

would be less than or equal to the Borrowing Base as evidenced by the Borrowing Base Certificate most recently delivered to the Security Agent in accordance with this Agreement; and

(k) other than in respect of a Spot Murabaha Contract, the proposed Cost Price does not exceed the relevant Available Facility.

5.3 Purchase of Commodities by Investment Agent

Subject to the satisfaction of the conditions set out in clause 4.1 (*Initial conditions precedent*) and clause 4.2 (*Further conditions precedent*), upon the Investment Agent receiving a duly completed Purchase Order with Promise to Purchase, it shall:

(a) purchase the Commodities which are the subject of such Purchase Order with Promise to Purchase from the relevant Supplier in accordance with the terms set forth in such Purchase Order with Promise to Purchase; and

(b) use its reasonable endeavours to obtain confirmation from the Supplier that ownership of the Commodities has passed to the Investment Agent, along with copies of the title documents (if any) identifying the Commodities purchased by the Investment Agent.

5.4 Transaction Confirmation and Offer Notice

(a) Upon completion of the purchase of the relevant Commodities by the Investment Agent in accordance with clause 5.3 (*Purchase of Commodities by Investment Agent*) the Investment Agent shall on the same day offer to sell to the Purchaser the same by delivering a Transaction Confirmation and Offer Notice to the Company..

(b) The Transaction Confirmation and Offer Notice shall contain such details as the Cost Price, Profit Amount, and the Deferred Price Instalments payable by the Company thereunder, currently anticipated to be the amounts and dates as specified in Schedule 8 (*Deferred Payment Schedule*).

5.5 Payment of Additional Costs

With respect to any Murabaha Contract, the Investment Agent will advise the Company of the aggregate amount of any additional actual and documented costs, fees (including, without limitation, any fees payable to the relevant Supplier), commission, expenses or Taxes actually incurred by the Investment Agent in connection with such Murabaha Contract (together, any "**Additional Costs**") (and in respect of which the Investment Agent shall, at the Company's cost, provide any supporting documents or evidence reasonably requested by the Company) as soon as practicable following the purchase of any Commodities by it from the relevant Supplier and the Company shall, on demand, reimburse the Investment Agent for any Additional Costs in the currency in which they were incurred or promptly settle such Additional Costs on behalf of the Investment Agent if requested to do so by the Investment Agent.

5.6 Notice of Offer to Purchase and Indemnity

(a) Immediately upon its receipt of a Transaction Confirmation and Offer Notice, the Company shall deliver to the Investment Agent a duly completed Acceptance on the same day on which the Investment Agent delivers such Transaction Confirmation and Offer Notice to the Company.

(b) The Company acknowledges that the Investment Agent will be purchasing Commodities pursuant to a Purchase Order with Promise to Purchase in reliance upon the Company's promise set out therein to purchase such Commodities for the applicable Deferred Price from the Investment Agent after it has purchased the same from the relevant Supplier. The Company further acknowledges that the Investment Agent will incur losses, damages and other liabilities if the Company fails to purchase any Commodities from the Investment Agent which have been purchased by the Investment Agent from the relevant Supplier.

(c) If the Company fails to send an Acceptance in accordance with clause 5.6(a) above, then it shall be deemed to have failed to purchase the relevant Commodities and the Company shall indemnify the Investment Agent on demand and hold it harmless from and against all actual claims, suits, actions, costs, expenses, Taxes, liabilities, losses and damages of whatsoever nature suffered or incurred by the Investment Agent resulting from the failure by the Company to send the Acceptance.

(d) An Acceptance once given shall be irrevocable.

5.7 Murabaha Contract

Upon the delivery of an Acceptance by the Company, a Murabaha Contract shall be created between the Investment Agent and the Company upon the terms of the relevant Transaction Confirmation and Offer Notice and Acceptance and incorporating all of the terms and conditions of this Agreement.

5.8 The Commodities

The Company hereby acknowledges and agrees that it shall be solely responsible for selecting or approving any Commodities which are the subject of a Murabaha Contract.

5.9 Transfer of Ownership and Title

Upon the Investment Agent delivering an Acceptance, ownership of and title to the relevant Commodities shall immediately pass to and be vested in the Company, together with all rights and obligations relating thereto (including the benefit of all of the Supplier's warranties and representations which are capable of being so transferred). The Company will obtain such title to the Commodities as the Investment Agent has received from the relevant Supplier and the Investment Agent shall not be deemed to give to the Company any warranty relating to the Commodities, whether arising by implication, by law or statute or otherwise and, without prejudice to the generality of the foregoing, any such warranty or representation is hereby expressly excluded to the extent permitted by law.

5.10 Time of the Essence

Other than to the extent otherwise agreed between the Investment Agent and the Company, each of the Investment Agent and the Company acknowledges and agrees that:

(a) time is of the essence in the consummation of any Murabaha Contract in accordance with this Agreement and that following the completion of a Transaction Confirmation and Offer Notice in accordance with clause 5.4 (*Transaction Confirmation and Offer Notice*), the relevant Murabaha Contract shall be created no later than the relevant Settlement Date; and

(b) a failure to create a Murabaha Contract by such time shall result in the Transaction Confirmation and Offer Notice for that Murabaha Contract being declared void ab initio whereupon the Company undertakes to compensate the Investment Agent and each Financier in respect of all actual loss, liability, cost or expense incurred by the Investment Agent or any Financier as a result of such failure (except where such costs, claims, losses and expenses arise by reason of gross negligence or wilful misconduct of the Investment Agent or a Financier, as the case may be).

5.11 Transfer of Risk

Risk in all Commodities purchased by the Company from the Investment Agent pursuant to any Murabaha Contract will pass to the Company at the time when title to

such Commodities passes to the Company pursuant to clause 5.9 (*Transfer of Ownership and Title*).

5.12 Acceptance of Commodities

The Company hereby acknowledges that, upon delivery or transfer of the Commodities to the Company, the Company shall be deemed and considered to have accepted such Commodities unconditionally and without reservations and shall have no further remedy against the Investment Agent in respect of their quality, condition, quantity, description, title or otherwise.

5.13 Waiver of claims

Without prejudice to clause 5.12 (*Acceptance of Commodities*), the Company hereby waives any claims which it may have against the Investment Agent in respect of any actual loss or damage which the Company may suffer by reason of, or arising out of or in connection with, the Investment Agent having placed an order for the purchase of Commodities with a Supplier, having taken title or having failed to take title to the Commodities or having sold the Commodities to the Company under this Agreement or any Murabaha Contract. After the creation of a Murabaha Contract the Investment Agent shall have no liability in respect of actual loss, damage or deterioration of any Commodities in transit.

5.14 Indemnity

The Company shall (within five (5) Business Days of written demand) indemnify the Investment Agent on demand and hold it harmless from and against all actual claims, suits, actions, costs, expenses, Taxes, liabilities, losses and damages of whatsoever nature relating to or arising out of or in connection with the Investment Agent having placed an order for the purchase of Commodities with a Supplier, having taken title to the Commodities or having sold the Commodities to the Company under this Agreement or any Murabaha Contract except to the extent that such actual claims, suits, actions, costs, expenses, Taxes, liabilities, losses and damages have resulted from the Investment Agent's gross negligence, fraud or wilful misconduct.

5.15 Cancellation of Murabaha Contracts

A Murabaha Contract shall be cancelled without any liability whatsoever on the part of the Investment Agent if for any reason title to the relevant Commodities is not passed to the Investment Agent by the Supplier on the applicable Settlement Date.

5.16 Permits, approvals licenses and consents

The Company shall obtain, at its sole cost and expense, all necessary permits, exchange control approvals, licenses and all other consents required by it in connection herewith and shall provide copies of such to the Investment Agent.

5.17 Commodity Tax

(a) The Company shall (within five (5) Business Days of written demand and without double counting) indemnify and keep indemnified the Investment Agent and each Financier against any loss, liability, cost or expense incurred by it in

relation to Commodity Taxes (other than any Commodity Taxes already included as part of any Cost Price) under or in relation to any Finance Document or any purchase by the Investment Agent from the Supplier pursuant to a Murabaha Contract or the Finance Documents.

(b) If the Investment Agent (in its absolute discretion) determines that any Commodity Tax is payable in relation to either a sale of Commodities to:

(i) the Investment Agent from the Supplier; or

(ii) the Company from the Investment Agent; and

that amount of Commodity Tax has not been factored into the relevant Cost Price or relevant Deferred Price, the Company shall:

(A) pay to the Investment Agent and each Financier the amount of that Commodity Tax incurred by the Investment Agent or that Financier in relation to that Commodity Tax; and

(B) shall (within five (5) Business Days of written demand) indemnify the Investment Agent and each Financier against any loss, liability, cost or expense incurred in relation to that Commodity Tax.

5.18 Financiers' participation

(a) If the conditions set out in this Agreement have been met, each Financier shall make its participation in each Murabaha Contract available by the relevant Utilisation Date through its Facility Office.

(b) The amount of each Financier's participation in each Murabaha Contract will be equal to the proportion borne by its Available Commitment to the Available Facility immediately prior to making the relevant Facility.

5.19 Cancellation of Commitment

The Commitments which, at that time, are unutilised shall be immediately cancelled at the end of the Availability Period.

5.20 Further Acts

Each of the Seller and the Company shall enter into and execute such further documents, and do all such further acts and things, as may be reasonably required in connection with the purchase and/or on-sale of any Commodities (whether directly from a supplier or to a third party purchaser, respectively, as the case may be, or indirectly through an agent or broker) in connection with any Murabaha Contract.

5.21 Other Payments

The Company undertakes to enter into a Spot Murabaha Contract on the last Business Day of each of the Company's Financial Years or any earlier date on which all outstanding Deferred Prices becomes due and payable in full, where:

(a) the Murabaha Contract is intra - day such that the Utilisation Date and the Deferred Payment Date for the Spot Murabaha Contract are the same date;

(b) the Cost Price component of the Spot Price is an amount equal to $100;

(c) the Profit Amount component of the Spot Price is the Relevant Profit Amount.

6. PAYMENTS UNDER MURABAHA CONTRACTS

6.1 Deferred Payments under Murabaha Contracts

(a) Subject to the terms of this Agreement and the other Finance Documents, on each Deferred Payment Date, the Company shall pay to the Investment Agent the relevant Murabaha Proft for the relevant Murabaha Contract and, if applicable, each Deferred Price Instalment for the relevant Murabaha Contract entered into by the Company in accordance with the payment schedule set out in Schedule 8 (*Deferred Payment Schedule*) as may be amended by the relevant Transaction Confirmation and Offer Notice.

(b) Notwithstanding the foregoing or any other provision of this Agreement or any document referred to in this Agreement, the Company shall, in any event, discharge in full on the Maturity Date all amounts payable by the Company to the Investment Agent and the Financiers under the Finance Documents.

(c) Any payments of a Deferred Price Instalment required to be made pursuant to this Agreement shall be made in dollars.

(d) The payment and other obligations of the Company under or in respect of a Murabaha Contract and this Agreement shall not be affected, mitigated or released in any way as a result of any defect in title to the relevant Commodities, any deficiency in the Commodities, any loss or damage to the Commodities, any failure by any Supplier to comply with any of its undertakings or obligations or any other reason whatsoever, except to the extent that it is due to the Investment Agent's, or any employee of the Investment Agent's, gross negligence, fraud or wilful misconduct.

7. ILLEGALITY, VOLUNTARY PREPAYMENT AND CANCELLATION

7.1 Illegality

If, in any applicable jurisdiction, it becomes unlawful for a Financier to perform any of its obligations as contemplated by the Finance Documents or to fund, issue or maintain its participation in any Utilisation or it becomes unlawful for any Affiliate of a Financier for that Financier to do so:

(a) that Financier shall promptly notify the Investment Agent upon becoming aware of that event;

(b) upon the Investment Agent notifying the Company, each Available Commitment of that Financier will be immediately cancelled; and

(c) the Company shall pay that Financier's pro rata share in all Deferred Prices then outstanding and payable by it on the later of (i) the next Deferred Payment Date to occur after a Financier has given notice in accordance with clause 7.1(a) above or, if earlier, (ii) the date specified by the Financier in the notice delivered to the Investment Agent, provided that such date shall be no earlier than seven (7) days after the date of receipt of the notice (in any event being no later than the last day of any applicable grace period permitted by law), and that Financier's corresponding Commitment shall be cancelled in the amount of the participation repaid.

7.2 Voluntary early payment

(a) The Company may, if it gives the Investment Agent not less than ten (10) Business Days (or such shorter period as the Majority Financiers may agree) prior notice, pay early the outstanding Deferred Price, in whole or in part, of the Murabaha Contract(s) then outstanding provided that:

(i) the Availability Period has expired or all of the Total Commitments have been utilised in full or otherwise cancelled;

(ii) any such voluntary early payment is made on a Deferred Payment Date falling at least one (1) year since the date of this Agreement

(iii) the payment is at least $1,000,000 and multiples of $100,000 thereof.

(b) In respect of any voluntary early payment to be made by the Company, any potential rebate to be granted by the Investment Agent, if any, shall be at the sole and absolute discretion of the Financiers. When considering the amount of the rebate, the Financiers will take into account an amount of five percent (5%)of the amount of the early payment to be retained by the Financiers.

(c) Voluntary early payment made in accordance with the terms of this Agreement shall not incur any charges or fees.

8. MANDATORY EARLY PAYMENT AND CANCELLATION

8.1 Change of Control

If a Change of Control occurs:

(a) the Company shall immediately notify the Investment Agent upon becoming aware of that event;

(b) upon being notified by the Company, the Investment Agent shall promptly notify each other Financier;

(c) if the Majority Financiers notify the Investment Agent that they wish the Facility to be prepaid, the Investment Agent shall notify the Company in writing, in which case:

(i) the unutilised portion of the Total Commitments shall be cancelled and reduced to zero;

(ii) no Financier shall be obliged to make available a Utilisation;

(iii) the Obligors shall immediately pay the Financiers the full Deferred Price in respect of all Murabaha Contracts outstanding at that time; and

(iv) all other amounts due and payable to the Finance Parties under the Finance Documents by any Obligor shall become immediately due and payable.

8.2 Change in Senior Management

(a) If a member of the Senior Management voluntarily resigns from employment with the Parent or the Company:

(i) the Company shall immediately notify the Investment Agent upon becoming aware of that event;

(ii) upon being notified by the Company, the Investment Agent shall promptly notify each other Financier; and

(iii) the Company and the Investment Agent (acting on the instructions of the Majority Financiers) shall enter into good faith discussions (for a period of not more than sixty days) with a view to agreeing and appointing a replacement for the member of the Senior Management who has resigned.

(b) If, upon expiry of the sixty day discussion period mentioned in clause 8.3(a)(iii) above, the Company and the Investment Agent have not been able to reach an agreement on the appropriate replacement for the member of the Senior Management, then upon written request by the Investment Agent:

(i) the unutilised portion of the Total Commitments shall be cancelled and reduced to zero;

(ii) no Financier shall be obliged to make available a Utilisation;

(iii) the Company shall immediately pay the Financiers the full Deferred Price in respect of all Murabaha Contracts outstanding at that time; and

(iv) all other amounts due and payable to the Finance Parties under the Finance Documents by any Obligor shall become immediately due and payable.

8.3 Mandatory prepayment – Borrowing Base amounts

(a) The Borrowing Base shall be calculated on each Borrowing Base Calculation Date.

(b) Notwithstanding anything to the contrary herein, no obligation to remedy a Borrowing Base Deficiency (whether by way of prepayment or advancing amounts under the Subordinated Qard Al Hassan Agreement) shall arise prior to the date falling five (5) months after the date hereof (the "**Borrowing Base Holiday Period**").

(c) If, at any time on or after the expiry of the Borrowing Base Holiday Period. the Outstandings of the Company at that time exceed the applicable Borrowing Base (the amount by which the Outstandings exceed the applicable Borrowing Base being a "**Borrowing Base Deficiency**"), the Borrowing Base Agent shall notify Investment the Agent who shall notify the Company and the Parent of the Borrowing Base Deficiency and on such date, the Parent hereby agrees and undertakes to advance in full its commitment amount under the Subordinated Qard Al Hassan Agreement. Thereafter, to the extent a Borrowing Base Deficiency is continuing or reoccurs,the Company and/or the Parent, within fifteen (15) Business Days (the "**Borrowing Base Deficiency Remedy Period**") from the date on which the Investment Agent notifies the Company thereof:

(i) shall prepay or repay any amount of the Deferred Price for each Murabaha Contract outstanding (in order of maturity); or

(ii) in respect of the Parent only, may make an additional advance under the Subordinated Qard Al Hassan Agreement (which shall include an upsize to the commitment thereunder) to ensure that, following such payment, such Borrowing Base Deficiency no longer exists; and

(iii) deliver a new Borrowing Base Certificate to the Borrowing Base Agent that confirms that such Borrowing Base Deficiency no longer exists and upon receipt of the new Borrowing Base Certificate the Borrowing Base Agent shall notify the Agent of the adjusted Borrowing Base.

(d) Upon receipt of a new Borrowing Base Certificate pursuant to paragraph (a)(ii) above, the Borrowing Base Agent shall promptly confirm to the Company if it is in agreement that the Borrowing Base Deficiency no longer exists (the "**Borrowing Base Deficiency Remedy Notice**").

(e) If, on the last day of the Borrowing Base Deficiency Remedy Period, the Borrowing Base Agent determines that there is still a Borrowing Base Deficiency, it shall notify the Investment Agent and the Investment Agent may:

(i) notify the Security Agent; and

(ii) if the balance on any Collection Account is positive, instruct the Security Agent to: (A) transfer any amounts standing to the credit to the Collection Account to the Disbursement Account (for the sole purpose of converting such amounts denominated in AED to USD, such conversion to be at the exchange rate then offered by the relevant Account Bank (such rate to be notified in writing by the Company to the Investment Agent); and (B) transfer such amounts from the Disbursement Account (USD) to be applied in prepayment or repayment

of the Utilisations in order to ensure that thereafter the Borrowing Base Deficiency ceases to exist.

9. RESTRICTIONS

9.1 Notices of cancellation or prepayment

Any notice of cancellation, prepayment, authorisation or other election given by any Party under clause 7 (*Illegality, voluntary early payment and cancellation*) shall (subject to the terms of those clauses) be irrevocable and, unless a contrary indication appears in this Agreement, shall specify the date or dates upon which the relevant cancellation or prepayment is to be made and the amount of that cancellation or prepayment.

9.2 Murabaha Profit and other amounts

Any early payment under this Agreement shall be made together with accrued profit on the amount paid early.

9.3 No re-utilisation of Facility

The Company may not re-utilise any part of a Facility which is paid early.

9.4 Early payment in accordance with Agreement

The Company shall not pay all or any part of the Utilisations except at the times and in the manner expressly provided for in this Agreement.

9.5 No reinstatement of Commitments

No amount of the Total Commitments cancelled under this Agreement may be subsequently reinstated.

9.6 Effect of payment and early payment on Commitments

If all or part of any Financier's participation in a Utilisation under a Facility is paid or paid early, the amount of that Financier's Commitment in respect of that Facility will be deemed to be cancelled on the date of repayment or prepayment.

9.7 Application of prepayments

Any prepayment of a Utilisation (other than a prepayment pursuant to clause 7.1 (*Illegality*)) shall be applied *pro rata* to each Financier's participation in such Murabaha Contract in inverse order of maturity.

10. LATE PAYMENT CHARGES

10.1 Late Payment Charges

(a) If any sum (an "**Unpaid Sum**") due and payable by an Obligor under any of the Finance Documents is not paid to the Finance Parties on its due date (the "**Due Date**"), then in addition to paying the Unpaid Sum, that Obligor shall pay to the relevant Finance Parties a late payment amount denominated in the currency of

the corresponding Unpaid Sum (the "**Late Payment Amount**") calculated in accordance with clause 10.2 (*Late Payment Amount*) below.

(b) For the purposes of clause 10.2 (*Late Payment Amount*) below, the period beginning on the Due Date and ending on the date upon which the obligation of an Obligor to pay the Unpaid Sum is discharged in full shall be called the "**Applicable Period**".

10.2 Late Payment Amount

(a) The Late Payment Amount shall be an amount equal to the Unpaid Sum multiplied by the sum of:

(i) two per cent (2.0%) of the relevant amount, representing the late payment amount; and

(ii) thirteen per cent (13%) per annum on the relevant amount representing the ordinary rate of Murabaha Profit,

multiplied by the number of days in such Applicable Period and divided by 360.

(b) Any Late Payment Amount may first be applied by the Investment Agent towards payment of any actual and documented costs, losses or liabilities (but not opportunity cost or funding costs) incurred by the Finance Parties as a consequence of the Obligors' failure to pay the overdue amount when due. The remaining Late Payment Amount shall be donated by Investment Agent, on behalf of the Obligors to a charity or charities designated by the Investment Agent and approved by the Shari'ah Supervisory Board.

11. TAX GROSS-UP AND INDEMNITIES

11.1 Definitions

In this Agreement:

"**Protected Party**" means a Finance Party which is or will be subject to any liability or required to make any payment for or on account of Tax in relation to a sum received or receivable (or any sum deemed for the purposes of Tax to be received or receivable) under a Finance Document.

"**Tax Credit**" means a credit against, relief or remission for, or repayment of, any Tax.

"**Tax Deduction**" means a deduction or withholding for or on account of Tax from a payment under a Finance Document, other than a FATCA Deduction.

"**Tax Payment**" means either the increase in a payment made by an Obligor to a Finance Party under clause 11.2 (*Tax gross-up*) or a payment under clause 11.3 (*Tax indemnity*).

Unless a contrary indication appears, in this clause 11 (*Tax Gross-up and Indemnities*) a reference to "**determines'** or "**determined**" means a determination made in the absolute discretion of the person making the determination.

11.2 Tax gross-up

(a) Each Obligor shall make all payments to be made by it without any Tax Deduction, unless a Tax Deduction is required by law.

(b) The Company shall promptly upon becoming aware that an Obligor must make a Tax Deduction (or that there is any change in the rate or the basis of a Tax Deduction) notify the Investment Agent accordingly. Similarly, a Financier shall notify the Investment Agent on becoming so aware in respect of a payment payable to that Financier. If the Investment Agent receives such notification from a Financier it shall notify the Company and that Obligor.

(c) If a Tax Deduction is required by law to be made by an Obligor, the amount of the payment due from that Obligor shall be increased to an amount which (after making any Tax Deduction) leaves an amount equal to the payment which would have been due if no Tax Deduction had been required.

(d) If an Obligor is required to make a Tax Deduction, that Obligor shall make that Tax Deduction and any payment required in connection with that Tax Deduction within the time allowed and in the minimum amount required by law.

(e) Within thirty (30) days of making either a Tax Deduction or any payment required in connection with that Tax Deduction, the Obligor making that Tax Deduction shall deliver to the Investment Agent for the Finance Party entitled to the payment evidence reasonably satisfactory to that Finance Party that the Tax Deduction has been made or (as applicable) any appropriate payment paid to the relevant taxing authority.

11.3 Tax indemnity

(a) The Obligors shall (within three (3) Business Days of demand by the Investment Agent) pay to a Protected Party an amount equal to the loss, liability or cost which that Protected Party determines will be or has been (directly or indirectly) suffered for or on account of Tax by that Protected Party in respect of a Finance Document.

(b) Clause 11.3(a) above shall not apply:

(i) with respect to any Tax assessed on a Finance Party:

(A) under the law of the jurisdiction in which that Finance Party is incorporated or, if different, the jurisdiction (or jurisdictions) in which that Finance Party is treated as resident for tax purposes; or

(B) under the law of the jurisdiction in which that Finance Party's Facility Office is located in respect of amounts received or receivable in that jurisdiction,

if that Tax is imposed on or calculated by reference to the net income received or receivable (but not any sum deemed to be received or receivable) by that Finance Party; or

(ii) to the extent a loss, liability or cost:

(A) is compensated for by an increased payment under clause 11.2 (*Tax gross-up*); or

(B) relates to a FATCA Deduction required to be made by a Party.

(c) A Protected Party making, or intending to make a claim under clause 11.3(a) above shall promptly notify the Investment Agent of the event which will give, or has given, rise to the claim, following which the Investment Agent shall notify the Company.

(d) A Protected Party shall, on receiving a payment from an Obligor under this clause 11.3, notify the Investment Agent.

11.4 Tax Credit

If an Obligor makes a Tax Payment and the relevant Finance Party determines that:

(a) a Tax Credit is attributable to an increased payment of which that Tax Payment forms part, to that Tax Payment or to a Tax Deduction in consequence of which that Tax Payment was required; and

(b) that Finance Party has obtained and utilised that Tax Credit,

the Finance Party shall pay an amount to the Obligor which that Finance Party determines will leave it (after that payment) in the same after-Tax position as it would have been in had the Tax Payment not been required to be made by the Obligor.

11.5 Stamp taxes

The Company shall pay and, within three (3) Business Days of demand, indemnify each Secured Party against any cost, loss or liability that a Secured Party incurs in relation to all stamp duty, registration and other similar Taxes or charges, including notarial fees, which are or may be payable in respect of any Finance Document.

11.6 VAT

(a) All amounts expressed to be payable under a Finance Document by any Party to a Finance Party which (in whole or in part) constitute the consideration for any supply for VAT purposes are deemed to be exclusive of any VAT which is chargeable on that supply, and accordingly, subject to clause 11.6(b) below, if VAT is or becomes chargeable on any supply made by any Finance Party to any Party under a Finance Document and such Finance Party is required to account to the relevant tax authority for the VAT, that Party must pay to such Finance Party (in addition to and at the same time as paying any other consideration for such supply) an amount equal to the amount of the VAT (and such Finance Party must promptly provide an appropriate VAT invoice to that Party).

(b) If VAT is or becomes chargeable on any supply made by any Finance Party (the "**VAT Supplier**") to any other Finance Party (the "**Recipient**") under a Finance Document, and any Party other than the Recipient (the "**Relevant Party**") is

required by the terms of any Finance Document to pay an amount equal to the consideration for that supply to the VAT Supplier (rather than being required to reimburse or indemnify the Recipient in respect of that consideration):

(i) (where the VAT Supplier is the person required to account to the relevant tax authority for the VAT) the Relevant Party must also pay to the VAT Supplier (at the same time as paying that amount) an additional amount equal to the amount of the VAT. The Recipient must (where this clause 11.6(b)(i) applies) promptly pay to the Relevant Party an amount equal to any credit or repayment the Recipient receives from the relevant tax authority which the Recipient reasonably determines relates to the VAT chargeable on that supply; and

(ii) (where the Recipient is the person required to account to the relevant tax authority for the VAT) the Relevant Party must promptly, following demand from the Recipient, pay to the Recipient an amount equal to the VAT chargeable on that supply but only to the extent that the Recipient reasonably determines that it is not entitled to credit or repayment from the relevant tax authority in respect of that VAT.

(c) Where a Finance Document requires any Party to reimburse or indemnify a Finance Party for any cost or expense, that Party shall reimburse or indemnify (as the case may be) such Finance Party for the full amount of such cost or expense, including such part thereof as represents VAT, save to the extent that such Finance Party reasonably determines that it is entitled to credit or repayment in respect of such VAT from the relevant tax authority.

(d) Any reference in this clause 11.6 to any Party shall, at any time when such Party is treated as a member of a group for VAT purposes, include (where appropriate and unless the context otherwise requires) a reference to the representative member of such group at such time (the term "**representative member**" to have the same meaning as in the Value Added Tax Act 1994 (United Kingdom)).

(e) In relation to any supply made by a Finance Party to any Party under a Finance Document, if reasonably requested by such Finance Party, that Party must promptly provide such Finance Party with details of that Party's VAT registration and such other information as is reasonably requested in connection with such Finance Party's VAT reporting requirements in relation to such supply.

11.7 FATCA information

(a) Subject to clause 11.7(c) below, each Party shall, within ten Business Days of a reasonable request by another Party:

(i) confirm to that other Party whether it is:

(A) a FATCA Exempt Party; or

(B) not a FATCA Exempt Party;

(ii) supply to that other Party such forms, documentation and other information relating to its status under FATCA as that other Party reasonably requests for the purposes of that other Party's compliance with FATCA; and

(iii) supply to that other Party such forms, documentation and other information relating to its status as that other Party reasonably requests for the purposes of that other Party's compliance with any other law, regulation, or exchange of information regime.

(b) If a Party confirms to another Party pursuant to clause 11.7(a)(i) above that it is a FATCA Exempt Party and it subsequently becomes aware that it is not or has ceased to be a FATCA Exempt Party, that Party shall notify that other Party reasonably promptly.

(c) Clause 11.7(a) above shall not oblige any Finance Party to do anything, and clause 11.7(a)(iii) above shall not oblige any other Party to do anything, which would or might in its reasonable opinion constitute a breach of:

(i) any law or regulation;

(ii) any fiduciary duty; or

(iii) any duty of confidentiality.

(d) If a Party fails to confirm whether or not it is a FATCA Exempt Party or to supply forms, documentation or other information requested in accordance with clauses 11.7(a)(i) or 11.7(a)(ii) above (including, for the avoidance of doubt, where clause 11.7(c) above applies), then such Party shall be treated for the purposes of the Finance Documents (and payments under them) as if it is not a FATCA Exempt Party until such time as the Party in question provides the requested confirmation, forms, documentation or other information.

11.8 FATCA Deductions by Obligors

(a) If an Obligor is required to make a FATCA Deduction, that Obligor shall make that FATCA Deduction and any payment required in connection with that FATCA Deduction within the time allowed and in the minimum amount required by FATCA.

(b) If a FATCA Deduction is required to be made by an Obligor, the amount of the payment due from that Obligor shall be increased to an amount which (after making any FATCA Deduction) leaves an amount equal to the payment which would have been due if no FATCA Deduction had been required.

(c) The Company shall promptly upon becoming aware that an Obligor must make a FATCA Deduction (or that there is any change in the rate or the basis of a FATCA Deduction) notify the Investment Agent accordingly.

(d) Within thirty (30) days of making either a FATCA Deduction or any payment required in connection with that FATCA Deduction, the Company shall deliver to the relevant Finance Party evidence reasonably satisfactory to that Finance

Party that the FATCA Deduction has been made or (as applicable) any appropriate payment paid to the relevant governmental or taxation authority.

11.9 FATCA Deduction by Finance Parties

A Finance Party may make any FATCA Deduction it is required by FATCA to make, and any payment required in connection with that FATCA Deduction, and that Finance Party shall not be required to increase any payment in respect of which it makes such a FATCA Deduction or otherwise compensate the Obligors for that FATCA Deduction. If a Finance Party becomes aware that it must make a FATCA Deduction in respect of a payment to the Obligors (or that there is any change in the rate or the basis of such FATCA Deduction), it shall notify the Company.

12. INCREASED COSTS

12.1 Increased Costs

Subject to clause 12.3 (*Exceptions*) the Company shall, within three (3) Business Days of a demand by the Investment Agent, pay for the account of a Finance Party (except any Financier or any other Finance Party which is not a financial institution) the amount of any Increased Costs incurred by that Finance Party or any of its Affiliates as a result of (i) the introduction of or any change in (or in the interpretation, administration or application of) any law or regulation or (ii) compliance with any law or regulation made after the date of this Agreement.

12.2 Increased Cost claims

(a) A Finance Party intending to make a claim pursuant to clause 12.1 (*Increased Costs*) shall notify the Investment Agent of the event giving rise to the claim, following which the Investment Agent shall promptly notify the Company.

(b) Each Finance Party shall, as soon as practicable after a demand by the Investment Agent, provide a certificate confirming the amount of its Increased Costs.

12.3 Exceptions

(a) Clause 12.1 (*Increased Costs*) does not apply to the extent any Increased Cost is:

(i) attributable to a Tax Deduction required by law to be made by an Obligor;

(ii) attributable to a FATCA Deduction required to be made by a Party;

(iii) compensated for by clause 11.3 (*Tax indemnity*) (or would have been compensated for under clause 11.3 (*Tax indemnity*) but was not so compensated solely because any of the exclusions in clause 11.3(b) (*Tax indemnity*) applied);

(iv) attributable to the wilful breach by the relevant Finance Party or its Affiliates of any law or regulation.

(b) In this clause 12.3 reference to a "**Tax Deduction**" has the same meaning given to the term in clause 11.1 (*Definitions*).

13. OTHER INDEMNITIES

13.1 Currency indemnity

(a) If any sum due from an Obligor under the Finance Documents (a "**Sum**"), or any order, judgment or award given or made in relation to a Sum, has to be converted from the currency (the "**First Currency**") in which that Sum is payable into another currency (the "**Second Currency**") for the purpose of:

(i) making or filing a claim or proof against that Obligor; or

(ii) obtaining or enforcing an order, judgment or award in relation to any litigation or arbitration proceedings,

that Obligor shall as an independent obligation, within three (3) Business Days of demand, indemnify each Secured Party to whom that Sum is due against any cost, loss or liability arising out of or as a result of the conversion including any discrepancy between (A) the rate of exchange used to convert that Sum from the First Currency into the Second Currency and (B) the rate or rates of exchange available to that person at the time of its receipt of that Sum.

(b) Each Obligor waives any right it may have in any jurisdiction to pay any amount under the Finance Documents in a currency or currency unit other than that in which it is expressed to be payable.

13.2 Other indemnities

The Company shall (or shall procure that an Obligor will), within three (3) Business Days of demand, indemnify each Finance Party against any cost, loss or liability incurred by it as a result of:

(a) the occurrence of any Event of Default;

(b) a failure by an Obligor to pay any amount due under a Finance Document on its due date, including without limitation, any cost, loss or liability arising as a result of clause 13 (*Sharing among Finance Parties*) of the Investment and Security Agency Agreement;

(c) funding, or making arrangements to fund, its participation in a Purchase Order with Promise to Purchase by the Company but not made by reason of the operation of any one or more of the provisions of this Agreement (other than by reason of default or negligence by that Finance Party alone); or

(d) any outstanding Deferred Price not being prepaid in accordance with a notice of prepayment given by the Company.

13.3 Indemnity to the Investment Agent and the Borrowing Base Agent

The Company shall promptly indemnify the Investment Agent and the Borrowing Base Agent against:

(a) any cost, loss or liability incurred by the Investment Agent and/or the Borrowing Base Agent (acting reasonably) as a result of:

(i) investigating any event which it reasonably believes is a Default;

(ii) acting or relying on any notice, request or instruction which it reasonably believes to be genuine, correct and appropriately authorised;

(iii) instructing lawyers, accountants, tax advisers, surveyors or other professional advisers or experts as permitted under this Agreement;

(iv) any failure by the Company to comply with its obligations under clause 15 (*Costs and expenses*);

(v) acting or relying on any notice, request or instruction which it reasonably believes to be genuine, correct and appropriately authorised;

(vi) the taking, holding, protection or enforcement of the Transaction Security;

(vii) the exercise of any of the rights, powers, discretions, authorities and remedies vested in Investment Agent and each Receiver and Delegate by the Finance Documents or by law;

(viii) any default by any Obligor in the performance of any of the obligations expressed to be assumed by it in the Finance Documents; and

(b) any cost, loss or liability (including, without limitation, for negligence or any other category of liability whatsoever) incurred by the Investment Agent and/or the Borrowing Base Agent (otherwise than by reason of the Investment Agent's and/or the Borrowing Base Agent gross negligence or wilful misconduct) (or, in the case of any cost, loss or liability pursuant to clause 24.10 (*Disruption to payment systems*) notwithstanding the Investment Agent's and/or the Borrowing Base Agent's negligence, gross negligence or any other category of liability whatsoever but not including any claim based on the fraud of the Investment Agent and/or the Borrowing Base Agent) in acting as Agent under the Finance Documents.

The Investment Agent, and/or the Borrowing Base Agent each Security Agent, and every Receiver and Delegate may, in priority to any payment to the Secured Parties, indemnify itself out of the Charged Property in respect of, and pay and retain, all sums necessary to give effect to the indemnity in this clause 13.3 and shall have a lien on the Transaction Security and the proceeds of the enforcement of the Transaction Security for all moneys payable to it.

14. MITIGATION BY THE FINANCIERS

14.1 Mitigation

(a) Each Finance Party shall, in consultation with the Company, take all reasonable steps to mitigate any circumstances which arise and which would result in any Facility ceasing to be available or any amount becoming payable under or pursuant to, or cancelled pursuant to, any of clause 7.1 (*Illegality*), clause 11 (*Tax gross-up and indemnities*) or clause 12 (*Increased Costs*) including (but not limited to) transferring its rights and obligations under the Finance Documents to another Affiliate or Facility Office.

(b) Clause 14.1(a) above does not in any way limit the obligations of any Obligor under the Finance Documents.

14.2 Limitation of liability

(a) The Company shall promptly indemnify each Finance Party for all costs and expenses reasonably incurred by that Finance Party as a result of steps taken by it under clause 14.1 (*Mitigation*).

(b) A Finance Party is not obliged to take any steps under clause 14.1 (*Mitigation*) if, in the opinion of that Finance Party (acting reasonably), to do so might be prejudicial to it.

15. COSTS AND EXPENSES

15.1 Transaction expenses

The Company shall, promptly on demand, pay the Investment Agent and each Security Agent the amount of all actual costs and expenses (including pre-agreed legal fees) reasonably incurred by any of them (and, in the case of a Security Agent, by any Receiver or Delegate) in connection with the negotiation, preparation, printing, execution, syndication and perfection of:

(a) this Agreement and any other documents referred to in this Agreement and the Transaction Security; and

(b) any other Finance Documents executed after the date of this Agreement.

15.2 Amendment costs

If an Obligor requests an amendment, waiver or consent, the Company shall, within three (3) Business Days of demand, reimburse each of the Investment Agent and each Security Agent for the amount of all actual costs and expenses (including legal fees) reasonably incurred by any of them (and, in the case of a Security Agent, by any Receiver or Delegate) in responding to, evaluating, negotiating or complying with that request or requirement.

15.3 Enforcement and preservation costs

The Company shall, within three (3) Business Days of demand, pay to each Secured Party the amount of all actual costs and expenses (including legal fees) incurred by it in connection with the enforcement of or the preservation of any rights under any Finance Document and the Transaction Security and any proceedings instituted by or against any Security Agent as a consequence of taking or holding the Transaction Security or enforcing these rights.

15.4 Broker Documents

The Purchaser shall promptly on demand pay the Investment Agent the amount of all actual costs and expenses (including commodity administration fees, but without duplication with amounts payable as part of the Cost Price) incurred by the Investment Agent in connection with the Broker Documents.

16. REPRESENTATIONS

16.1 General

Each Obligor makes the representations and warranties set out in this clause 16 to each Finance Party.

16.2 Status

(a) It is a limited liability corporation, duly incorporated and validly existing under the law of its Original Jurisdiction.

(b) KKT is a limited liability corporation, duly incorporated and validly existing under the law of its jurisdiction of incorporation.

(c) It and KKT has the power to own its assets and carry on its business as it is being conducted.

16.3 Binding obligations

Subject to the Legal Reservations:

(a) the obligations expressed to be assumed by it in each Finance Document to which it is a party are legal, valid, binding and enforceable obligations; and

(b) (without limiting the generality of clause 16.3(a) above) each Security Document to which it is a party creates the security interests which that Security Document purports to create and those security interests are valid and effective *provided that,* in respect of the ADGM Share Charge, such security interests shall become fully perfected and enforceable upon satisfaction of the Conditions Subsequent set out in Schedule 2, Part B, paragraph 5.

16.4 Non-conflict with other obligations

(a) The entry into and performance by it of, and the transactions contemplated by, the Finance Documents and the granting of the Transaction Security do not and will not conflict with:

(i) any law or regulation applicable to it;

(ii) the constitutional documents of any Obligor; or

(iii) any agreement or instrument binding upon it or any Obligor or any of its or any Obligor's assets or constitute a default or termination event (however described) under any such agreement or instrument,

(b) There are no most favoured nation provisions binding on any Obligor which would entitle any person to any rights comparable to the rights given to any Finance Party under the Finance Documents.

16.5 Power and authority

(a) It has the power to enter into, perform and deliver, and has taken all necessary action to authorise its entry into, performance and delivery of, the Finance Documents to which it is or will be a party and the transactions contemplated by those Finance Documents.

(b) No limit on its powers will be exceeded as a result of the utilisation, grant of security or giving of guarantees or indemnities contemplated by the Finance Documents to which it is a party.

16.6 Validity and admissibility in evidence

(a) All Authorisations required or desirable:

(i) to enable it lawfully to enter into, exercise its rights and comply with its obligations in the Finance Documents to which it is a party; and

(ii) to make the Finance Documents to which it is a party admissible in evidence in its Relevant Jurisdictions,

have been obtained or effected and are in full force and effect.

(b) All Authorisations necessary for the conduct of the business, trade and ordinary activities of each Obligor have been obtained or effected and are in full force and effect, if failure to obtain or effect those Authorisations has or is reasonably likely to have a Material Adverse Effect.

16.7 Governing law and enforcement

Subject to the Legal Reservations:

(a) the choice of governing law of the Finance Documents will be recognised and enforced in its Relevant Jurisdictions; and

(b) any judgment obtained in relation to a Finance Document in the United Arab Emirates will be recognised and enforced in its Relevant Jurisdictions.

16.8 Insolvency

No:

(a) corporate action, legal proceeding or other procedure or step described in clause 21.7 (*Insolvency proceedings*); or

(b) creditors' process described in clause 21.8 (*Creditors' process*),

has been taken or, to the knowledge of the Company, threatened in relation to a Obligor; and none of the circumstances described in clause 21.6 (*Insolvency*) applies to a Obligor.

16.9 No filing or stamp taxes

Under the laws of its Relevant Jurisdiction it is not necessary that the Finance Documents be filed, recorded or enrolled with any court or other authority in that jurisdiction or that any stamp, registration, notarial or similar Taxes or fees be paid on or in relation to the Finance Documents or the transactions contemplated by the Finance Documents except registration of the Security to be granted by each Obligor in favour of any Security Agent in the security register maintained by the Emirates Integrated Registries Company LLC and the register of charges maintained by the Abu Dhabi Global Market (or any replacement register) and payment of the associated fees, which registrations, filings, taxes and fees (save in respect of the ADGM Share Charge, which will be made and paid in accordance with Schedule 2, Part B, paragraph 5.1) will be made and paid promptly after the date of the relevant Finance Document.

16.10 Deduction of Tax

It is not required to make any deduction for or on account of Tax from any payment it may make under any Finance Document to a Financier.

16.11 No default

(a) No Event of Default and, on the date of this Agreement and each Settlement Date, no Default is continuing or is reasonably likely to result from the making of any Utilisation or the entry into, the performance of, or any transaction contemplated by, any Finance Document.

(b) No other event or circumstance is outstanding which constitutes (or, with the expiry of a grace period, the giving of notice, the making of any determination or any combination of any of the foregoing, would constitute) a default or termination event (however described) under any other agreement or instrument which is binding on it or to which its assets are subject which has or is reasonably likely to have a Material Adverse Effect.

16.12 No misleading information

(a) Any written factual information provided to a Finance Party or its advisers by or on behalf of the Company or any Obligor or their advisers was true and

accurate in all material respects as at the date of the relevant report or document containing the information or (as the case may be) as at the date the information is expressed to be given.

(b) All material information provided to a Finance Party by or on behalf of the Company or any Obligor in connection with the Obligors on or before the date of this Agreement and not superseded before that date is accurate and not misleading in any material respect and all projections provided to any Finance Party on or before the date of this Agreement have been prepared in good faith on the basis of assumptions which were reasonable at the time at which they were prepared and supplied.

(c) All other written information provided by any Obligor (including its advisers) to a Finance Party or the provider of any report or document was true, complete and accurate in all material respects as at the date it was provided and is not misleading in any respect.

16.13 Financial Statements

(a) Its Original Financial Statements were prepared in accordance with the Accounting Principles consistently applied.

(b) Its unaudited Original Financial Statements fairly present its financial condition and its results of operations for the relevant year.

(c) Its audited Original Financial Statements fairly present its financial condition and its results of operations during the relevant financial year.

(d) There has been no material adverse change in its assets, business or financial condition since the date of the Original Financial Statements.

(e) Its most recent financial statements delivered pursuant to clause 18.2 (*Financial statements*):

(i) have been prepared in accordance with the Accounting Principles as applied to the Original Financial Statements; and

(ii) fairly present its consolidated financial condition as at the end of, and its consolidated results of operations for, the period to which they relate.

(f) The budgets and forecasts supplied under this Agreement were arrived at after careful consideration and have been prepared in good faith on the basis of recent historical information and on the basis of assumptions which were reasonable as at the date they were prepared and supplied.

(g) Since the date of the most recent financial statements delivered pursuant to clause 18.2 (*Financial statements*) there has been no material adverse change in its assets, business or financial condition.

16.14 No proceedings

(a) No litigation, arbitration or administrative proceedings or investigations of, or before, any court, arbitral body or agency which in the reasonable opinion of the Investment Agent are likely to be adversely determined and, if adversely determined, are reasonably likely to have a Material Adverse Effect have (to the best of its knowledge and belief (having made due and careful enquiry)) been started or threatened against it.

(b) No judgment or order of a court, arbitral body or agency which is reasonably likely to have a Material Adverse Effect has (to the best of its knowledge and belief (having made due and careful enquiry)) been made against it.

16.15 No breach of laws

(a) It has not breached any law or regulation which breach has or is reasonably likely to have a Material Adverse Effect.

(b) No labour disputes are current or, to the best of its knowledge and belief (having made due and careful enquiry), threatened against any Obligor which have or are reasonably likely to have a Material Adverse Effect.

16.16 Taxation

(a) It is not materially overdue in the filing of any Tax returns and it is not overdue in the payment of any amount in respect of Tax of $50,000 (or its equivalent in any other currency or currencies) or more.

(b) No claims or investigations are being, or are reasonably likely to be, made or conducted against it with respect to Taxes such that a liability of, or claim against, any Obligor of $50,000 (or its equivalent in any other currency or currencies) or more is reasonably likely to arise.

(c) It is resident for Tax purposes only in its Original Jurisdiction.

16.17 Anti-corruption and anti-money laundering laws

(a) Each Obligor and each other Obligor has conducted its businesses in compliance with applicable Anti-Corruption Laws and has instituted and maintains as at the date of this Agreement policies and procedures designed to promote and achieve compliance with such laws.

(b) No Obligor (to the best of its knowledge and belief (having made due and careful enquiry)) any agent, director, employee or officer of any Obligor has made or received, or directed or authorised any other person to make or receive, any offer, payment or promise to pay, of any money, gift or other thing of value, directly or indirectly, to or for the use of benefit of any person, where this violates or would violate, or creates or would create liability for it or any other person under any Anti-Corruption Laws.

(c) No Obligor nor to the best of its knowledge and belief (having made due and careful enquiry) any agent, director, employee or officer of an Obligor is being

investigated by any agency, or party too any proceedings, in each case in relation to any Anti-Corruption Laws.

(d) Its operations (and the operations of each other Obligor) are and have been conducted at all times in compliance with the applicable financial record keeping and reporting requirements and all money laundering statutes of the relevant jurisdictions in which it conducts business, the rules and regulations thereunder and any related or similar rules, regulations or guidelines, issued, administered or enforced by any applicable governmental agency (collectively, "**AML Laws**") and no action, suit or proceeding by or before any court or governmental agency, authority or body or any arbitrator involving it with respect to AML Laws is pending and, to the best of its knowledge and belief (having made due and careful enquiry), no such actions, suits or proceedings are threatened in writing or contemplated.

16.18 Sanctions

(a) No Obligor nor (to the best of its knowledge and belief (having made due and careful enquiry)) any director, officer, employee, agent or representative of any Obligor:

(i) is, or is owned or controlled by a Restricted Party;

(ii) is in breach of Sanctions; or

(iii) has received notice or is aware of any claim, action, suit, proceeding, notice or investigation against it with respect to Sanctions by a Sanctions Authority.

(b) It has not knowingly engaged in any dealings or transactions with any person, or in any country or territory, that at the time of the dealing or transaction is or was the subject of Sanctions.

16.19 Security and Financial Indebtedness

(a) No Security or Quasi-Security exists over all or any of the present or future assets of any Obligor other than as permitted by this Agreement.

(b) No Obligor has any Financial Indebtedness outstanding other than as permitted by this Agreement.

16.20 Ranking

The Transaction Security has or will have the ranking in priority which it is expressed to have in the Security Documents and it is not subject to any prior ranking or *pari passu* ranking Security.

16.21 Good title to assets

It has a good, valid and marketable title to, or valid leases or licences of, and all appropriate Authorisations to use, the assets necessary to carry on its business as presently conducted.

16.22 Legal and beneficial ownership

It is the sole legal and beneficial owner of the respective assets over which it purports to grant Security.

16.23 Shares

(a) The shares of any Obligor which are subject to the Transaction Security are fully paid and not subject to any option to purchase or similar rights. The constitutional documents of companies whose shares are subject to the Transaction Security do not and could not restrict or inhibit any transfer of those shares on creation or enforcement of the Transaction Security.

(b) Except as provided in the Promise to Sell there are no agreements in force which provide for the issue or allotment of, or grant any person the right to call for the issue or allotment of, any share or loan capital of any Obligor (including any option or right of pre-emption or conversion).

16.24 Intellectual Property

It:

(a) is the sole legal and beneficial owner of or has licensed to it on normal commercial terms all the Intellectual Property which is material in the context of its business and which is required by it in order to carry on its business as it is being conducted and as contemplated in the Original Financial Statements;

(b) does not, in carrying on its businesses, infringe any Intellectual Property of any third party in any respect; and

(c) has taken all formal or procedural actions (including payment of fees) required to maintain any material Intellectual Property owned by it.

16.25 Group Structure Chart

The Group Structure Chart set out in Schedule 7 delivered to the Investment Agent pursuant to Schedule 2 (*Conditions precedent*) is true, complete and accurate in all material respects and shows the following information before and after the date of this Agreement:

(a) each Obligor, including current name and company registration number, its Original Jurisdiction, a list of shareholders and indicating whether a company is not a company with limited liability; and

(b) all minority interests in any Obligor and any person in which any Obligor holds shares in its issued share capital or equivalent ownership interest of such person.

16.26 Accounting Reference Date

The Accounting Reference Date of each Obligor is 31 December.

16.27 No adverse consequences

(a) It is not necessary under the laws of its Relevant Jurisdictions:

(i) in order to enable any Finance Party to enforce its rights under any Finance Document; or

(ii) by reason of the execution of any Finance Document or the performance by it of its obligations under any Finance Document,

that any Finance Party should be licensed, qualified or otherwise entitled to carry on business in any of its Relevant Jurisdictions.

(b) No Finance Party is or will be deemed to be resident, domiciled or carrying on business in its Relevant Jurisdictions by reason only of the execution, performance and/or enforcement of any Finance Document.

16.28 Pari passu ranking

Each Obligor's payment obligations under the Finance Documents rank at least *pari passu* with the claims of all its other unsecured and unsubordinated creditors, except for obligations mandatorily preferred by law applying to companies generally.

16.29 Shari'ah compliance

It has entered into this Agreement and the Finance Documents to which it is a party after having reviewed the Finance Documents for the purposes of compliance with Shari'ah principles and with, to the extent it has considered this necessary, independent advice from advisors specialising in matters of Shari'ah. It has sought its own independent advice with respect to the Shari'ah compliance of the Finance Documents to which it is a party, or has elected not to do so. It has not relied on any representation by any Finance Party as to the Shari'ah compliance of the transactions contemplated by this Agreement or any other Finance Document and (by signing this Agreement) confirms that it has independently made its own respective assessment that such transactions are Shari'ah compliant. It confirms that it has no objection, nor will it raise any objections, as to matters of Shari'ah compliance in respect of or otherwise in relation to any of the provisions of the Finance Documents.

16.30 No Illicit Origin

(a) No funds invested in the share capital of any Obligor or any other Obligor are of Illicit Origin and no funds to be used by any Obligor or any other Obligor to carry out its business are of Illicit Origin.

(b) No payments made by any Obligor in respect of the Finance Documents have been funded out of funds from an Illicit Origin, and none of the sources of funds to be used by any Obligor in connection with payments under or in connection with any Finance Document are from an Illicit Origin.

16.31 Private and commercial acts

The execution by each Obligor of each Finance Document to which it is a party constitutes, and the exercise by it of its rights and performance of its obligations under each such Finance Document will constitute, private and commercial acts performed for private and commercial purposes.

16.32 No immunity

In any proceedings taken in its Original Jurisdiction in relation to any of the Finance Documents to which any Obligor is a party, such Obligor will not be entitled to claim for itself or any of its assets immunity from suit, execution, attachment or other legal process.

16.33 FATCA

No Obligor is a FATCA FFI or a US Tax Obligor.

16.34 Borrowing Base Report and Borrowing Base Certificate

(a) All factual information included in each Borrowing Base Report and each Borrowing Base Certificate delivered pursuant to clause 21 (*Borrowing Base*) is accurate and complete in all material respects and nothing has occurred and no Borrower is aware of any omissions which would make any information untrue or misleading in any material respect.

(b) Each Borrowing Base Report and each Borrowing Base Certificate delivered pursuant to clause 21 (*Borrowing Base*) has been provided following careful consideration and has been prepared in good faith and with due care on the basis of most recent information and on the basis of assumptions which were reasonable as at the date they were prepared and supplied.

16.35 Holding and Dormant Companies

Except as may arise under the Finance Documents, before the Closing Date neither the Parent nor the Company has traded or incurred any liabilities or commitments (actual or contingent, present or future) other than in the case of the Parent acting as a Holding Company of the Company.

16.36 Times when representations made

(a) All the representations and warranties in this clause 16 are made by each Obligor on the date of this Agreement and the Settlement Date.

(b) Subject to clause 16.36(c) below, the Repeating Representations are deemed to be made by each Obligor:

(i) on the date of each Purchase Order with Promise to Purchase;

(ii) the date of delivery of any Borrowing Base Certificate;

(iii) on the date of each Murabaha Contract; and

(iv) on each Deferred Payment Date.

(c) The Repeating Representations contained in clauses 16.13(a) to 16.13(e) (*Financial Statements*) will cease to be deemed to be made by each Obligor once subsequent financial statements have been delivered under this Agreement.

(d) Each representation or warranty deemed to be made after the date of this Agreement shall be deemed to be made by reference to the facts and circumstances existing at the date the representation or warranty is deemed to be made.

17. INFORMATION UNDERTAKINGS

17.1 The undertakings in this clause 17 remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents or any Commitment is in force.

In this clause 17:

"**Annual Financial Statements**" means the financial statements for a Financial Year delivered pursuant to clause 17.2 (*Financial statements*).

"**Monthly Financial Statements**" means the financial statements delivered pursuant to clause 17.2(c) (*Financial statements*).

"**Quarterly Financial Statements**" means the financial statements delivered pursuant to clause 17.2 (*Financial statements*).

17.2 Financial statements

The Parent shall supply to the Investment Agent in sufficient copies for all the Financiers:

(a) as soon as they are available, but in any event within one-hundred and twenty (120) days after the end of each of its Financial Years its audited consolidated financial statements of the Parent for that Financial Year and the stand alone audited financial statements of each Obligor for that Financial Year;

(b) as soon as they are available, but in any event within forty-five (45) days after the end of each of its Financial Years its unaudited consolidated financial statements of the Parent for that Financial Year and the stand alone audited financial statements of each Obligor for that Financial Year;

(c) as soon as they are available, but in any event within forty-five (45) days after the end of each Financial Quarter, the unaudited consolidated financial statements of the Company and the unaudited financial statements of each Obligor for that Financial Quarter and such financial statements shall include information covering any period prior to the date of this Agreement to the extent necessary to calculate the financial covenants for the first Relevant Periods after the date of this Agreement; and

(d) as soon as they are available, but in any event within twenty (20) days after the end of each month, the management accounts of the Company on a consolidated basis for that month and the management accounts of each Obligor for that month (to include cumulative management accounts for the Financial Year to date).

17.3 Provision and contents of Compliance Certificate

(a) The Company shall supply a Compliance Certificate to the Investment Agent with each set of its Annual Financial Statements and each set of its Quarterly Financial Statements.

(b) The Compliance Certificate shall, amongst other things, set out (in reasonable detail) computations as to compliance with clause 18 (*Financial Covenants*) in the form of the excel workbook delivered to the Company by the Investment Agent on or before the date of this Agreement.

(c) Each Compliance Certificate shall be signed by two directors of the Company and, if required to be delivered with the Annual Financial Statements of the Company and so requested by the Investment Agent, shall be reported on by the Auditors in the form agreed by the Company and the Majority Financiers.

(d) In respect of any Compliance Certificate delivered with the unaudited financial statements, the Investment Agent may request (no more than once per calendar year), and, if so requested, the Company shall procure (with costs equally divided between the Company and the Financiers), that the computations set out in such Compliance Certificate as to compliance with clause 18 (*Financial covenants*) are reported on by the Auditors.

17.4 Requirements as to financial statements

(a) The Company shall procure that each set of Annual Financial Statements, Quarterly Financial Statements and Monthly Financial Statements includes a balance sheet, profit and loss account, cashflow statement and key operating and financial key performance indicators. In addition, the Company shall procure that:

(i) each set of its Annual Financial Statements shall be audited by the Auditors;

(ii) each set of Monthly Financial Statements is in substantially the form set out in Schedule 5 (*Form of Management Accounts*),

(b) Each set of financial statements delivered pursuant to clause 18.2 (*Financial statements*):

(i) shall be certified by a director of the relevant company as fairly presenting its financial condition and operations as at the date as at which those financial statements were drawn up and, in the case of the Annual Financial Statements, shall be accompanied by any letter addressed to the management of the relevant company by the auditors of those Annual

Financial Statements and accompanying those Annual Financial Statements;

(ii) in the case of Quarterly Financial Statements and Annual Financial Statements, shall be accompanied by a statement by the directors of the Company comparing actual performance for the period to which the financial statements relate to:

(A) the projected performance for that period set out in the Budget; and

(B) the actual performance for the corresponding period in the preceding Financial Year.

(iii) shall be prepared using the Accounting Principles, accounting practices and financial reference periods consistent with those applied in the preparation of the Original Financial Statements unless, in relation to any set of financial statements, the Company notifies the Investment Agent that there has been a change in the Accounting Principles or the accounting practices and the Auditors (or, if appropriate, the auditors of the Obligor) deliver to the Investment Agent:

(A) a description of any change necessary for those financial statements to reflect the Accounting Principles or accounting practices upon which that Obligor's Original Financial Statements were prepared; and

(B) sufficient information, in form and substance as may be reasonably required by the Investment Agent, to enable the Financiers to determine whether clause 18 (*Financial Covenants*) has been complied with and to make an accurate comparison between the financial position indicated in those financial statements or that Obligor's Original Financial Statements.

Any reference in this Agreement to any financial statements shall be construed as a reference to those financial statements as adjusted to reflect the basis upon which the Original Financial Statements were prepared.

(c) If the Investment Agent wishes to discuss the financial position of any Obligor with the auditors of that Obligor, the Investment Agent may notify the Company, stating the questions or issues which the Investment Agent wishes to discuss with those auditors. In this event, the Company must ensure that those auditors are authorised (at the expense of the Company):

(i) to discuss the financial position of the relevant Obligor with the Investment Agent on request from the Investment Agent; and

(ii) to disclose to the Investment Agent for the Finance Parties any information which the Investment Agent may reasonably request.

17.5 Monthly bank statements

Promptly, and in any event within five (5) Business Days, upon request by the Investment Agent, the Company shall supply to the Investment Agent and the Borrowing Base Agent in sufficient copies for all the Financiers, the monthly bank account statements pertaining to each Collection Account and Disbursement Account (USD).

17.6 Access

The Company shall procure that the Investment Agent, the Borrowing Base Agent and the Borrowing Base Inspector have, at all times, access to an application programming interface to the cloud accounting system, inventory system, and bank accounts of each Obligor.

17.7 Information: miscellaneous

The Company shall supply to the Investment Agent (in sufficient copies for all the Financiers, if the Investment Agent so requests):

(a) at the same time as they are circulated to the board of directors of any Obligor or any committee thereof, copies of all notices, resolutions and board packs (and in any case no less frequent than monthly);

(b) as soon as they are available, but no later than 10 days from them being passed, in respect of each Obligor minutes of board meetings, resolutions of the board and any committee thereof, including but not limited to board approved budgets and forecasts;

(c) as soon as they are available, in respect of each Obligor, minutes of shareholder meetings and resolutions of shareholders;

(d) at the same time as they are dispatched, copies of all documents (including budgets and board reports) dispatched by any Obligor to its shareholders generally (or any class of them) or dispatched by the Company or any Obligor to its creditors generally (or any class of them);

(e) at the same time as they are dispatched, copies of all material filings of any Obligor;

(f) at the same time as they are dispatched, copies of material communication submitted to the Company by the Auditors or any government agency;

(g) immediately upon becoming aware of it, full particulars of any default or acceleration of any loans or amounts owed to creditors;

(h) promptly such invoices and any other document or evidence in relation to the Borrowing Base as any Finance Party (through the Investment Agent) may reasonably request;

(i) promptly upon becoming aware of them, the details of any litigation, arbitration or administrative proceedings which are current, threatened or pending against

any Obligor, and which, if adversely determined, are reasonably likely to have a Material Adverse Effect;

(j) promptly upon becoming aware of them, the details of any judgment or order of a court, arbitral body or agency which is made against any Obligor and which is reasonably likely to have a Material Adverse Effect or which would involve a liability, or a potential or alleged liability, exceeding $250,000 (or its equivalent in other currencies);

(k) as soon as they are available, copies of any notice of default (howsoever described), termination, dispute or claim exceeding $250,000 (or its equivalent in any other currency or currencies) which is made against any Obligor or any other Obligor, together with details of any action it proposes to take in relation to the same;

(l) promptly, such information as any Security Agent may reasonably require about the Charged Property and compliance of the Obligors with the terms of any Security Documents;

(m) all documents and other information relating to any arrangements entered into between any Obligor and any Affiliate which are not entered into on arm's length terms and in the ordinary course of trade;

(n) promptly, any material amendments to or material restatements of the constitutional documents of an Obligor;

(o) immediately upon becoming aware of it, full particulars of any default or breach of material contract (including but not limited to leases and financing agreements);

(p) promptly upon becoming aware of it, full particulars of any event or circumstances leading to a mandatory prepayment under clause 8 (*Mandatory Early Payment and Cancellation*);

(q) promptly upon request, a certificate setting out the details of all ultimate beneficial owners of the Company, including details of any intermediate holding vehicles;

(r) within five (5) Business Days of the end of each Financial Quarter, certified copies of the bank statements of each account held by each Obligor, for that Financial Quarter;

(s) promptly, and in any event within two (2) Business Days, upon request by the Investment Agent, certified copies of the bank statements of each account held by each of Obligor, showing all transactions of the last 30 days up to the date of request;

(t) promptly upon request, a copy of any material agreements entered into by an Obligor or any other Obligor with a third party relating to any new equity investments and, if requested by the Investment Agent, a summary of any such material agreement;

(u) promptly on request, such further information regarding the financial condition, assets and operations of any Obligor (including any requested amplification or explanation of any item in the financial statements, budgets or other material provided by any Obligor under this Agreement, any changes to Senior Management and an up to date copy of its shareholders' register (or equivalent in its Original Jurisdiction)) as any Finance Party through the Investment Agent may reasonably request;

(v) on the final Business Day of each calendar week, a summary in writing which details all (if any) currency conversions effected as a result of transfers from the Collection Account to the Disbursement Account (USD) including the amounts converted, the exchange rates applied, and the date(s) on which such conversion was effected;

(w) on the final Business Day of each calendar week, a summary in writing which includes the number of insurance claims rejected by a Debtor in respect of an Eligible Receivable (including such amount expressed as a percentage of the Outstanding Principal Balance of Eligible Receivables) and the reason therefor (if known), a confirmation as to whether the Monthly Denial Rate has been complied with, the identity of the relevant Debtor(s) and the steps being taken by the Company to recover amounts due under such Eligible Receivable (including, without limitation, the exercise of any put-options under the Customer MRPA); and

(x) on the final Business Day of each calendar week, a confirmation in writing (with supporting calculations) which details compliance or non-compliance with the Weighted Average Life Test, together with a summary detailing each Extended Age Receivbable (if any) and any action being taken with respect thereto (including, without limitation, the exercise of any option under the Klaim MRPA).

17.8 Notification of default

(a) Each Obligor shall notify the Investment Agent of any Default or Drawstop Event (and the steps, if any, being taken to remedy it) promptly upon becoming aware of its occurrence (unless that Obligor is aware that a notification has already been provided by another Obligor).

(b) Promptly upon a request by the Investment Agent, the Parent shall supply to the Investment Agent a certificate signed by two of its directors or senior officers on its behalf certifying that no Default or Drawstop Event is continuing (or if a Default or Drawstop Event is continuing, specifying the Default and/or the Drawstop Event and the steps, if any, being taken to remedy it).

17.9 "Know your customer" checks

(a) If:

(i) the introduction of or any change in (or in the interpretation, administration or application of) any law or regulation made after the date of this Agreement;

(ii) any change in the status of an Obligor (or of a Holding Company of an Obligor) or the composition of the shareholders of an Obligor (or of a Holding Company of an Obligor) after the date of this Agreement; or

(iii) a proposed assignment or transfer by a Financier of any of its rights and/or obligations under this Agreement to a party that is not a Financier prior to such assignment or transfer,

obliges the Investment Agent or any Financier (or, in the case of clause 18.10(a)(iii) above, any prospective new Financier) to comply with "know your customer" or similar identification procedures in circumstances where the necessary information is not already available to it, each Obligor shall promptly upon the request of the Investment Agent or any Financier supply, or procure the supply of, such documentation and other evidence as is reasonably requested by the Investment Agent (for itself or on behalf of any Financier) or any Financier (for itself or, in the case of the event described in clause 18.10(a)(iii) above, on behalf of any prospective new Financier) in order for the Investment Agent, such Financier or, in the case of the event described in clause 18.10(a)(iii) above, any prospective new Financier to carry out and be satisfied it has complied with all necessary "know your customer" or other similar checks under all applicable laws and regulations pursuant to the transactions contemplated in the Finance Documents.

(b) Each Financier shall promptly upon the request of the Investment Agent supply, or procure the supply of, such documentation and other evidence as is reasonably requested by the Investment Agent (for itself) in order for the Investment Agent to carry out and be satisfied it has complied with all necessary "know your customer" or other similar checks under all applicable laws and regulations pursuant to the transactions contemplated in the Finance Documents.

18. FINANCIAL COVENANTS

18.1 Financial definitions

In this Agreement:

"**Borrowings**" means, at any time, the aggregate outstanding principal, capital or nominal amount (and any fixed or minimum premium or profit margin payable on prepayment or redemption) of any indebtedness of any Obligor for or in respect of:

(a) moneys borrowed and debit balances at banks or other financial institutions;

(b) any acceptance under any acceptance credit or bill discounting facility (or dematerialised equivalent);

(c) any note purchase facility or the issue of bonds, notes, debentures, loan stock or any similar instrument;

(d) the amount of any liability in respect of Finance Leases;

(e) receivables sold or discounted (other than any receivables to the extent they are sold on a non-recourse basis and meet any requirement for de-recognition under the Accounting Principles);

(f) any Treasury Transaction (and, when calculating the value of that Treasury Transaction, only the marked to market value (or, if any actual amount is due as a result of the termination or close-out of that Treasury Transaction, that amount) shall be taken into account);

(g) any counter-indemnity obligation in respect of a guarantee, bond, standby or documentary letter of credit or any other instrument issued by a bank or financial institution in respect of (i) an underlying liability of an entity which is not a Obligor which liability would fall within one of the other paragraphs of this definition or (ii) any liabilities of any Obligor relating to any post-retirement benefit scheme;

(h) any amount raised by the issue of shares which are redeemable (other than at the option of the issuer) before the Maturity Date or are otherwise classified as borrowings under the Accounting Principles;

(i) any amount of any liability under an advance or deferred purchase agreement if (i) one of the primary reasons behind entering into the agreement is to raise finance or to finance the acquisition or construction of the asset or service in question or (ii) the agreement is in respect of the supply of assets or services and payment is due more than ninety (90) days after the date of supply;

(j) any amount raised under any other transaction (including any forward sale or purchase, sale and sale back or sale and leaseback agreement) having the commercial effect of a borrowing or otherwise classified as borrowings under the Accounting Principles;

(k) any financing transaction or other agreement entered into which is expressed to be made in accordance with the principles and rules of Shari'ah (but for the avoidance of doubt, may be governed by another system of law) and which has the economic effect of a borrowing; and

(l) the amount of any liability in respect of any guarantee for any of the items referred to in paragraphs (a) to (k) (inclusive) above.

"**Cash**" means, at any time, in respect f an Obligor, cash denominated in AED or US$ in hand or at bank and (in the latter case) credited to an account in the name of that Obligor with an Acceptable Bank and to which that Obligor is alone beneficially entitled and for so long as:

(a) that cash is repayable on demand;

(b) repayment of that cash is not contingent on the prior discharge of any other indebtedness of any Obligor or of any other person whatsoever or on the satisfaction of any other condition;

(c) there is no Security over that cash except for Transaction Security; and

(d) the cash is freely and (except as mentioned in paragraph (a) above) immediately available to be applied in repayment or prepayment of the Facility.

"**Cash Equivalent Investments**" means at any time, in respect of an Obligor:

(a) certificates of deposit maturing within one year after the relevant date of calculation and issued by an Acceptable Bank;

(b) any investment in marketable debt obligations issued or guaranteed by the government of the United States of America or the United Arab Emirates or by an instrumentality or agency of any of them having an equivalent credit rating, maturing within one year after the relevant date of calculation and not convertible or exchangeable to any other security;

(c) commercial paper not convertible or exchangeable to any other security:

(i) for which a recognised trading market exists;

(ii) issued by an issuer incorporated in the United States of America or the United Arab Emirates;

(iii) which matures within one year after the relevant date of calculation; and

(iv) which has a credit rating of either AA- or higher by Standard & Poor's Rating Services or AA- or higher by Fitch Ratings Ltd or Aa3 or higher by Moody's Investors Service Limited, or, if no rating is available in respect of the commercial paper, the issuer of which has, in respect of its long-term unsecured and non-credit enhanced debt obligations, an equivalent rating;

(d) any investment in money market funds which:

(i) have a credit rating of either A-1 or higher by Standard & Poor's Rating Services or F1 or higher by Fitch Ratings Ltd or P-1 or higher by Moody's Investors Service Limited; and

(ii) invest substantially all their assets in securities of the types described in paragraphs (a) to (c) above,

to the extent that investment can be turned into cash on not more than 30 days' notice; or

(e) any other debt security approved by the Majority Financiers,

in each case, denominated in US$ or AED and to which that Obligor is alone beneficially entitled at that time and which is not issued or guaranteed by any Obligor or subject to any Security (other than Security arising under the Transaction Security Documents).

"**Cashflow**" means, in respect of any Relevant Period, EBITDA for that Relevant Period after:

(a) adding the amount of any decrease (and deducting the amount of any increase) in Working Capital for that Relevant Period;

(b) adding the amount of any cash receipts (and deducting the amount of any cash payments) during that Relevant Period in respect of any Exceptional Items not already taken account of in calculating EBITDA for any Relevant Period;

(c) adding the amount of any cash receipts during that Relevant Period in respect of any Tax rebates or credits and deducting the amount actually paid or due and payable in respect of Taxes during that Relevant Period by any Obligor;

(d) adding the amount of any increase in provisions, other non-cash debits and other non-cash charges (which are not Current Assets or Current Liabilities) and deducting the amount of any non-cash credits (which are not Current Assets or Current Liabilities) in each case to the extent taken into account in establishing EBITDA;

and so that no amount shall be added (or deducted) more than once.

"**Collection Period**" means each calendar month.

"**Collection Ratio**" means, for each Collection Period, the ratio (expressed as a percentage) of (i) the aggregate amount of Collections actually received during that Collection Period in respect of the Eligible Receivables, to (ii) the aggregate Outstanding Principal Balance of all Eligible Receivables measured at the start of such Collection Period.

"**Collections**" means, with respect to any Receivable, all funds that are received into the Collection Account (which for the avoidance of doubt, may be transferred to the Disbursement Account (USD) for the sole purpose of converting amounts denominated in AED into USD as contemplated herein) in payment of any amounts owed in respect of such Receivable (including, without limitation, purchase price, finance charges, interest and all other charges).

"**Current Assets**" means the aggregate (on a consolidated basis) of all inventory, work in progress, trade and other receivables of each Obligor including prepayments in relation to operating items and sundry debtors expected to be realised within twelve months from the date of computation but **excluding** amounts in respect of:

(a) Cash and Cash Equivalent Investments

(b) receivables in relation to Tax;

(c) Exceptional Items and other non-operating items;

(d) insurance claims; and

(e) any interest or profit owing to any Obligor.

"**Current Liabilities**" means the aggregate (on a consolidated basis) of all liabilities (including trade creditors, accruals and provisions) of each Obligor expected to be

settled within twelve months from the date of computation but **excluding** amounts in respect of:

(a) liabilities for Borrowings and Finance Charges;

(b) liabilities for Tax;

(c) Exceptional Items and other non-operating items;

(d) insurance claims; and

(e) liabilities in relation to dividends declared but not paid by the Company or by a Obligor in favour of a person which is not a Obligor.

(f) deferred revenue (including customer advances), if and to the extent related to services not yet rendered.

"**Dilution**" means, with respect to any Eligible Receivable, the aggregate amount of any reductions or adjustments in the Outstanding Principal Balance of such Eligible Receivable as a result of (i) any defective, rejected or returned merchandise or services, any cash discount, or any failure by any Customer to deliver any merchandise or services or otherwise perform its obligations under a Receivables Claim Form, (ii) any change in or cancellation of any of the terms of a Receivables Claim Form or any other adjustment by any Customer which reduces the amount payable by the Debtor on the related Receivable, or (iii) any setoff in respect of any claim by the Debtor thereof (whether such claim arises out of the same or a related transaction or an unrelated transaction) or (b) subject to any specific dispute, offset, counterclaim or defense whatsoever (except the discharge in bankruptcy or insolvency of the Debtor thereof) in each case, other than due to the Debtor's inability to pay (other than the payment in cash by the relevant Debtor).

"**EBITDA**" means, in respect of any Relevant Period, the consolidated operating profit of an Obligor before taxation:

(a) before deducting any interest, profit, commission, fees, discounts, prepayment fees, premiums or charges and other finance payments whether paid, payable or capitalised by any Obligor (calculated on a consolidated basis) in respect of that Relevant Period;

(b) before deducting any finance charges (including interest, profit, commission, fees, discounts, prepayment fees, premiums or charges and other finance payments in respect of Financial Indebtedness);

(c) after adding back any amount attributable to the amortisation, depreciation or impairment of assets (including capitalised development and technology costs);

(d) before taking into account any Exceptional Items;

(e) before deducting any amount in respect of the provision of staff incentive or share-based compensation (whether in cash or non-cash); and

(f) excluding any unrealised foreign exchange or mark-to-market gains or losses;

in each case to the extent already deducted in the calculation of operating profit.in each case, to the extent added, deducted or taken into account, as the case may be, for the purposes of determining operating profits of the Obligor before taxation.

"**Exceptional Items**" means any exceptional, one off, non-recurring or extraordinary items / any material items of an unusual or non-recurring nature which represent gains or losses including those arising on:

(a) the restructuring of the activities of an entity and reversals of any provisions for the cost of restructuring;

(b) disposals, revaluations, write downs or impairment of non-current assets or any reversal of any write down or impairment; and

(c) disposals of assets associated with discontinued operations.

"**Finance Lease**" means any lease or hire purchase contract, a liability under which would, in accordance with the Accounting Principles, be treated as a balance sheet liability.

"**Financial Quarter**" means the period commencing on the day after one Quarter Date and ending on the next Quarter Date.

"**Financial Year**" means the annual accounting period of each Obligor ending on or about 31 December in each year.

"**Net Cash Burn**" means, in respect of any Obligor, the net cash generated from operating activities of that Obligor, excluding cash flows attributable to any net change in working capital (including, without limitation, cash flows arising from disbursements and/or repayments under the loan or factoring portfolio), and after deduction of capital expenditure and capitalised expenses (if any), determined on a consolidated basis, for the trailing ninety (90)-day period, and without duplication.

"**Outstanding Principal Balance**" means, in respect of any Receivable and as of any date, the unpaid invoice amount owing by the relevant Debtor under the related Receivables Claim Form for goods or services already delivered, net of any Collections previously received and applied to principal, but excluding any interest, fees, penalties, or other ancillary amounts.

"**Paid vs Due Ratio**" means, in respect of any Collection Period, the ratio (expressed as a percentage) of: (a) all Collections received during that Collection Period on Eligible Receivables that were contractually due during the same Collection Period, to (b) the aggregate amount of Eligible Receivables that became contractually due during that Collection Period.

"**PAR30**" means the ratio (expressed as a percentage) of: (a) the aggregate Outstanding Principal Balance of all Eligible Receivables with any instalment more than 30 days past due, to (b) the aggregate Outstanding Principal Balance of all Eligible Receivables (excluding written-off receivables).

"**PAR60**" means the ratio (expressed as a percentage) of: (a) the aggregate Outstanding Principal Balance of all Eligible Receivables with any instalment more than 60 days

past due, to (b) the aggregate Outstanding Principal Balance of all Eligible Receivables (excluding written-off receivables).

"**Quarter Date**" means each of 31 March, 30 June, 30 September and 31 December.

"**Relevant Period**" means each period of three (3) months (or such shorter period commencing on the date of this Agreement) ending on or about each Quarter Date.

"**Working Capital**" means, on any date, Current Assets *less* Current Liabilities.

18.2 Financial condition

The Company (and in respect of paragraph (g) below, the Parent) shall ensure that, at all times:

(a) *Minimum Consolidated Cash Balance*: The Company shall ensure that, at all times, the ratio of its consolidated Cash and Cash Equivalents divided by the higher of: (i) the absolute value of its consolidated Net Cash Burn in the immediately preceding calendar month; and (ii) the absolute value of its monthly average consolidated Net Cash Burn in respect of the immediately preceding three calendar months, is not less than 3.0:1.0.

(b) *PAR Ratio*: On the last day of each calendar month:

(i) PAR30 shall not exceed 7%

(ii) PAR60 shall not exceed 5%

(c) *Collection Ratio*: the Collection Ratio for each Collection Period shall be not less than 25%.

(d) *Paid vs Due Ratio*: the Paid vs Due Ratio for each Collection Period shall not be less than 95%.

(e) *Parent Minimum Consolidated Cash Balance*: The Parent shall ensure that, at all times, the ratio of its consolidated unrestricted Cash and Cash Equivalents divided by the higher of: (i) the absolute value of its consolidated Net Cash Burn in the immediately preceding calendar month; and (ii) the absolute value of its monthly average consolidated Net Cash Burn in respect of the immediately preceding three calendar months, is not less than 3.0:1.0.

(f) *Financial Indebtedness – Parent*: The Parent shall not create, incur or assume any Financial Indebtedness (other than Permitted Indebtedness) that gives rise to contractual payment obligations, including principal or interest repayments with specified maturity or payment dates, without the prior written consent of the Investment Agent (such consent not to be unreasonably withheld or delayed). The Parent shall promptly notify the Investment Agent upon entering into discussions internally or with third parties regarding any such proposed Financial Indebtedness. For the avoidance of doubt, Financial Indebtedness that does not have a formal maturity or defined repayment schedule shall not be subject to the consent requirement set forth herein.

18.3 Financial testing

(a) The financial covenants set out in clause 18.2 (*Financial condition*) shall be calculated in accordance with the Accounting Principles and tested quarterly and on each Utilisation Date by reference to each of the consolidated financial statements delivered pursuant to clauses 18.2(a) to 18.2(c) (*Financial statements*) and/or each Compliance Certificate delivered pursuant to clause 18.3 (*Provision and contents of Compliance Certificate*) and/or each Borrowing Base Certificate and/or Borrowing Base Report delivered pursuant to clause 21.3 (*Borrowing Base Certificate and Borrowing Base Report*).

(b) No Event of Default shall occur:

(i) in respect of breach of PAR30 under clause 18.2(b)(i);

(ii) in respect of the Collection Ratio set out in clause 18.2(c) unless the Collection Ratio is breached on two or more consecutive Collection Periods; or

(iii) in respect of the Paid vs. Due Ratio set out in clause 18.2(d) unless the Paid vs. Due Ratio is breached on two or more consecutive Collection Periods.

19. GENERAL UNDERTAKINGS

The undertakings in this clause 19 remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents or any Commitment is in force.

Authorisations and compliance with laws

19.1 Authorisations

(a) Each Obligor shall promptly:

(i) obtain, comply with and do all that is necessary to maintain in full force and effect; and

(ii) supply certified copies to the Investment Agent of:

any Authorisation required under any law or regulation of a Relevant Jurisdiction to:

(A) enable it to maintain its existence as a legal person;

(B) enable it to perform its obligations under the Finance Documents;

(C) ensure the legality, validity, enforceability or admissibility in evidence of any Transaction Document; and

(D) carry on its business where failure to do so has or is reasonably likely to have a Material Adverse Effect.

(b) Each Obligor shall, promptly upon becoming aware of them, notify the Investment Agent of any circumstances which may reasonably be expected to lead to:

(i) any material Authorisation obtained or effected not remaining in full force and effect; or

(ii) any material Authorisation not being obtained or effected when requested.

19.2 Compliance with laws

Each Obligor shall comply in all material respects with all laws to which it may be subject.

19.3 Anti-corruption law

(a) No Obligor shall directly or indirectly use the proceeds of the Facilities for any purpose which would breach the Bribery Act 2010 (United Kingdom), the United States Foreign Corrupt Practices Act of 1977 or other similar legislation in other jurisdictions.

(b) Each Obligor shall:

(i) conduct its businesses in compliance with applicable anti-corruption laws;

(ii) maintain policies and procedures designed to promote and achieve compliance with such laws; and

(iii) take all reasonable and prudent steps to ensure that each of its agents, directors, employees and officers comply with such laws.

19.4 Transactions with Restricted Parties

(a) No Obligor shall:

(i) permit or authorise any other person to, directly or indirectly, use, lend, make payments of, contribute or otherwise make available, all or any part of the proceeds of the Facility or other transactions contemplated by the Finance Documents to fund any trade, business or other activities:

(A) involving, or for the benefit of, any Restricted Party; or

(B) in any other manner that would result in an Obligor or any Finance Party being in breach of any Sanctions (if and to the extent applicable to either of them) or that could reasonably be expected to result in an Obligor or any Finance Party becoming a Restricted Party; or

(ii) directly or indirectly fund all or any part of any payment or prepayment of any Facility out of proceeds derived from any transaction with or action involving a Restricted Party.

(b) Each Obligor will ensure that appropriate controls and safeguards are in place designed to prevent any action being taken that would be contrary to clause 20.4(a) above.

(c) Each Obligor will inform the Investment Agent in writing as soon as possible if any Obligor or any of their respective directors, officers or employees becomes a Restricted Party.

19.5 Illicit Origin

(a) Each Obligor undertakes that none of the sources of funds to be used by it in connection with payments under or in connection with any Finance Document will be from an Illicit Origin.

(b) Each Obligor shall ensure that the proceeds of any Facility shall not be used to finance equipment or sectors under embargo decisions of the United Nations, the World Bank or the European Union.

19.6 Taxation

(a) Each Obligor shall ensure that:

(i) all Tax returns required to be filed by it or on its behalf under any applicable law are filed when due and contain the information required by applicable law to be contained in them pay;

(ii) it discharges all Taxes imposed upon it or its assets within the time period allowed without incurring penalties unless and only to the extent that:

(A) such payment is being contested in good faith;

(B) adequate reserves are being maintained for those Taxes and the costs required to contest them which have been disclosed in its latest financial statements delivered to the Investment Agent under clause 18.2 (*Financial statements*); and

(C) such payment can be lawfully withheld and failure to pay those Taxes does not have or is not reasonably likely to have a Material Adverse Effect.

(b) No Obligor may change its residence for Tax purposes.

Restrictions on business focus

19.7 Merger

No Obligor shall enter into any amalgamation, demerger, merger, consolidation or corporate reconstruction.

19.8 Acquisitions

The Company shall not:

(a) acquire a company or any shares or securities or a business or undertaking (or, in each case, any interest in any of them); or

(b) incorporate a company.

19.9 Joint ventures

No Obligor shall:

(a) enter into, invest in or acquire (or agree to acquire) any shares, stocks, securities or other interest in any Joint Venture; or

(b) transfer any assets or lend to or guarantee or give an indemnity for or give Security for the obligations of a Joint Venture or maintain the solvency of or provide working capital to any Joint Venture (or agree to do any of the foregoing).

Restrictions on dealing with assets and Security

19.10 Pari passu ranking

Each Obligor shall ensure that at all times any unsecured and unsubordinated claims of a Finance Party against it under the Finance Documents rank at least *pari passu* with the claims of all its other unsecured and unsubordinated creditors except those creditors whose claims are mandatorily preferred by laws of general application to companies.

19.11 Negative pledge

In this clause 20.13, "**Quasi-Security**" means an arrangement or transaction described in clause 20.13(b) below.

Except as permitted under clause 20.13(c) below:

(a) No Obligor shall create or permit to subsist any Security over any of its present or future assets, revenue or undertakings.

(b) No Obligor:

(i) sell, transfer or otherwise dispose of any of its assets on terms whereby they are or may be leased to or re-acquired by an Obligor;

(ii) sell, transfer or otherwise dispose of any of its receivables on recourse terms;

(iii) enter into any arrangement under which money or the benefit of a bank or other account may be applied, set-off or made subject to a combination of accounts; or

(iv) enter into any other preferential arrangement having a similar effect,

in circumstances where the arrangement or transaction is entered into primarily as a method of raising Financial Indebtedness or of financing the acquisition of an asset.

(c) Clauses 20.13(a) and 20.13(b) above do not apply to any Security or (as the case may be) Quasi-Security arising under the Transaction Security.

19.12 Disposals

(a) Except as permitted under clause 20.14(b) below, no Obligor shall enter into a single transaction or a series of transactions (whether related or not) and whether voluntary or involuntary to sell, lease, transfer or otherwise dispose of any asset.

(b) Clause 20.14(a) above does not apply to any sale, lease, transfer or other disposal made under the Finance Documents.

19.13 Arm's length basis

(a) Except as permitted by clause 20.15(b) below, no Obligor shall enter into any transaction with any person except on arm's length terms, for full market value, on commercially reasonable terms and in accordance with all applicable law and regulations.

(b) The following transactions shall not be a breach of this clause 20.15:

(i) any transactions arising under the Finance Documents;

(ii) fees, costs and expenses payable under the Finance Documents in the amounts set out in the Finance Documents delivered to the Investment Agent under clause 4.1 (*Initial conditions precedent*) or agreed by the Investment Agent.

Restrictions on movement of cash - cash out

19.14 No credit

No Obligor shall be a creditor in respect of any Financial Indebtedness.

19.15 No guarantees or indemnities

No Obligor shall incur or allow to remain outstanding any guarantee in respect of any obligation of any person.

19.16 Dividends and share redemption

(a) Other than as set out in paragraph (b) below, the Company shall not:

(i) declare, make or pay any dividend, charge, fee or other distribution (or interest on any unpaid dividend, charge, fee or other distribution) (whether in cash or in kind) on or in respect of its share capital (or any class of its share capital);

(ii) repay or distribute any dividend or share premium reserve;

(iii) pay or allow any Obligor to pay any management, advisory or other fee to or to the order of any of the shareholders of the Company or their Affiliates or Related Funds; or

(iv) redeem, repurchase, defease, retire or repay any of its share capital or resolve to do so.

(b) Notwithstanding paragraph (a), the Company may declare a dividend in respect of any Financial Year, equal to Distributable Profits for that Financial Year, after deducting the Reserved Amount.

19.17 Subordinated Qard Al Hassan Agreement

The Company shall not:

(a) repay or prepay any principal amount (or capitalised interest) outstanding under the Subordinated Qard Al Hassan Agreement;

(b) pay any interest, fee or charge accrued or due under the Subordinated Qard Al Hassan Agreement; or

(c) purchase, redeem, defease or discharge any of the loan notes outstanding under the Subordinated Qard Al Hassan Agreement.

Restrictions on movement of cash - cash in

19.18 Financial Indebtedness

(a) Except as permitted under clause 20.20(b) below, no Obligor shall incur or allow to remain outstanding any Financial Indebtedness.

(b) Clause 20.20(a) above does not apply to Financial Indebtedness which is Permitted Financial Indebtedness.

19.19 Share capital

The Company shall not issue, reduce, cancel, repay, purchase or redeem any of its share capital.

Miscellaneous

19.20 Compliance with Receivables Claim Forms

(a) The Company shall:

(i) use its best efforts to procure that each Eligible Debtor duly complies in all material respects with its payment and other material obligations under that Receivables Claim Form in the manner and at the times required in that Receivables Claim Form (and in accordance with the directions of the Investment Agent or the Security Agent from time to time given pursuant to the terms of the Finance Documents); and

(b) not take or omit to take any action that might result in:

(i) any right to terminate a Receivables Claim Form becoming exercisable by the Eligible Debtor; or

(ii) any counterclaim or right of set off arising under a Receivables Claim Form other than any set-off under a Receivables Claim Form that occurs prior to an Event of Default that is continuing, and in the ordinary course of trading as part of the settlement of final invoices for deliveries made thereunder.

(c) Subject to any provision of the Finance Documents to the contrary, the Company shall diligently pursue any remedies available to it in respect of any breach or claim arising in relation to each Receivables Claim Form.

19.21 Access

Each Obligor shall (not more than four times in every Financial Year unless the Investment Agent reasonably suspects a Default is continuing or may occur), permit the Investment Agent and/or each Security Agent and/or accountants or other professional advisers and contractors of the Investment Agent or a Security Agent free access at all reasonable times and on reasonable notice at the risk and cost of the Company to (a) the premises, assets, books, accounts and records of each Obligor and (b) meet and discuss matters with Senior Management.

19.22 Intellectual Property

(a) Each Obligor shall:

(i) preserve and maintain the subsistence and validity of the Intellectual Property necessary for the business of the relevant Obligor;

(ii) use reasonable endeavours to prevent any infringement in any material respect of the Intellectual Property;

(iii) make registrations and pay all registration fees and taxes necessary to maintain the Intellectual Property in full force and effect and record its interest in that Intellectual Property;

(iv) not use or permit the Intellectual Property to be used in a way or take any step or omit to take any step in respect of that Intellectual Property which may materially and adversely affect the existence or value of the Intellectual Property or imperil the right of any Obligor to use such property; and

(v) not discontinue the use of the Intellectual Property.

19.23 Amendments

(a) No Obligor shall amend, vary, novate, supplement, supersede, waive or terminate any term of a Finance Document or any other document delivered to the Investment Agent pursuant to clause 4.1 (*Initial conditions precedent*) or clause 11 (*Changes to the Obligors*) of the Investment and Security Agency

Agreement or enter into any agreement with any shareholders of the Company or any of their Affiliates which is not a Obligor except in writing:

(i) in accordance with clause 14 (*Amendments and Waivers*) of the Investment and Security Agency Agreement; or

(ii) in a way which could not be reasonably expected to have a Material Adverse Effect.

(b) The Company shall promptly supply to the Investment Agent a copy of any document relating to any of the matters referred to in clauses 19.23(a)(i) to 19.23 (a)(ii) above.

19.24 Collection Accounts and Disbursement Account (USD)

(a) Subject paragraph (b) below, the Company shall not hold any Accounts other than then operative Collection Accounts and Disbursement Account (USD).

(b) The Company shall ensure that all bank accounts of the Obligors which are the subject of Transaction Security shall be maintained at all times.

19.25 Treasury Transactions

No Obligor shall enter into any Treasury Transaction.

19.26 Further assurance

(a) Each Obligor shall promptly, at its own cost and expense, do all such acts (including the payment of all stamp duties and fees and the making of all filings and registrations) and execute or re-execute all such documents (including assignments, transfers, mortgages, charges, notices and instructions) as the Investment Agent or any Security Agent may reasonably specify (and in such form as the Investment Agent or any Security Agent may reasonably require in favour of the Investment Agent, any Security Agent or their nominee(s)):

(i) to create, perfect, protect and maintain the Security created or intended to be created under or evidenced by the Security Documents (which may include the execution or re-execution of a mortgage, charge, assignment or other Security over all or any of the assets which are, or are intended to be, the subject of the Transaction Security) or for the exercise of any rights, powers, authorities and remedies of the Investment Agent, any Security Agent or the Secured Parties provided by or pursuant to the Finance Documents or by law;

(ii) to confer on the Investment Agent, each Security Agent or confer on the Secured Parties Security over any property and assets of that Obligor located in any jurisdiction equivalent or similar to the Security intended to be conferred by or pursuant to the Security Documents; and/or

(iii) to facilitate the realisation of the assets which are, or are intended to be, the subject of the Transaction Security.

Each Obligor shall take all such action as is available to it (including making all filings and registrations) as may be necessary or as may reasonably be requested by the Investment Agent or a Security Agent for the purpose of the creation, perfection, protection or maintenance of any Security conferred or intended to be conferred on the Investment Agent, each Security Agent or the Finance Parties by or pursuant to the Finance Documents.

19.27 Auditors and accounting year

The Company shall appoint and maintain at all times the Auditors, which shall be a Recognised Accounting Firm.

19.28 Application of FATCA

Each Obligor shall ensure that, unless otherwise agreed by the Investment Agent, it is not a FATCA FFI or a US Tax Obligor.

19.29 Shari'ah compliance

Each Obligor hereby irrevocably agrees not to claim Shari'ah non-compliance of any of the Finance Documents or any transactions contemplated thereby and hereby irrevocably waives any Shari'ah-related defences in connection therewith.

19.30 Use of funds

No Obligor shall use any amount advanced or paid to it under this Agreement other than as otherwise permitted pursuant to the terms of the Finance Documents.

19.31 Financial Year

No Obligor sh**all change its Fi**nancial Year end date without the prior written consent of the Investment Agent.

19.32 Collection Account and Disbursement Account (USD)

(a) The Company shall ensure that the Security Agent and the Company shall have joint signing rights on the Interim Collection Account and Interim Disbursement Account (USD). The Company shall not withdraw, transfer or debit any amounts standing to the credit of the Interim Collection Account or the Interim Disbursement Account (USD) without the prior authorisation of the Security Agent in writing (which may be by email). Upon the occurrence of an Event of Default which is continuing, the Company irrevocably authorises the Security Agent to have sole signing rights in respect of the Interim Collection Account and the Interim Disbursement Account (USD) and shall procure the same is acknowledged in writing by the Interim Account Bank.

(b) The Parent and the Company shall procure that the Security Agent and the Company have joint signing rights on the New Collection Account and the New Disbursement Account (USD).

(c) The Company shall at all times:

(i) ensure that it maintains at all times the operative Collection Account and the Disbursement Account (USD) in the name of the Company;

(ii) ensure that the operative Collection Account and the Disbursement Account (USD) remain free from any Security or Quasi-Security, other than Transaction Security

(d) The Company shall issue irrevocable payment instructions to each counterparty to a Receivables Claim Form to pay all proceeds under each Receivables Claim Form to its Custody Account.

(e) Each Obligor shall use its best endeavours to ensure that each counterparty to a Receivables Claim Form complies with the irrevocable payment instructions referred to in paragraph (d) above.

(f) Each Obligor shall ensure that any proceeds and other amounts received by it under or in respect of any Eligible Receivable into any bank account (including the Custody Account) other than a Collection Account are paid, not later than on the earlier of the next occurring Monday or Thursday following receipt directly and solely into the operative Collection Account and, pending such payment, shall hold the same on trust for the Finance Parties.

(g) Each Obligor irrevocably authorises the Security Agent to apply amounts credited to the operative Disbursement Account (USD) (if any) and the operative Collection Account to meet any Obligor's payment obligations under the Finance Documents and the Company may withdraw amounts from such Disbursement Account (USD) (if any) or such Collection Account at any time to pay amounts due and payable under the Finance Documents (in each case, in accordance with clause 24.1(*Payments to the Agent*)).

(h) If:

(i) A Default is continuing; or

(ii) a Borrowing Base Deficiency has occurred and has not been remedied or would occur as a result of that withdrawal,

no Obligor may, without the prior written consent of the Security Agent, withdraw any amount from or allow any amount to be debited from the operative Collection Account or the operative Disbursement Account (USD) (if any) except in accordance with paragraph (g) above.

(i) To the extent that the Company is required to meet any payment obligations owing to the Investment Agent or the Security Agent under the Finance Documents, it shall:

(i) promptly transfer the requisite amount standing to the credit of the Collection Account to the Disbursement Account (USD) for the sole purpose of converting AED denominated amounts into United States Dollars, any such conversion to be at exchange rate quoted by the Account Bank for the purchase of United States Dollars with UAE Dirhams; and

(ii) immediately thereafter, make payment to the designated account of the Investment Agent or the Security Agent in discharge of its obligation to pay.

(j) The Company irrevocably authorizes the Investment Agent and/or the Security Agent to give instructions to the Account Bank to effect such conversion contemplated in (i) above and transfer on its behalf should the Company fail to do so for whatever reason.

(k) The Company shall procure the entry into and shall maintain in full force and effect an account control agreement with the New Account Bank in respect of each of the New Disbursement Account (USD) and the New Collection Account.

(l) The Company shall use its best efforts to enter into an account control agreement with the Interim Account Bank in respect of the Interim Collection Account and the Interim Disbursement Account (USD). To the extent that the Interim Account Bank refuses to acknowledge or otherwise agree to such account control agreement(s), the Company shall promptly notify such to the Investment Agent thereof, and the parties agree and acknowledge that reliance shall be placed on the signing rights contemplated above as the primary account control mechanism.

19.33 Holding Companies

(a) Neither the Parent nor the Company shall trade, carry on any business, own any assets or incur any liabilities except for:

(i) in the case of the Parent, the provision of administrative services (excluding treasury services) to its Subsidiaries of a type customarily provided by a holding company to its Subsidiaries;

(ii) ownership of shares in its Subsidiaries, intra-group debit balances, intra-group credit balances and other credit balances in bank accounts, cash and Cash Equivalent Investments;

(iii) any liabilities under the Transaction Documents to which it is a party and professional fees and administration costs in the ordinary course of business as a holding company.

19.34 Custody

(a) The Parent shall procure that KKT enters into Custody Agreements with the Custodian and each Customer from time to time, substantially in the form provided to the Investment Agent prior to the date of this Agreement.

(b) The Parent shall not agree, and shall not permit KKT to agree, to any amendments to the Klaim MRPA, a Custody Agreement or a Customer MRPA without first obtaining the prior written consent of the Investment Agent.

20. BORROWING BASE

20.1 Definitions

For the purposes of this clause 20:

"**Adjusted Pool Balance**" is the sum of the Outstanding Principal Balance of Eligible Receivables reduced by, without duplication:

(a) the Outstanding Principal Balance of Eligible Receivables in breach of Concentration Limits;

(b) the Outstanding Balance of Eligible Receivables as to which any payment, or part thereof remains unpaid for 91 days or more after the Invoice Date for such payment;

(c) all Dilutions in respect of such Eligible Receivables;

(d) any amount relating to an Eligible Receivable, the subject of a Dispute or an Adverse Claim;

"**Advance Rate**" means 90 per cent.

"**Adverse Claim**" means, in respect of a Receivable, any ownership interest or claim, mortgage, deed of trust, pledge, lien, security interest, hypothecation, charge or other encumbrance or security arrangement of any nature whatsoever thereon, whether voluntarily or involuntarily given, including, but not limited to, any conditional sale or title retention arrangement, and any assignment, deposit arrangement or lease intended as, or having the effect of, security thereon; it being understood that any thereof in favor of, or assigned to, the Company shall not constitute an Adverse Claim.

"**Borrowing Base Calculation Date**" means:

(e) he 1st and 15th Business Day of each month;

(f) each Business Day during a Borrowing Base Deficiency Remedy Period until (but excluding) the first Business Day to occur after the Company has received a Borrowing Base Deficiency Remedy Notice from the Borrowing Base Agent in relation to that Borrowing Base Deficiency Remedy Period pursuant to clause 8.3 (*Mandatory prepayment – Borrowing Base amounts*); and

(g) each date notified to the Company under paragraph (f) of clause 21.3 (*Borrowing Base Certificate and Borrowing Base Report*).

"**Borrowing Base Certificate**" means each certificate delivered under this Agreement duly completed and duly signed by the Company in a form acceptable to the Borrowing Base Agent acting on the instructions of the Majority Financiers.

"**Borrowing Base Deficiency**" has the meaning given to that term in clause 8.3 (*Mandatory prepayment – Borrowing Base amounts*).

"**Borrowing Base Deficiency Remedy Notice**" has the meaning given to that term in Clause 8.3 (*Mandatory prepayment – Borrowing Base amounts*).

"**Borrowing Base Deficiency Remedy Period**" has the meaning given to that term in Clause 8.3 (*Mandatory prepayment – Borrowing Base amounts*).

"**Borrowing Base Inspector**" means any other independent and qualified inspector appointed by the Borrowing Base Agent on the instructions of the Majority Financiers.

"**Borrowing Base Report**" means a report submitted to the Investment Agent and Borrowing Base Agent in accordance with this Clause 21 containing details of the assets set out in the Borrowing Base Certificate, and including all assets tapes and portfolio performance metrics, duly completed by the Company in a form acceptable to the Borrowing Base Agent acting on the instructions of the Majority Financiers.

"**Cash Collateral**" means funds on deposit in the operative Collection Account constituting principal collections (but net of any accrued Murabaha Profit), provided that the Company has entered, or shall enter (to the extent applicable and expressly contemplated herein) into a security agreement (in form and substance satisfactory to the Security Agent) creating first ranking security over such accounts in favour of the Security Agent to secure the obligations of the Obligors to the Secured Parties under the Finance Documents

"**Concentration Limits**" means, in respect of Receivables:

(a) the Outstanding Principal Balance of any single Eligible Receivable shall not be greater than 10% of the aggregate Outstanding Balance of all Eligible Receivables;

(b) the Outstanding Principal Balance of the ten (10) largest Eligible Receivables shall not be greater than 50% of the aggregate Outstanding Balance of all Eligible Receivables;

(c) the Outstanding Principal Balance of any Eligible Receivables sold under the Customer MRPA to KKT (and subsequently sold to the Company under the Klaim MPRA) by any single Customer shall not be greater than 10% of the aggregate Outstanding Balance of all Eligible Receivables;

(d) the Outstanding Principal Balance of any Eligible Receivables ultimately payable by any single Debtor which is not included in the Eligible Debtor list as at the relevant date of determination shall not be greater than 10% of the aggregate Outstanding Balance of all Eligible Receivables; and

the Outstanding Principal Balance of Extended Age Receivables shall not be greater than 5% of the aggregate Outstanding Principal Balance of all Eligible Receivables.

"**Debtor**" means each person who owes the Receivables under each Receivables Claim Form.

"**Dispute**" means any dispute, discount, deduction, claim, offset, defense, or counterclaim or similar position asserted of any kind relating to one or more Receivables asserted by the related Debtor as being a basis for non-payment in full of any Eligible Receivable (other than disputes due only to the applicable Debtor's financial or credit condition or ability to pay); regardless of whether the same (x) is in an amount greater than, equal to or less than the applicable Receivable concerned (y) is bona fide or not or (z) arises by reason of force majeure beyond the control of the relevant Customer or the applicable Debtor.

"**Eligibility Criteria**" means, in relation to any Receivables Claim Form, that:

(a) the counterparty to that contract is an Eligible Debtor or a Debtor approved in writing (which may be by way of email) by the Investment Agent;

(a) it provides for all amounts payable under it to the Company to be:

  (i) paid in AED;

  (ii) paid directly to the Custody Account; and

  (iii) made without any withholding, counterclaim, deduction or set-off whatsoever (save to the extent expressly permitted under the terms of that contract as specifically approved by the Investment Agent on the instructions of the Majority Financiers);

(b) such Receivables Claim Form is:

  (i) in the standard form of the relevant Customer;

  (ii) approved by the Eligible Debtor or Debtor in accordance with its current policies and guidelines;

  (iii) subject to valid, first ranking Transaction Security, free from any claims, rights of set off and counterclaim, third party rights or competing interests and in respect of which all Perfection Requirements have been met;

  (iv) not subject to any Adverse Claims, Disputes or outstanding breach or other circumstance which might entitle the relevant Eligible Debtor or Debtor to terminate or cancel that Receivables Claim Form and/or the Receivable payable under it;

(c) such Receivables Claim Form is valid and enforceable;

(d) such Receivables Claim Form is capable of being freely assigned without any further consent of the relevant counterparty or, where such consent is required, this has been or will be obtained and presented to the Agent prior to such Receivables Claim Form becoming subject to the Transaction Security;

(e) the terms of such Receivables Claim Form are freely disclosable to any of the Finance Parties, their Affiliates and each of their professional advisors;

(f) such Receivables Claim Form is expressed to be governed by United Arab Emirates law or the law of another jurisdiction acceptable to the Investment Agent (acting on the instructions of the Majority Financiers);

(g) such Receivables Claim Form provides for disputes to be submitted to arbitration in or to the courts of a jurisdiction acceptable to the Investment Agent (acting on the instructions of the Majority Financiers); and

(h) such Receivables Claim Form is on arm's length terms and for full market value.

"**Eligible Debtor**" means a Debtor which:

(a) is not an Affiliate of the Parent;

(b) is not insolvent or bankrupt and has not had any legal proceedings started or threatened against it for its winding up, dissolution or re-organisation;

(c) is incorporated in the United Arab Emirates; and

is identified on the Eligible Debtor List or is otherwise approved in writing by the Investment Agent from time to time(which may be by way of email).

"**Eligible Debtor List**" means National Health Insurance Company - Daman (PJSC), Gulf Insurance Group (Gulf) B.S.C., Almadallah Healthcare Management FZ CO, NAS Neuron Health Services LLC, FMC Network UAE Management Consultancy LLC (TPA), MedNet UAE FZ LLC, NEXECARE Claims Management LLC, Sukoon Insurance P.J.S.C, Abu Dhabi National Insurance Co., American Life Insurance Company, Emirates Group and National General Insurance Co. (PJSC), together with such other entities approved from time to time by the Investment Agent (acting in its sole discretion after consultation with the Company and the Parent).

"**Eligible Receivable**" means any Receivable which:

(a) is denominated in AED owed to the Company under a Receivables Claim Form which meets the Eligibility Criteria;

(b) the Outstanding Principal Balance of which does not exceed 0.5% of the aggregate Outstanding Principal Balance of all Eligible Receivables;

(c) the Outstanding Principal Balance of which (where owed to the Company by an Eligible Debtor) when aggregated with the Outstanding Principal Balance all other Eligible Receivables owing to the Company by such Eligible Debtor, do not exceed the Maximum Credit Limit applicable to such Eligible Debtor;

(d) in respect of services that have been rendered in accordance with the terms of that Receivables Claim Form;

(e) is subject to a security assignment in favour of the Security Agent, duly perfected to the satisfaction of the Security Agent; and

(f) has not been sold or disposed of (or whose proceeds have not been sold or disposed of) by any person and is not subject to any Security other than the Transaction Security.

"**Maximum Credit Limit**" means, USD15,000,000.

"**Receivable**" means each receivable payable to the Company under a Receivables Claim Form, including Receivables payable to KKT and assigned to the Company under the Transaction Documents.

"**Receivables Claim Form**" means a claim form in respect of the provision of services relating to health care provided by a Customer and payable by an Eligible Debtor

20.2 Borrowing Base Certificate and Borrowing Base Report

(a) The Company shall supply to the Borrowing Base Agent:

(i) on each Borrowing Base Calculation Date (or if this is not a Business Day, the preceding Business Day), a duly completed Borrowing Base Certificate which shall be based on data on the Borrowing Base Calculation Date, together with all applicable Advance Rates; and

(ii) a Borrowing Base Report countersigned by the relevant Borrowing Base Inspector (if any), within 30 Business Days of each Deferred Payment Date,

each in form and substance satisfactory to the Borrowing Base Agent.

(b) The Borrowing Base Agent shall deliver the Borrowing Base Certificate and the Borrowing Base Report to the Investment Agent for onward transmission to the Financiers.

(c) Each Borrowing Base Certificate shall be signed by two directors of the Company or any other person acceptable to the Investment Agent and the Borrowing Base Agent, certifying the information supplied in each Borrowing Base Certificate and Borrowing Base Report, as being true and accurate in all material respects.

(d) The Borrowing Base Agent shall as soon as reasonably practicable notify the Investment Agent once it is satisfied (in accordance with paragraph (b) of clause 2.10(a)(ii) (*Role of the Borrowing Base Agent role*) of the Investment and Security Agency Agreement) with the calculation of the Borrowing Base and the Investment Agent shall notify the Company.

(e) If in the opinion of the Borrowing Base Agent or any Financier a Borrowing Base Certificate is incorrect in any respect or the Borrowing Base Agent or any Financier requires additional information to review the Borrowing Base Certificate then the Borrowing Base Agent may (and shall if requested by any Financier):

(i) notify the Company;

(ii) request supporting information in relation to any aspect of the Borrowing Base Certificate that it requires, following which the Company shall provide such supporting information promptly and in any event not later than five (5) Business Days following delivery of such request or such longer period agreed between Company and the Borrowing Base Agent;

(iii) request access to the records of the Obligors to verify any aspect of the Borrowing Base Certificate; and/or

(iv) (if the information and/or records provided pursuant to this clause 21 do not provide sufficient information in order to satisfy the Borrowing Base Agent (acting on the instructions of the Majority Financiers) that the calculations set out in the relevant Borrowing Base Certificate are correct or the Company has not corrected the Borrowing Base Certificate for any perceived inaccuracies then upon the instructions of the Majority Financiers, amend the calculation of the Borrowing Base,

and, the calculation of the Borrowing Base as amended pursuant to paragraph (iv) above shall take effect as the then applicable Borrowing Base.

(f) If a Default has occurred and is continuing the Company shall provide a Borrowing Base Certificate and Borrowing Base Report on each date notified to it by the Borrowing Base Agent.

20.3 Audit of the Borrowing Base

(a) Without prejudice to the other provisions of this clause 20, each Obligor shall:

(i) ensure that, no more than once in any calendar year and at its own expense, an audit company appointed by the Borrowing Base Agent acting on the instructions of the Majority Financiers) conducts a comprehensive audit of the components of the Borrowing Base reported in the then most recent Borrowing Base Report and of the procedures used by any Obligor to identify the relevant components and to calculate the resulting Borrowing Base;

(ii) promptly when available but in any event within 30 days after June 30 in each financial year, ensure that a copy of the report of such audit is delivered to the Borrowing Base Agent (such report to be addressed to the Finance Parties and in form and substance satisfactory to the Borrowing Base Agent (acting on the instructions of the Majority Financiers)); and

(iii) permit the Borrowing Base Agent, the Borrowing Base Inspector and/ or any of its representatives, agents, delegates or professional advisors, upon reasonable notice and during normal business hours, to review, and to take copies and extracts from, the books, accounts and records to the extent relevant to the Borrowing Base and the Facilities, for the purpose of verifying any Borrowing Base Report.

(b) The Borrowing Base Agent (acting on the reasonable instructions of the Majority Financiers) shall have the right to require a comprehensive audit

similar to that referred to in paragraph (a) above at any time when deemed necessary by the Borrowing Base Agent, but the costs of such audit (other than the one referred to in paragraph (a) above) shall be for the account of the Financiers unless a Default is continuing.

20.4 Access - Receivables

(a) The Obligors shall:

(i) permit representatives, nominees, advisers and independent contractors of any Finance Party (including the Borrowing Base Inspector and any audit company appointed by the Borrowing Base Agent) to visit and inspect each the Company's premises, storage facilities, assets, books, accounts and records to verify any aspect of any Borrowing Base Certificate or Borrowing Base Report (without in any way affecting any Obligors responsibility for ensuring the information provided by it is accurate); and

(ii) if the Borrowing Base Agent determines that there is a discrepancy which is not resolved to the satisfaction of the Borrowing Base Agent by an Obligor, permit representatives, advisers and independent contractors of the Investment Agent and/or the Borrowing Base Agent to audit all documentation and information in relation to any Borrowing Base Certificate or Borrowing Base Report (without in any way affecting any Obligors responsibility for ensuring the information provided by it is accurate),

to the extent requested by the Investment Agent, at the expense of the Company, in each case at any time during normal business hours and without prior notice.

21. WEIGHTED AVERAGE LIFE TEST

21.1 The "Weighted Average Life Test" shall be satisfied on any date of determination if the Weighted Average Life of the Portfolio on such date is less than or equal to 70 days.

"**Weighted Average Life**" means, on any date of determination, the number of days obtained by:

(a) summing the products obtained by multiplying:

(i) the Outstanding Principal Balance of each Receivable included in the Portfolio (regardless of whether such Receivable is an Eligible Receivable or an Ineligible Receivable); by

(ii) the Age of such Receivable; and

(b) dividing such sum by the aggregate Outstanding Principal Balance of the Portfolio (inclusive of all Eligible Receivables, Ineligible Receivables, and Repaid Amounts).

"**Age**" means:

(a) with respect to any Receivable on any date of determination, the number of days elapsed since the claim submission date of such Receivable; and

(b) with respect to any Repaid Amounts, zero (0) days.

"**Repaid Amounts**" means the aggregate amount of cash collections standing to the credit of the Collection Account in respect of Receivables, which have not yet been applied or swept as of the date of determination.

"**Portfolio**" means, collectively, all Receivables owned by the Company and all Repaid Amounts.

21.2 To the extent that the Weighted Average Life exceeds 70 days, the Weighted Average Life Test shall nonetheless be deemed to be satisfied if the aggregate Outstanding Principal Balance of all Receivables included in the Portfolio having an Age greater than 70 days but less than or equal to 90 days (such Receivables, the "**Extended Age Receivables**") does not exceed 5.0% of the aggregate Outstanding Principal Balance of all Eligible Receivables.

22. EVENTS OF DEFAULT

Each of the events or circumstances set out in this clause 21 is an Event of Default (save for clause 22.19 (*Acceleration*)).

22.1 Non-payment

An Obligor does not pay on the due date any amount payable pursuant to a Finance Document at the place at and in the currency in which it is expressed to be payable unless its failure to pay is caused by:

(a) administrative or technical error; or

(b) a Disruption Event; and

in each case (a) and (b), payment is made within five (5) Business Days of its due date.

22.2 Financial covenants and Conditions Subsequent

(a) Any requirement of clause 17 (*Information Undertakings*) or clause 18 (*Financial Covenants*) (other than as provided under clause 18.3(b)) is not satisfied.

(b) An Obligor does not comply with any provision of any Security Document.

22.3 An Obligor does not comply with its obligations under set out in Schedule 2, Part B (Conditions Subsequent).

22.4 Other obligations

(a) An Obligor does not comply with any provision of the Finance Documents (other than those referred to in clause 18.1 (*Non-payment*) clause 18.2 (*Financial covenants*) or 22.1 (*Borrowing Base*)).

(b) No Event of Default under clause 22.4(a) above will occur if the failure to comply is capable of remedy and is remedied within fifteen (15) Business Days of the earlier of (i) the Investment Agent giving notice to the Company or relevant Obligor and (ii) the Company or an Obligor becoming aware of the failure to comply.

22.5 Misrepresentation

Any representation or statement made or deemed to be made by an Obligor or any other party in the Finance Documents or any other document delivered by or on behalf of any Obligor under or in connection with any Finance Document is or proves to have been incorrect or misleading when made or deemed to be made.

22.6 Cross default

(a) Any Financial Indebtedness of any Obligor is not paid when due nor within any originally applicable grace period.

(b) Any Financial Indebtedness of any Obligor is declared to be or otherwise becomes due and payable prior to its specified maturity as a result of an event of default (however described).

(c) Any commitment for any Financial Indebtedness of any Obligor is cancelled or suspended by a creditor of any Obligor as a result of an event of default (however described).

(d) Any creditor of any Obligor becomes entitled to declare any Financial Indebtedness of any Obligor due and payable prior to its specified maturity as a result of an event of default (however described).

(e) No Event of Default will occur under this clause 22.5 if the aggregate amount of Financial Indebtedness or commitment for Financial Indebtedness falling within clauses 22.5(a) to 22.5(d) (inclusive) above is less than $250,000 (or its equivalent in any other currency or currencies).

22.7 Insolvency

(a) An Obligor or KKT:

(i) is unable or admits inability to pay its debts as they fall due;

(ii) is deemed to, or is declared to, be unable to pay its debts under applicable law;

(iii) suspends or threatens to suspend making payments on any of its debts; or

(iv) by reason of actual or anticipated financial difficulties, commences negotiations with one or more of its creditors (excluding any Finance Party in its capacity as such) with a view to rescheduling any of its indebtedness.

(b) The value of the assets of any Obligor or KKT is less than its liabilities (taking into account contingent and prospective liabilities).

(c) A moratorium is declared in respect of any indebtedness of any Obligor or KKT. If a moratorium occurs, the ending of the moratorium will not remedy any Event of Default caused by that moratorium.

22.8 Insolvency proceedings

(a) Any corporate action, legal proceedings or other procedure or step is taken in relation to:

(i) the suspension of payments, a moratorium of any indebtedness, winding-up, dissolution, administration or reorganisation (by way of voluntary arrangement, scheme of arrangement or otherwise) of any Obligor or KKT;

(ii) a composition, compromise, assignment or arrangement with any creditor of any Obligor or KKT;

(iii) the appointment of a liquidator, receiver, administrative receiver, administrator, compulsory manager or other similar officer in respect of any Obligor, KKT or any of their assets; or

(iv) enforcement of any Security over any assets of any Obligor or KKT in respect of Financial Indebtedness exceeding US$250,000,

or any analogous procedure or step is taken in any jurisdiction.

(b) Clause 22.7(a) shall not apply to any winding-up petition which is frivolous or vexatious and is discharged, stayed or dismissed within fourteen (14) days of commencement.

22.9 Creditors' process

Any expropriation, attachment, sequestration, distress or execution or any analogous process in any jurisdiction affects any asset or assets of an Obligor or KKT having a value exceeding US$250,000 and is not discharged within 14 days.

22.10 Analogous proceedings

There occurs, in relation to an Obligor or any KKT, in any jurisdiction to which it or any of its assets are subject, any event which, in the opinion of the Investment Agent,

corresponds with any of those mentioned in clauses 22.7 (*Insolvency*) to 22.9 (*Creditors' process*) (inclusive).

22.11 Unlawfulness and invalidity

(a) It is or becomes unlawful for an Obligor or KKT to perform any of its obligations under the Transaction Documents or any Transaction Security created or expressed to be created or evidenced by the Security Documents ceases to be effective.

(b) Any obligation or obligations of any Obligor or KKT under any Transaction Documents are not (subject to the Legal Reservations) or cease to be legal, valid, binding or enforceable and the cessation individually or cumulatively materially and adversely affects the interests of the Financiers under the Finance Documents.

(c) Any Transaction Document ceases to be in full force and effect or any Transaction Security ceases to be legal, valid, binding, enforceable or effective or is alleged by a party to it (other than a Finance Party) to be ineffective.

22.12 Cessation of business

Any Obligor or KKT suspends or ceases to carry on (or threatens to suspend or cease to carry on) all or a material part of its business.

22.13 Change of management

A member of the Senior Management ceases to be employed by the Parent or the Company in his current roles or to devote the time and attention to the business, trade and offices of the Parent or the Company or perform the functions required under the terms of his Service Contract and otherwise typically expected from Senior Management.

22.14 Change in ownership

At any time, the Parent ceases to own, directly or indirectly, 100% of the issued share capital in the Company and/or KKT.

22.15 Audit qualification

The Auditors qualify the audited annual consolidated financial statements of any Obligor.

22.16 Expropriation

The authority or ability of any Obligor or KKT to conduct its business is limited or wholly or substantially curtailed by any seizure, expropriation, nationalisation, intervention, restriction or other action by or on behalf of any governmental, regulatory or other authority or other person in relation to any Obligor or any of its assets.

22.17 Repudiation and rescission of agreements

An Obligor (or any other relevant party) rescinds or purports to rescind or repudiates or purports to repudiate a Finance Document or any of the Transaction Security or evidences an intention to rescind or repudiate a Finance Document or any Transaction Security.

22.18 Litigation

Any litigation, arbitration or administrative proceedings or investigations of, or before, any court, arbitral body or agency are started or threatened, or any judgment or order of a court, arbitral body or agency is made, in relation to the Finance Documents or the transactions contemplated in the Finance Documents or against any Obligor, KKT or their respective assets which have, or has, or are, or is, reasonably likely to have a Material Adverse Effect.

22.19 Accounts

Without the prior written consent of the Investment Agent (acting on the instructions of the Majority Financiers) the Collection Account, Disbursement Account (USD) or the Custody Account is closed or requested to be closed (other than in accordance with the terms of this Agreement).

22.20 Material adverse change

Any event or circumstance occurs which the Majority Financiers reasonably believe has or is reasonably likely to have a Material Adverse Effect.

22.21 Security

The Security conferred or purported to be conferred by a Security Document (once executed) ceases to constitute an effective priority Security of the type described, over the assets referred to therein.

22.22 Borrowing Base

(a) An Obligor does not comply with any provision of clause 20 (*Borrowing Base*) (save for curing a Borrowing Base Deficiency prior to the expiry of the Borrowing Base Holiday), or clause 19.32 (*Collection Accounts and Disbursement Account (USD)*) or, after the expiry of the Borrowing Base Holiday Period, a Borrowing Base Deficiency occurs and is not remedied either immediately by way of an advance under the Subordinated Qard Al Hassan Agreement as contemplated herein, or to the extent that a Borrowing Base Deficieny remains continuing thereafter, within the Borrowing Base Deficiency Remedy Period .

(b) The Company has not applied at least US$ 15,000 to the purchase of Eligible Receivables within 6 months of the date of this Agreement.

22.23 Acceleration

On and at any time after the occurrence of an Event of Default which is continuing the Investment Agent may, and shall if so directed by the Majority Financiers:

(a) by notice to the Company:

(i) cancel each Available Commitment of each Financier at which time each such Available Commitment shall immediately be cancelled and each Facility shall immediately cease to be available for further utilisation;

(ii) declare that all or part of the Deferred Prices then outstanding and all other amounts accrued or outstanding under the Finance Documents:

(A) be immediately due and payable, whereupon they shall become immediately due and payable; and/or

(B) shall immediately become payable on demand by the Investment Agent on the instructions of the Majority Financiers; and/or

(C) terminate the Finance Documents.

(b) exercise or direct each Security Agent to exercise any or all of its rights, remedies, powers or discretions under the Finance Documents, including taking all and any action in connection with enforcing or claiming under a guarantee.

23. CONDUCT OF BUSINESS BY THE FINANCE PARTIES

23.1 No provision of this Agreement will:

(a) interfere with the right of any Finance Party to arrange its affairs (tax or otherwise) in whatever manner it thinks fit;

(b) oblige any Finance Party to investigate or claim any credit, relief, remission or repayment available to it or the extent, order and manner of any claim; or

(c) oblige any Finance Party to disclose any information relating to its affairs (tax or otherwise) or any computations in respect of Tax.

24. PAYMENT MECHANICS

24.1 Payments to the Investment Agent

(a) On each date on which an Obligor or a Financier is required to make a payment under a Finance Document, that Obligor or Financier must make the payment available to or to the order of the Investment Agent (unless a contrary indication appears in a Finance Document) for value on the due date at the time and in such funds specified by the Investment Agent to the relevant Obligor or Financier concerned as being customary at the time for settlement of transactions in the relevant currency in the place of payment.

(b) Unless a Finance Document specifies that payments under it are to be made in another manner, all payments must be made to such account with such bank as the Investment Agent specifies.

24.2 Distributions by the Investment Agent

Each payment received by the Investment Agent under the Finance Documents for another Party shall, subject to clause 24.3 (*Distributions to the Obligors*) and clause 24.4 (*Clawback*) be made available by the Investment Agent as soon as practicable after receipt to the Party entitled to receive payment in accordance with this Agreement (in the case of a Financier, for the account of its Facility Office), to such account as that Party may notify to the Investment Agent by not less than five (5) Business Days' notice with a bank specified by that Party in the principal financial centre of the country of that currency.

24.3 Distributions to the Obligors

The Investment Agent may (with the consent of the Obligor or in accordance with clause 25 (*Set-off*)) apply any amount received by it for that Obligor in or towards payment (as soon as practicable after receipt) of any amount due from that Obligor under the Finance Documents. For this purpose, the Investment Agent may apply the received sum in or towards the purchase of any amount of any currency to be paid.

24.4 Clawback

(a) Where a sum is to be paid to the Investment Agent under the Finance Documents for another Party, the Investment Agent is not obliged to pay that sum to that other Party (or to enter into or perform any related exchange contract) until it has been able to establish to its satisfaction that it has actually received that sum.

(b) If the Investment Agent pays an amount to another Party and it proves to be the case that the Investment Agent has not actually received that amount, then the Party to whom that amount (or the proceeds of any related exchange contract) was paid by the Investment Agent must on demand refund that amount to the Investment Agent together with an amount equal to the actual costs, losses and expenses incurred by the Investment Agent (excluding any cost of funds and opportunity loss), as calculated by the Investment Agent.

24.5 Partial payments

(a) If the Investment Agent receives a payment that is insufficient to discharge all the amounts then due and payable by an Obligor under the Finance Documents, the Investment Agent must apply that payment towards the obligations of that Obligor under the Finance Documents in the following order (the "**Order of Priority**"):

(i) first, in or towards payment of any due but unpaid fees costs and expenses payable to the Investment Agent and each Security Agent under the Finance Documents;

(ii) secondly, in or towards payment of the Murabaha Profit element of the Deferred Price of each Murabaha Contract and other costs or expenses due but unpaid under the Finance Documents;

(iii) thirdly, in or towards payment *pro rata* of the Cost Price element of the Deferred Price of each Murabaha Contract due but unpaid under the Finance Documents; and

(iv) fourthly, in or towards payment of any other sum due but unpaid under the Finance Documents.

(b) The Investment Agent must, if so directed by the Majority Financiers, vary the order (but not the recipient of any payment) set out in clauses 23.5(a)(ii) to 24.5(a)(iv).

(c) Clause 24.5(a) above will override any appropriation made by an Obligor.

24.6 No set-off by the Obligors

All payments to be made by any Obligor under the Finance Documents will be calculated and be made without (and free and clear of any deduction for) set-off or counterclaim.

24.7 Business Days

Any payment which is due to be made on a day that is not a Business Day will be made on the preceding Business Day.

24.8 Currency of account

(a) Unless a Finance Document specifies otherwise, US Dollars is the currency of account and payment for any sum due from any Obligor under any Finance Document.

(b) Each payment in respect of costs, expenses or Taxes must be made in the currency in which the costs, expenses or Taxes are incurred.

(c) Any amount expressed to be payable in a currency other than US Dollars will be paid in that other currency.

24.9 Change of currency

(a) Unless otherwise prohibited by law, if more than one currency or currency unit are at the same time recognised by the central bank of any country as the lawful currency of that country, then:

(i) any reference in the Finance Documents to, and any obligations arising under the Finance Documents in, the currency of that country will be translated into, or paid in, the currency or currency unit of that country designated by the Investment Agent (after consultation with the Company); and

(ii) any translation from one currency or currency unit to another will be at the official rate of exchange recognised by the central bank for the conversion of that currency or currency unit into the other, rounded up or down by the Investment Agent (acting reasonably).

(b) If a change in any currency of a country occurs (including where there is more than one currency or currency unit recognised at the same time as the lawful currency of a country), the Finance Documents will, to the extent the Investment Agent (acting reasonably and after consultation with the Company) specifies to be necessary, be amended to comply with any generally accepted conventions and market practice in the relevant interbank market and otherwise reflect the change in currency.

24.10 Disruption to payment systems

(a) If the Investment Agent determines (in its discretion) that a Disruption Event has occurred or the Investment Agent is notified by the Company that a Disruption Event has occurred, the Investment Agent:

(i) may, and must if requested to do so by the Company, consult with the Company for a period of not more than fourteen (14) days with a view to agreeing with the Company such changes to the operation or administration of a Facility ("**changes**") as the Investment Agent may deem necessary in the circumstances;

(ii) is not obliged to consult with the Company in relation to any changes if, in its opinion, it is not practicable to do so in the circumstances and, in any event, has no obligation to agree to any changes; and

(iii) may consult with the Finance Parties in relation to any changes but is not obliged to do so if, in its opinion, it is not practicable to do so in the circumstances.

(b) Any changes agreed between the Investment Agent and the Company will (whether or not it is finally determined that a Disruption Event has occurred) be binding on the Parties as an amendment to (or, as the case may be, a waiver of) the terms of the Finance Documents notwithstanding the provisions of clause 14 (*Amendments and Waivers*) of the Investment and Security Agency Agreement.

(c) Notwithstanding any other provision of the Finance Documents, the Investment Agent will not be liable for any damages, costs or losses (whether arising in contract, tort or otherwise and whether caused by the Investment Agent's negligence, gross negligence or any other category of liability whatsoever, but not including any claim based on the fraud of the Investment Agent) arising as a result of it taking, or failing to take, any actions pursuant to or in connection with this clause 24.10(*Disruption to payment systems*).

(d) The Investment Agent must notify the Finance Parties of all changes agreed pursuant to clause 24.10 (b) above.

24.11 Timing of payments

If a Finance Document does not provide for when a particular payment is due, that payment will be due within three (3) Business Days of demand by the person to whom the payment is to be made (or, if that person is a Finance Party, the Investment Agent).

25. PARENT APPROVAL AS SHAREHOLDER

25.1 The Parent, being the direct and sole shareholder of Klaim Kapital Technologies Limited and Klaim Receivable Purchase SPV 4 Limited (the "**Subsidiaries**" and each a Subsidiary) hereby irrevocably approves and authorises each Subsidiary to enter into the transactions contemplated herein and in the Financing Documents and to execute and deliver the Financing Documents to which each Subsidiary is a party.

25.2 The Parent represents and warrants that it has all corporate power and authority to give the approvals in this clause 25.

25.3 The Parent shall, at the Investment Agent's reasonable request, deliver evidence of corporate authorisations and certified copies of any resolutions or signatures required to give effect to this clause.

26. SET-OFF

A Finance Party may set off any matured obligation due from an Obligor under the Finance Documents (to the extent beneficially owned by that Finance Party) against any matured obligation owed by that Finance Party to that Obligor, regardless of the place of payment, booking branch or currency of either obligation. If the obligations are in different currencies, the Finance Party may convert either obligation at a market rate of exchange in its usual course of business for the purpose of the set-off.

27. NOTICES

27.1 Communications in writing

Any communication to be made under or in connection with the Finance Documents shall be made in writing and, unless otherwise stated, may be made by letter.

27.2 Addresses

The address (and the department or officer, if any, for whose attention the communication is to be made) of each Party for any communication or document to be made or delivered under or in connection with the Finance Documents is:

(a) in the case of the Company or any other Obligor, that identified with its name below on Schedule 1 (The Parties);

(b) in the case of each Financier, that notified in writing to the Investment Agent on or prior to the date on which it becomes a Party; and

(c) in the case of the Investment Agent, that identified with its name below:

Address:

Unit 1901, Level 19
Index Tower
Dubai International Financial Center
Dubai, United Arab Emirates

Email: Notices-pc@amwalcp.com
Attention: Samer Sarraf / Sharif Eid

or any substitute address or department or officer as the Party may notify to the Investment Agent (or the Investment Agent may notify to the other Parties, if a change is made by the Investment Agent) by not less than five (5) Business Days' notice.

27.3 Delivery

(a) Any communication or document made or delivered by one person to another under or in connection with the Finance Documents will only be effective:

(i) if by way of letter, when it has been left at the relevant address or five (5) Business Days after being deposited in the post postage prepaid in an envelope addressed to it at that address,

(ii) and, if a particular department or officer is specified as part of its address details provided under clause 26.2 (*Addresses*), if addressed to that department or officer.

(b) Any communication or document to be made or delivered to the Investment Agent or any Security Agent will be effective only when actually received by the Investment Agent or that Security Agent and then only if it is expressly marked for the attention of the department or officer identified with the Investment Agent's or that Security Agent's signature below (or any substitute department or officer as the Investment Agent or that Security Agent shall specify for this purpose).

(c) All notices from or to an Obligor shall be sent through the Investment Agent.

(d) Any communication or document made or delivered to the Company in accordance with this clause 26.3 will be deemed to have been made or delivered to each of the Obligors.

(e) Any communication or document which becomes effective, in accordance with clauses 26.3(a) to 26.3(d) (inclusive) above, after 5pm in the place of receipt shall be deemed only to become effective on the following day.

27.4 Notification of address

Promptly upon changing its address, the Investment Agent shall notify the other Parties.

27.5 Communication when Agent is Impaired Agent

If the Investment Agent is an Impaired Agent the Parties may, instead of communicating with each other through the Investment Agent, communicate with each other directly

and (while the Investment Agent is an Impaired Agent) all the provisions of the Finance Documents which require communications to be made or notices to be given to or by the Investment Agent shall be varied so that communications may be made and notices given to or by the relevant Parties directly. This provision shall not operate after a replacement Agent has been appointed.

27.6 Electronic communication

(a) Any communication or document to be made or delivered by one Party to another under or in connection with the Finance Documents may be made or delivered by electronic mail or other electronic means (including, without limitation, by way of posting to a secure website) if those two Parties:

(i) notify each other in writing of their electronic mail address and/or any other information required to enable the transmission of information by that means; and

(ii) notify each other of any change to their address or any other such information supplied by them by not less than five (5) Business Days' notice.

(b) Any such electronic communication or delivery as specified in clause 27.6(a) above to be made between an Obligor and a Finance Party may only be made in that way to the extent that those two Parties agree that, unless and until notified to the contrary, this is to be an accepted form of communication or delivery.

(c) Any such electronic communication or document as specified in clause 27.6 (a) above made or delivered by one Party to another will be effective only when actually received (or made available) in readable form and in the case of any electronic communication or document made or delivered by a Party to the Investment Agent or a Security Agent only if it is addressed in such a manner as the Investment Agent or that Security Agent shall specify for this purpose.

(d) Any electronic communication or document which becomes effective, in accordance with clause 27.6 (c) above, after 5pm in the place in which the Party to whom the relevant communication or document is sent or made available has its address for the purpose of this Agreement shall be deemed only to become effective on the following day.

(e) Any reference in a Finance Document to a communication being sent or received or a document being delivered shall be construed to include that communication or document being made available in accordance with this clause 27.6.

27.7 Direct electronic delivery by Obligor's Agent

The Company may satisfy its obligation under this Agreement to deliver any information in relation to a Financier by delivering that information directly to that Financier in accordance with clause 27.6 (*Electronic communication*) to the extent that Financier and the Investment Agent agree to this method of delivery.

27.8 English language

(a) Any notice given under or in connection with any Finance Document must be in English.

(b) All other documents provided under or in connection with any Finance Document must be:

(i) in English; or

(ii) if not in English, accompanied by a certified English translation and, in this case, the English translation will prevail unless the document is a constitutional, statutory or other official document.

28. CALCULATIONS AND CERTIFICATES

28.1 Accounts

In any litigation or arbitration proceedings arising out of or in connection with a Finance Document, the entries made in the accounts maintained by a Finance Party are *prima facie* evidence of the matters to which they relate.

28.2 Certificates and determinations

Any certification or determination by a Finance Party of a rate or amount under any Finance Document is, in the absence of manifest error, conclusive evidence of the matters to which it relates.

28.3 Day count convention and profit calculation

(a) Any profit, commission or fee accruing under a Finance Document will accrue from day to day and the amount of any such profit, commission or fee is calculated:

(i) on the basis of the actual number of days elapsed and a year of 360 days; and

(ii) subject to clause 27.3(b) below, without rounding.

(b) The aggregate amount of any accrued profit, commission or fee which is, or becomes, payable by an Obligor under a Finance Document shall be rounded to 2 decimal places.

29. PARTIAL INVALIDITY

If, at any time, any provision of a Finance Document is or becomes illegal, invalid or unenforceable in any respect under any law of any jurisdiction, neither the legality, validity or enforceability of the remaining provisions nor the legality, validity or enforceability of such provision under the law of any other jurisdiction will in any way be affected or impaired.

30. ENTIRE AGREEMENT

The Finance Documents and any agreement, document or instrument attached thereto or referred to therein integrate all the terms and conditions mentioned therein or incidental thereto and supersede all oral negotiations and prior writings with respect to the subject matter hereof.

31. REMEDIES AND WAIVERS

No failure to exercise, nor any delay in exercising, on the part of any Finance Party or Secured Party, any right or remedy under a Finance Document shall operate as a waiver of any such right or remedy or constitute an election to affirm any Finance Document. No election to affirm any Finance Document on the part of any Finance Party or Secured Party shall be effective unless it is in writing. No single or partial exercise of any right or remedy shall prevent any further or other exercise or the exercise of any other right or remedy. The rights and remedies provided in each Finance Document are cumulative and not exclusive of any rights or remedies provided by law.

32. CONFIDENTIAL INFORMATION

32.1 Confidentiality

Each Finance Party agrees to keep all Confidential Information confidential and not to disclose it to anyone, save to the extent permitted by clause 31.2 (*Disclosure of Confidential Information*) and clause 31.3 (*Disclosure to numbering service providers*), and to ensure that all Confidential Information is protected with security measures and a degree of care that would apply to its own confidential information.

32.2 Disclosure of Confidential Information

Any Finance Party may disclose:

(a) to any of its Affiliates and Related Funds and any of its or their officers, directors, employees, professional advisers, auditors, partners and Representatives such Confidential Information as that Finance Party shall consider appropriate if any person to whom the Confidential Information is to be given pursuant to this clause 31.2(a) is informed in writing of its confidential nature and that some or all of such Confidential Information may be price-sensitive information except that there shall be no such requirement to so inform if the recipient is subject to professional obligations to maintain the confidentiality of the information or is otherwise bound by requirements of confidentiality in relation to the Confidential Information;

(b) to any person:

(i) to (or through) whom it assigns or transfers (or may potentially assign or transfer) all or any of its rights and/or obligations under one or more Finance Documents or which succeeds (or which may potentially succeed) it as Investment Agent or as Security Agent and, in each case, to any of that person's Affiliates, Related Funds, Representatives and professional advisers;

(ii) with (or through) whom it enters into (or may potentially enter into), whether directly or indirectly, any sub-participation in relation to, or any other transaction under which payments are to be made or may be made by reference to, one or more Finance Documents and/or one or more Obligors and to any of that person's Affiliates, Related Funds, Representatives and professional advisers;

(iii) appointed by any Finance Party or by a person to whom clause 31.2(b)(i) or 31.2(b)(ii) above applies to receive communications, notices, information or documents delivered pursuant to the Finance Documents on its behalf (including, without limitation, any person appointed under clause 7.13(b) (*Relationship with the other Finance Parties*) of the Investment and Security Agency Agreement);

(iv) who invests in or otherwise finances (or may potentially invest in or otherwise finance), directly or indirectly, any transaction referred to in clause 31.2(b)(i) or 31.2(b)(ii) above;

(v) to whom information is required or requested to be disclosed by any court of competent jurisdiction or any governmental, banking, taxation or other regulatory authority or similar body, the rules of any relevant stock exchange or pursuant to any applicable law or regulation;

(vi) to whom information is required to be disclosed in connection with, and for the purposes of, any litigation, arbitration, administrative or other investigations, proceedings or disputes;

(vii) to whom or for whose benefit that Finance Party charges, assigns or otherwise creates Security (or may do so) pursuant to clause 10.8 (*Security over Financiers' rights*) of the Investment and Security Agency Agreement;

(viii) who is a Party; or

(ix) with the consent of the Company,

in each case, such Confidential Information as that Finance Party shall consider appropriate if:

(A) in relation to clauses 31.2(b)(i), 31.2(b)(ii) and 31.2(b)(iii) above, the person to whom the Confidential Information is to be given has entered into a Confidentiality Undertaking except that there shall be no requirement for a Confidentiality Undertaking if the recipient is a professional adviser and is subject to professional obligations to maintain the confidentiality of the Confidential Information;

(B) in relation to clause 31.2(b)(iv) above, the person to whom the Confidential Information is to be given has entered into a Confidentiality Undertaking or is otherwise bound by requirements of confidentiality in relation to the Confidential

Information they receive and is informed that some or all of such Confidential Information may be price-sensitive information;

(C) in relation to clauses 31.2(b)(v), 31.2(b)(vi) and 31.2(b)(vii) above, the person to whom the Confidential Information is to be given is informed of its confidential nature and that some or all of such Confidential Information may be price-sensitive information except that there shall be no requirement to so inform if, in the opinion of that Finance Party, it is not practicable so to do in the circumstances; and

(c) to any person appointed by that Finance Party or by a person to whom clause 31.2(b)(i) or 31.2(b)(ii) above applies to provide administration or settlement services in respect of one or more of the Finance Documents including without limitation, in relation to the trading of participations in respect of the Finance Documents, such Confidential Information as may be required to be disclosed to enable such service provider to provide any of the services referred to in this clause 31.2(c) if the service provider to whom the Confidential Information is to be given has entered into a confidentiality agreement substantially in the form of the LMA Master Confidentiality Undertaking for Use With Administration/Settlement Service Providers or such other form of confidentiality undertaking agreed between the Company and the relevant Finance Party; and

(d) to any rating agency (including its professional advisers) such Confidential Information as may be required to be disclosed to enable such rating agency to carry out its normal rating activities in relation to the Finance Documents and/or the Obligors if the rating agency to whom the Confidential Information is to be given is informed of its confidential nature and that some or all of such Confidential Information may be price-sensitive information.

32.3 Disclosure to numbering service providers

(a) Any Finance Party may disclose to any national or international numbering service provider appointed by that Finance Party to provide identification numbering services in respect of this Agreement, the Facility and/or one or more Obligors the following information:

(i) names of Obligors;

(ii) country of domicile of Obligors;

(iii) place of incorporation of Obligors;

(iv) date of this Agreement;

(v) clause 33 (*Governing law*);

(vi) the name of the Investment Agent and each Security Agent;

(vii) date of each amendment and restatement of this Agreement;

(viii) amounts of, and names of, each Facility;

(ix) amount of Total Commitments;

(x) currencies of each Facility;

(xi) type of Facility;

(xii) ranking of Facility;

(xiii) Maturity Date for each Facility;

(xiv) changes to any of the information previously supplied pursuant to clauses 31.3(a)(i) to 31.3(a)(xiii) (inclusive) above; and

(xv) such other information agreed between such Finance Party and the Company,

to enable such numbering service provider to provide its usual syndicated loan numbering identification services.

(b) The Parties acknowledge and agree that each identification number assigned to this Agreement, the Facility and/or one or more Obligors by a numbering service provider and the information associated with each such number may be disclosed to users of its services in accordance with the standard terms and conditions of that numbering service provider.

(c) Each Obligor represents that none of the information set out in clauses 31.3(a)(i) to 31.3(a)(xv) above is, nor will at any time be, unpublished price-sensitive information.

(d) The Investment Agent shall notify the Obligor's Agent and the other Finance Parties of:

(i) the name of any numbering service provider appointed by the Investment Agent in respect of this Agreement, the Facility and/or one or more Obligors; and

(ii) the number or, as the case may be, numbers assigned to this Agreement, the Facility and/or one or more Obligors by such numbering service provider.

32.4 Entire agreement

This clause 31 constitutes the entire agreement between the Parties in relation to the obligations of the Finance Parties under the Finance Documents regarding Confidential Information and supersedes any previous agreement, whether express or implied, regarding Confidential Information.

32.5 Inside information

Each of the Finance Parties acknowledges that some or all of the Confidential Information is or may be price-sensitive information and that the use of such information may be regulated or prohibited by applicable legislation including securities law relating to insider dealing and market abuse and each of the Finance Parties undertakes not to use any Confidential Information for any unlawful purpose.

32.6 Notification of disclosure

Each of the Finance Parties agrees (to the extent permitted by law and regulation) to inform the Company:

(a) of the circumstances of any disclosure of Confidential Information made pursuant to clause 31.2(b)(v) (*Disclosure of Confidential Information*) except where such disclosure is made to any of the persons referred to in that paragraph during the ordinary course of its supervisory or regulatory function; and

(b) upon becoming aware that Confidential Information has been disclosed in breach of this clause 31.

32.7 Continuing obligations

The obligations in this clause 31 are continuing and, in particular, shall survive and remain binding on each Finance Party for a period of twelve (12) months from the earlier of:

(a) the date on which all amounts payable by the Obligors under or in connection with the Finance Documents have been paid in full and all Commitments have been cancelled or otherwise cease to be available; and

(b) the date on which such Finance Party otherwise ceases to be a Finance Party.

32.8 Public Announcements

Notwithstanding anything to the contrary in this clause 31, each Party may make a public announcement in relation to the completion of the financing made available under the Finance Documents, provided that the Party making the announcement (the "**Announcing Party**") provides a draft of the proposed announcement to the other Party at least ten (10) days before the proposed date of the announcement. Announcing Party shall consider in good faith any comments on the draft announcement delivered to it by the other Party, provided that such comments are delivered within five days of delivery of the initial draft announcement by the Announcing Party.

33. COUNTERPARTS

Each Finance Document may be executed in any number of counterparts, and this has the same effect as if the signatures on the counterparts were on a single copy of the Finance Document.

34. GOVERNING LAW

This Agreement and any non-contractual obligations arising out of or in connection with it are governed by, and construed in accordance with, English law.

35. JURISDICTION

35.1 Jurisdiction of the courts of the Abu Dhabi Global Markets

(a) The courts of the Abu Dhabi Global Markets have exclusive jurisdiction to settle any dispute arising out of or in connection with this Agreement (including a dispute relating to the existence, validity or termination of this Agreement or any non-contractual obligation arising out of or in connection with this Agreement) (a "**Legal Dispute**").

(b) The Parties agree that the courts of the Abu Dhabi Global Markets are the most appropriate and convenient courts to settle Legal Disputes and accordingly no Party will argue to the contrary.

(c) Notwithstanding paragraphs (a) and (b) above, no Finance Party or Secured Party shall be prevented from taking proceedings relating to a Legal Dispute in any other courts with jurisdiction. To the extent allowed by law, the Finance Parties and Secured Parties may take concurrent proceedings in any number of jurisdictions.

36. WAIVER OF IMMUNITY

36.1 Each Obligor waives generally all immunity it or its assets or revenues may otherwise have in any jurisdiction, including immunity in respect of:

(a) the giving of any relief by way of injunction or order for specific performance or for the recovery of assets or revenues; and

(b) the issue of any process against its assets or revenues for the enforcement of a judgment or, in an action in rem, for the arrest, detention or sale of any of its assets and revenues.

36.2 Each Obligor agrees that in any proceedings in England this waiver shall have the fullest scope permitted by the English State Immunity Act 1978 and that this waiver is intended to be irrevocable for the purposes of the English State Immunity Act 1978.

37. WAIVER OF INTEREST

Each of the parties hereto hereby recognises and agrees that the payment of interest in whatever form (inclusive of late payments) is repugnant to and not in compliance with the rules and principles of Shari'a and accordingly, to the extent that any legal system would (but for the provisions of this clause 36) impose (whether by contract, statute, regulation, or by any means whatsoever) any obligation to pay interest, the parties hereby irrevocably and unconditionally expressly waive and reject any entitlement to recover interest from each other.

THIS AGREEMENT has been entered into on the date stated at the beginning of this Agreement.

Schedule 1
Part 1 - The Parties

NAME	ADDRESS	EMAIL	ATTENTION
KLAIM RECEIVABLE PURCHASE SPV 4 LIMITED	DD-15-134-004 – 007, Level 15, WeWork Hub71, Al Khatem Tower, Abu Dhabi Global Market Square, Al Maryah Island, Abu Dhabi, United Arab Emirates	karim@klaim.ai notices@klaim.ai	Karim Kevin Dakki
KLAIM HOLDINGS LIMITED	DD-15-134-004 – 007, Level 15, WeWork Hub71, Al Khatem Tower, Abu Dhabi Global Market Square, Al Maryah Island, Abu Dhabi, United Arab Emirates	karim@klaim.ai notices@klaim.ai	Karim Kevin Dakki
ACP SHARIAH FINANCING GP LIMITED as general partner for ACP SHARIAH FINANCING FUND L.P.	c/o Walkers Corporate Limited, 190 Elgin Avenue, George Town, Grand Cayman KY1-9008, Cayman Islands,	See notice details.	See notice details.

Part 2 - Original Financier

Name of Original Financier	Commitment ($)
ACP SHARIAH FINANCING GP LIMITED as general partner for ACP SHARIAH FINANCING FUND L.P	15,000,000

Schedule 2
Part A - Conditions Precedent

1. OBLIGORS

1.1. A copy of the constitutional documents of each Obligor, including (but not limited to) its certificate of incorporation, articles of association, trading license and an up-to-date commercial registration extract;

1.2. A copy of a resolution of the board of directors or board of managers (as applicable) or, if applicable, a committee of the board of directors of each Obligor:

(a) Approving (or ratifying as applicable) the terms of, and the transactions contemplated by, the Finance Documents to which it is a party and resolving that it execute, deliver and perform the Finance Documents to which it is a party;

(b) authorising a specified person or persons to execute the Finance Documents to which it is a party on its behalf;

(c) authorising a specified person or persons, on its behalf, to sign and/or despatch all documents and notices (including, if relevant, any Purchase Order with Promise to Purchase) to be signed and/or despatched by it under or in connection with the Finance Documents to which it is a party; and

(d) in the case of an Obligor other than the Company, authorising the Company to act as its agent in connection with the Finance Documents.

1.3. A specimen of the signature of each person authorised by the resolution referred to in paragraph 1.2 above in relation to the Finance Documents and related documents.

1.4. If required, a copy of a resolution signed by all the holders of the issued shares in each Obligor, approving the terms of, and the transactions contemplated by, the Finance Documents to which the Obligor is a party (save in respect of the holders of shares in the Parent, which shall be in agreed form as at the date hereof but delivered as a condition subsequent pursuant to Part B, paragraph 5 below).

1.5. A copy of a resolution of the board of directors of each corporate shareholder of each Obligor approving the terms of the resolution referred to in paragraph 1.4 above.

1.6. A certificate signed by a director or authorised signatory of each Obligor confirming that utilising or guaranteeing or securing, as appropriate, the Total Commitments would not cause any financing, guarantee, security or similar limit binding on any Obligor to be exceeded.

1.7. A certificate of a director or authorised signatory of each Obligor certifying that each copy document relating to it specified in this Schedule 2 is correct, complete and in full force and effect and has not been amended or superseded as at a date no earlier than the date of this Agreement.

2. FINANCE DOCUMENTS

2.1. Each of the following documents signed by the relevant parties thereto (and in the case of the ADGM Share Charge and the Promise to Sell only, such shall be signed but remain undated):

(a) this Agreement;

(b) the Investment and Security Agency Agreement;

(c) the UAE Security Agreement;

(d) the Promise to Sell;

(e) the Subordinated Qard Al Hassan Agreement;

(f) the Funds Distribution Agreement,

(g) the ADGM Share Charge;

(h) the Klaim MRPA; and

(i) each Broker Document.

3. OTHER DOCUMENTS AND EVIDENCE

3.1. The Group Structure Chart.

3.2. The Original Financial Statements of each Obligor.

3.3. A list of all bank accounts, wallets or similar of each Obligor.

3.4. A copy of the form of Customer RPA.

3.5. A copy of the form of Custody Agreement;

3.6. A copy of the Fatwa from the Shari'ah Supervisory Board.

3.7. Confirmation from the Investment Agent that it has satisfactorily completed due diligence on the Group.

3.8. Original Financier's investment committee approval of the Finance Documents.

3.9. Evidence of proforma compliance with the covenants set out in clause 18 (*Financial Covenants*).

3.10. Evidence that all Transaction Security has been perfected (save in respect of the Promise to Sell and the ADGM Share Charge) to the satisfaction of the Investment Agent, including delivery of all notices, acknowledgements and control agreements (to the extent required under the relevant Security Document), and notarisations and registrations. The Perfection Requirements with respect to the Promise to Sell and the ADGM Share Charge shall be conditions subsequent as contemplated in Part B below.

3.11. A copy of any other Authorisation or other document, opinion or assurance which the Investment Agent considers to be necessary or desirable (if it has notified the Company accordingly) in connection with the entry into and performance of the transactions contemplated by any Finance Document or for the validity and enforceability of any Finance Document.

3.12. Evidence that the fees, costs and expenses then due from the Company pursuant to clause 11.5 (*Stamp taxes*) and clause 15 (*Costs and expenses*) have been paid or will be paid by the date of each Murabaha Contract.

3.13. All information and documents necessary to comply with "know your customer checks" and other anti-money laundering regulations to which the Finance Parties are subject has been provided.

3.14. Confirmation from the Parent to the Investment Agent that Creditit Data and AI technologies Limited (the "**Monitoring Agent**") has been appointed to act as monitoring agent in a form and substance satisfactory to the Investment Agent.

Part B - Conditions Subsequent

4. New Collection Account and New Disbursement Account (USD)

4.1. The Company shall, within three (3) months of the date of this Agreement (the "**New Accounts Deadline**"): (i) open the New Collection Account and the New Disbursement Account (USD) with the New Account Bank; (ii) ensure that each of the New Collection Account and the New Disbursement Account (USD) are subject to valid and perfected first ranking Transaction Security in favor of the Security Agent; (iii) ensure that the joint signing mandates referenced in Clause 19.32is in full force and effect; and (iv) deliver to the Investment Agent the account control agreements referenced in Clause 19.32.

4.2. Promptly following the opening of the New Collection Account (and in any event within 5 Business Days of the New Collection Account Deadline), the Company shall: (i) irrevocably instruct the Custodian and/or any relevant counterparties to redirect all future payments and Collections from the Custody Account to the New Collection Account; and (ii) transfer all standing credit balances from the Interim Collection Account to the New Collection Account.

4.3. Promptly following the opening of the New Disbursement Account (USD) (and in any event within 5 Business Days of the New Accounts Deadline), the Company shall transfer all (if any) standing credit balances from the Interim Distribution Account (USD) to the New Disbursement Account (USD).

5. ADGM Share Pledge and Promise to Sell

5.1. The Company and the Parent shall within three (3) months of the date of this Agreement (the "**Share Security Deadline**"), ensure that: (i) the board of directors of the Parent and/or the Company (as applicable) formally approve the entry into and dating of the Promise to Sell and the ADGM Share Charge; (ii) all necessary shareholder resolutions and approvals are obtained for the Parent and/or the Company (as applicable) to enter into and date the Promise to Sell and the ADGM Share Charge; (iii) the Promise to Sell

and the ADGM Share Charge are duly dated; and (iv) all Perfection Requirements for the ADGM Share Charge (including, without limitation, all necessary registrations, filings, endorsements, notarisations, stampings and/or notifications) are completed to the satisfaction of the Investment Agent.

5.2. The Company shall deliver to the Investment Agent certified copies of all documents and evidence demonstrating compliance with sub-clauses (i) through (iv) of paragraph (a) above, promptly upon completion thereof and in any event no later than the Share Security Deadline.

6. Systems integration in respect of the Monitoring Agent

By no later than the date falling two calendar weeks after the date hereof, the Parent shall have confirmed to the Investment Agent in writing (with supporting evidence in form and substance satisfactory to the Investment Agent) that the Monitoring Agent has full access to its online databases and systems for the purposes of carrying out its role as Monitoring Agent.

Schedule 3
Requests and Notices

Part 1 - Form of Purchase Order with Promise to Purchase

To: [●]

From: [●] as the Company

Date: [●]

Dear Sirs

$15,000,000 Master Murabaha Agreement dated [●] 2026 (the "Master Murabaha Agreement")

1. We refer to the Master Murabaha Agreement. This is a Purchase Order with Promise to Purchase . Capitalised terms defined or incorporated in the Master Murabaha Agreement have (unless expressly defined in this Purchase Order with Promise to Purchase) the same meaning when used in this Purchase Order with Promise to Purchase.

2. We hereby request that you purchase Commodities on the Settlement Date specified below in accordance with the Master Murabaha Agreement:

   (a) Description of Commodities: [●]

   (b) Proposed Settlement Date: [●]

   (c) Cost Price: $[●]

   (d) Terms of Payment: Sight

3. In consideration of you issuing a Transaction Confirmation and Offer Notice, we unconditionally and irrevocably undertake that on each Settlement Date, and provided that you acquire title to the Commodities, we promise to:

   (a) sign and deliver to you an Acceptance in relation to the purchase of the Commodities; and

   (b) purchase the Commodities from you for the Deferred Price specified in the Transaction Confirmation and Offer Notice,

   in accordance with the terms of the Master Murabaha Agreement.

4. We hereby certify that:

   (a) no Default has occurred and is continuing or would result from the Murabaha Contract being entered into;

   (b) the proceeds of the Murabaha Contract are to be applied towards the Permitted Application;

(c) all representations and warranties made by us in clause 17 (*Representations*) of the Master Murabaha Agreement are true in all material respects.

5. This Purchase Order with Promise to Purchase is irrevocable.

6. This Purchase Order with Promise to Purchase and all non-contractual obligations arising from or connected with it are governed by English law.

7. This request shall remain open for your acceptance in accordance with the Agreement until 11am (UAE time) on [●].

Yours faithfully

_____
authorised signatory for

[●]
(as Obligor)]

/ **[●]**
(as Obligor)]

Part 2 - Form of Transaction Confirmation and Offer Notice

To: [●]

From: [●]

Date: [●]

Dear Sirs

$15,000,000 Master Murabaha Agreement dated [●] 2026 (the "Master Murabaha Agreement")

1. We refer to the Master Murabaha Agreement and Purchase Order with Promise to Purchase dated [●], from you to us (the "**Purchase Order with Promise to Purchase**").

2. This is a Transaction Confirmation and Offer Notice. . Capitalised terms defined or incorporated in the Master Murabaha Agreement have (unless expressly defined in this Transaction Confirmation and Offer Notice) the same meaning when used in this Transaction Confirmation and Offer Notice.

3. Pursuant to your request, we confirm that we have purchased the Commodities in our name for the amount of [●] (being the Cost Price) as per your Purchase Order with Promise to Purchase

4. We hereby irrevocably and unconditionally offer to sell you the Commodities described below to you on the following terms:

(a)	Commodities:	[●]
(b)	Volume or quantity of Commodities:	[●]
(c)	Location of Commodities:	[●]
(d)	Cost Price:	$[●]
(e)	Murabaha Profit:	$[●]
(f)	Deferred Price:	$[●]
(g)	Settlement Date:	[●]
(h)	Deferred Payment Date:	[please see payment schedule below]
(i)	Deferred Price Instalments:	[please see payment schedule below]

5. Payments due to us in relation to the Murabaha Contract formed by your Acceptance of this Transaction Confirmation and Offer Notice must be made to our account number [●].

6. The terms and conditions set out in the Master Murabaha Agreement shall be deemed incorporated in this Transaction Confirmation and Offer Notice and shall be considered an integral part of this Transaction Confirmation and Offer Notice and Acceptance.

7. This Transaction Confirmation and Offer Notice and all non-contractual obligations arising from or connected with it are governed by English law.

8. Please sign and return this notice to us as your acceptance of the terms set out herein no later than 1:00 pm (UAE time) on [●].

Yours faithfully

_____

authorised signatory for

ACP Shariah Funding Fund L.P.
acting through its general partner
Shariah Financing GP Limited

(as the Investment Agent)

Schedule of Deferred Payment

Deferred Payment Date	Deferred Price Instalment ($)

Purchaser Acceptance

We confirm acceptance of the terms and conditions and the offer to sell to us such Commodities contained in the above Transaction Confirmation and Offer Notice and we agree that our signature of this Acceptance concludes a Murabaha Contract between us on the terms specified in the Transaction Confirmation and Offer Notice and the Master Murabaha Agreement.

We also (irrevocably and unconditionally) undertake to pay to you the Deferred Price in accordance with the Master Murabaha Agreement.

Yours faithfully,

_____

[●]
(as Obligor) /

[●]
(as Obligor)

Schedule 4
Form of Compliance Certificate

To: [●]

From: [●] as the Company

Date: [●]

Dear Sirs

$15,000,000 Master Murabaha Agreement dated [●] 2026 (the "Master Murabaha Agreement")

1. We refer to the Master Murabaha Agreement. This is a Compliance Certificate. Terms defined in the Master Murabaha Agreement have the same meaning when used in this Compliance Certificate unless given a different meaning in this Compliance Certificate.

2. We confirm that:

   [Insert details of covenants to be certified].

   [We confirm that [*the name of the financial covenant*] is as follows:

   [●]

3. Details of the calculations of the financial ratios set out in paragraph 2 above are attached to this Compliance Certificate in the form of the excel workbook delivered to the Company by the Investment Agent on or before the date of this Agreement.

4. [We confirm that no Default is continuing.]*

Signed	_____	_____
	Director	Director
	of	of
	[Company]	[Company]

[*insert applicable certification language*]

_____
for and on behalf of
[name of Company's Auditors]**

NOTES:
* If this statement cannot be made, the Compliance Certificate should identify any Default that is continuing and the steps, if any, being taken to remedy it.

** Only applicable if the Compliance Certificate accompanies the audited financial statements and is to be signed by the Company's Auditors. To be agreed with the Company's Auditors prior to signing the Agreement.

Schedule 5
Form of Management Accounts

[See next page]

BALANCE SHEET

Klaim Receivable Purchase SPV 4 Limited
--Klaim Receivable Purchase SPV 4 Limited--
Tax ID:

	As of XX/XX/XXXX Balance
ASSETS	
Current Assets	
Bank and Cash Accounts	
Receivables	
Current Assets	
Prepayments	
Plus Fixed Assets	
Plus Non-current Assets	
LIABILITIES	
Current Liabilities	
Current Liabilities	
Payables	
Plus Non-current Liabilities	
EQUITY	
Unallocated Earnings	
Current Year Unallocated Earnings	
Previous Years Unallocated Earnings	
Retained Earnings	
LIABILITIES + EQUITY	

PROFIT AND LOSS

Klaim Receivable Purchase SPV 4 Limited
--Klaim Receivable Purchase SPV 4 Limited--
Tax ID:

	2026
	Balance
Revenue	
Less Costs of Revenue	
Gross Profit	
Less Operating Expenses	
Operating Income (or Loss)	
Plus Other Income	
Less Other Expenses	
Net Profit	

Schedule 6
Deferred Payment Schedule

Deferred Payment Date	Deferred Price Instalment (US$)
2026-03-31	314,166.67
2026-06-30	492,916.67
2026-09-30	498,333.33
2026-12-31	498,333.33
2027-03-31	487,500.00
2027-06-30	492,916.67
2027-09-30	498,333.33
2027-12-31	498,333.33
2028-03-31	492,916.67
2028-06-30	492,916.67
2028-09-30	498,333.33
2028-12-31	498,333.33
2029-03-31	487,500.00
2029-06-30	492,916.67
2029-09-30	498,333.33
2029-12-31	498,333.33
2030-02-01	15,173,333.33

Schedule 7
Group Structure Chart

[See next page]

Schedule 7
Group Structure Chart

[See next page]

Ownership Structure

Sl No	Entity	Owner	Ownership	Number of Shares	Value per share	Share Capital
1	Klaim Technologies DMCC	Klaim Holding Limited	100%	50	AED 1,000.00	AED 50,000.00
2	Klaim Kapital Technologies Limited	Klaim Holding Limited	100%	1,000,000	$ 0.0001	$ 100.00
3	Klaim Receivable Purchase SPV1 Limited	Klaim Holding Limited	100%	1,000,000	$ 0.0001	$ 100.00
4	Klaim Receivable Purchase SPV2 Limited	Klaim Holding Limited	100%	1,000,000	$ 0.0001	$ 100.00
5	Klaim Receivable Purchase SPV3 Limited	Klaim Holding Limited	100%	1,000,000	$ 0.0001	$ 100.00
6	Klaim for Informations Technology	Klaim Holding Limited	100%	300,000	SAR 10.00	SAR 3,000,000.00
7	Klaim Receivable Purchase SPV4 Limited	Klaim Holding Limited	100%	1,000,000	$ 0.0001	$ 100.00
8	Klaim Muscat LLC	Klaim Holding Limited	100%	4,950	OMR 1.00	OMR 5,000.00

KLAIM Holdings Limited

Middle East Holding Company

Klaim Muscat LLC

Klaim for Information Technologies

KLAIM Technologies DMCC

KLAIM Kapital Technologies Limited

KLAIM Receivable Purchase SPV 1

KLAIM Receivable Purchase SPV 2

KLAIM Receivable Purchase SPV 3

KLAIM Receivable Purchase SPV 4

EXECUTION PAGES TO THE MASTER MURABAHA AGREEMENT

Company

SIGNED by)
for and on behalf of **KLAIM**)
RECEIVABLE PURCHASE SPV 4)
LIMITED .....

Notice: DD-15-134-004 – 007, Level 15, WeWork Hub71, Al Khatem Tower, Abu Dhabi Global Market Square, Al Maryah Island, Abu Dhabi, United Arab Emirates;
Email: ; KARIM@KLAIM.AI, LEGAL@KLAIM.AI
Attention: KARIM KEVIN DAKKI

Parent

SIGNED by
for and on behalf of **KLAIM HOLDINGS LIMITED**

Notice: DD-15-134-004-007, LEVEL 15, WEWORK HUB71, AL KHATEM TOWER, ABU DHABI ; GLOBAL MARKET SQUARE, AL MARYAH ISLAND, ABU DHABI, UNITED ARAB EMIRATES
Email: ; KARIM@KLAIM.AI, LEGAL@KLAIM.AI
Attention: KARIM KEVIN DAKKI

Investment Agent

SIGNED for and on behalf of **ACP SHARIAH FINANCING GP LIMITED** as general partner for **ACP SHARIAH FINANCING FUND L.P**)

.....
Name: SAMER SARRAF
Authorised Signatory

.....
Name: IMAD CHUKRALLAH
Authorised Signatory

Notice: c/o Walkers Corporate Limited,
190 Elgin Avenue, George Town, Grand
Cayman KY1-9008, Cayman Islands
United Arab Emirates;
Email:
Attention: